LGBTI National Policy Dataset

Codebook

Version 3.0 — Long Format

October 2026

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1. The Dataset

The LGBTI National Policy Dataset (Version 3.0) is a country–year–policy panel tracking the adoption, scope, and enforcement of LGBTI-related policies across 195 countries from 1991 to 2025. The dataset is distributed in long format: each row records one country in one year for one specific Law × Status combination. The 35 rows of one country for one Law × Status combination, from 1991 to 2025, form a *series*: Ghana's rows for Same-Sex Acts Illegal are one series, and its rows for Same-Sex Acts Legal another. The series is the unit at which sources, confidence ratings and notes are recorded and at which the coding rules of §3 are applied. Every coded value is derived from a dated *instrument*: a statute, a code article, a decree or regulation with the force of law, a final court judgment that binds the jurisdiction or, where no statute governs the policy, a written administrative instrument such as a ministry regulation or a blood service's donor criteria (§3.1.1). The Source_1 cell of each series cites the instrument that establishes it (§3.8).

1.1 Structure

The data file is a single UTF-8 CSV in long format, 368,550 rows × 37 columns, and a fully balanced panel: every country has 1,890 rows (54 Law × Status combinations × 35 years). Each of the 27 policy areas has two statuses of opposing legal direction. 36 of the 54 combinations contain substantive data and 18 are placeholders, all-zero in every country and kept for panel balance. A row's row_type is 'substantive' if its series has at least one year with Proportion > 0 (60,060 rows in 1,716 series) and 'placeholder' otherwise (308,490 rows in 8,814 series); a placeholder series may still cite the instruments that show why it is not coded (§3.8.3).

The citations quote laws in their own languages and scripts, among them Cyrillic, Greek, Arabic, Chinese, Georgian, Armenian, Thai, Hebrew and Korean, so the file should be read with its encoding declared. In R, either of these lines keeps the text intact whatever the computer's default encoding:

```
lgbti <- readr::read_csv("LGBTI_Policy_Data_Long.csv", locale =
readr::locale(encoding = "UTF-8"))
lgbti <- read.csv("LGBTI_Policy_Data_Long.csv", encoding = "UTF-8")
```

Within a policy the two statuses exclude each other at national scope: the old status is coded through the year before a reform's adoption year and the opposing status from that year (§3.5). A status is active, or in force, in a country-year in which its Proportion is above 0. Both statuses are active in the same year only where coverage is subnational and the two describe different parts of the territory, in United States Joint Adoption from 2016 (§4.8), or in the two Gender Affirming Care policies, whose statuses do not exclude each other. Coverage below the national level is population-weighted with constant census shares (§2.3).

The Year column is the panel year. Year_of_National_Adoption and the other year fields record the policy's own history, are constant within a series and are independent of Year, so a series whose instrument predates 1991 can be extended back in time (§2.4). The R script defines a function, extend_panel_back(), with an example that starts the panel in 1960. It extends back

only the series in force in 1991: a status in force nationally takes Proportion 1 from its national adoption year, coverage below the national level before 1991 is left missing because it is not recorded, and active rows keep their 1991 descriptor values. A status coded from practice or from a documented absence before its first citable instrument (§3.3.2) is left missing in every earlier year, and a restored status (§3.2.3) from its first adoption year, because the year in which coverage began is not known. A status that ended before 1991 is not reconstructed.

1.2 Citation

Velasco, Kristopher. 2026. "LGBTI National Policy Dataset, Version 3.0." https://doi.org/10.17605/OSF.IO/WTA9P. Distributed under CC BY 4.0.

1.3 Files

- LGBTI_Policy_Data_Long.csv — the dataset this codebook documents.
- LGBTI_Composite_Index.csv — the composite index by country and year in three versions: the Additive Index, the National Index and the confirmatory factor analysis (CFA) Index (§5).
- Velasco_LGBTI_Index_Construction.R — the R script that builds the index file from the data file.
- LICENSE — the Creative Commons Attribution 4.0 International License.
- README.md — a guide to the files, with R code for loading the data, the citation and the license.

2. Variable Descriptions

The 37 columns fall into eight groups and appear in this fixed order:

#	Column	Type	Group
1	Country	string	Identification
2	ISO	string	Identification
3	COW	numeric	Identification
4	Year	integer	Identification
5	Law	string	Policy
6	Status	string	Policy
7	Proportion	numeric [0,1]	Outcome
8	Year_of_National_Adoption	integer	Temporal
9	Year_of_First_Adoption	integer	Temporal
10	Year_of_National_Repeal	integer	Temporal
11	Year_National_Implementation	integer	Temporal
12	Year_Law_Changed	string (years separated by semicolons)	Temporal
13	Blood_Restriction_Period	string	Supplementary
14	Max_Punishment	string	Supplementary
15	Fine_Amount	string	Supplementary
16	Sexes_Covered	numeric {0.50, 1.00}	Supplementary
17	Sub_National_Variation	binary 0/1	Supplementary
18	Sub_National_Coverage	string	Supplementary
19	Gender_Change_Requirement	string	Supplementary
20	Civil_Union_Benefits	numeric 1–5	Supplementary
21	Policy_Scope	string (controlled per-area value set)	Supplementary
22	Evidence_of_Enforcement	five-point scale {0.00, 0.25, 0.50, 0.75, 1.00}	Indicator
23–34	Source_1 … Source_12	string	Source
35	data_confidence	high/medium/low	Quality
36	confidence_note	string	Quality
37	row_type	substantive/placeholder	Quality

Note on indicators: of the six indicators used to construct the composite index, only Evidence_of_Enforcement is stored as a dataset column, while Sexes_Covered records the numeric value of the Gender Scope indicator. The R script (Velasco_LGBTI_Index_Construction.R) computes the remaining four indicators — Population Coverage, Penalty Severity, Ease of Access and Policy Scope — from the coded columns (Proportion, Max_Punishment, Policy_Scope, Gender_Change_Requirement, Civil_Union_Benefits, Blood_Restriction_Period).

2.1 Identification Variables

The four identification columns are the following:

- Country — the name of the country.
- ISO — the 3-letter ISO 3166-1 alpha-3 code.
- COW — the Correlates of War code.
- Year — the panel year of observation, 1991–2025.

2.2 Policy Variables

Law identifies one of 27 policy areas, organized into seven thematic domains. Each domain is illustrated below by a trend chart. Its vertical axis, Number of Countries (Population-Weighted Scores), sums each country's Proportion for the policy in that year: a country with the policy in force nationally counts 1, a country with the policy in force in part of its territory counts the share of its population covered, and a country without it counts 0. In the data file the dash in a Law value is written as a spaced hyphen (for example, 'Employment Discrimination - Sexual Orientation').

2.2.1 Criminalization and Penalties

- Same-Sex Acts
- Age of Consent
- Death Penalty
- Morality/Propaganda
- LGBTQ+ Civil Society Restrictions

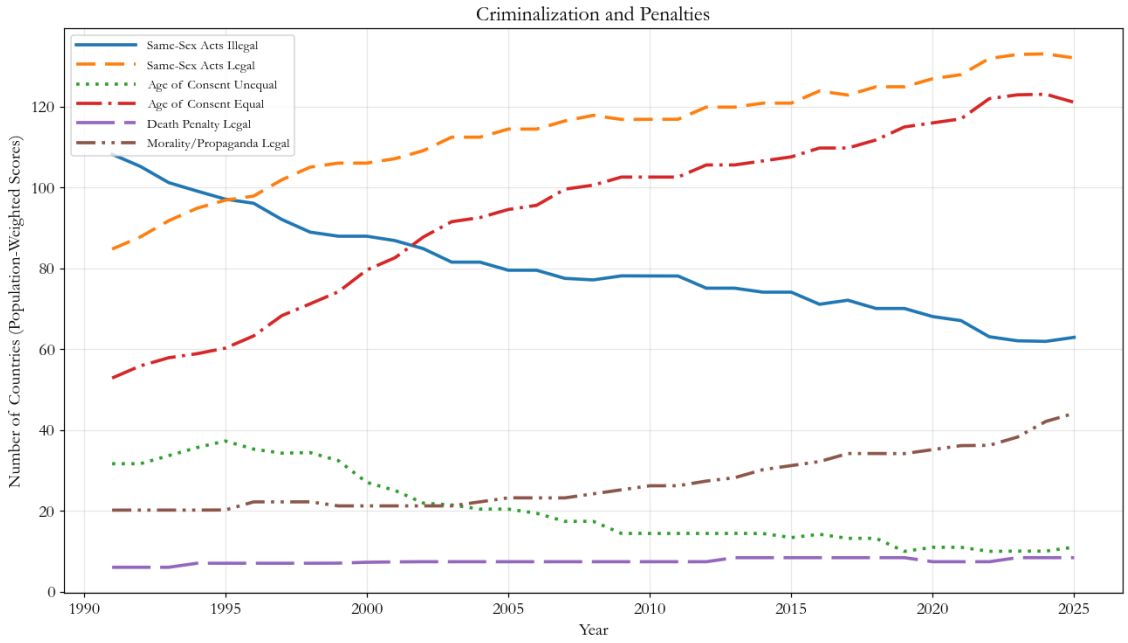


Figure 2.1. Global Trend in Criminalization and Penalty Policies, 1991–2025

2.2.2 Relationship Recognition

- Marriage Equality
- Civil Unions
- Joint Adoption

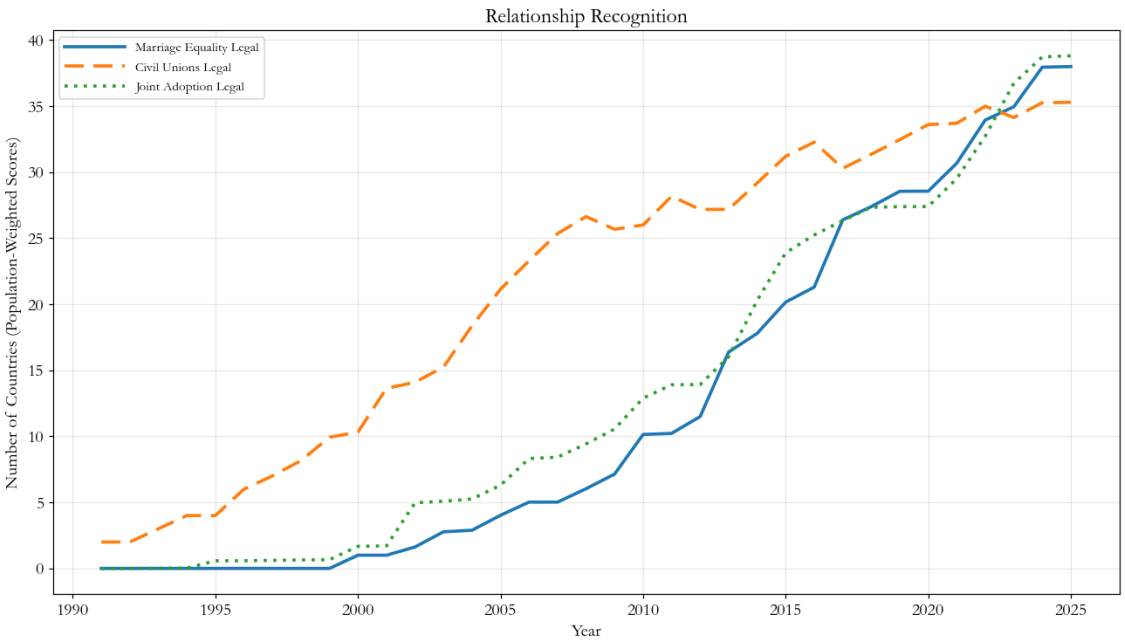


Figure 2.2. Global Trend in Relationship-Recognition Policies, 1991–2025

2.2.3 Anti-Discrimination Protections

- Employment Discrimination – Sexual Orientation
- Employment Discrimination – Gender Identity
- Goods/Services Discrimination – Sexual Orientation
- Goods/Services Discrimination – Gender Identity
- Conversion Therapies
- Religious Exemption Laws
- Gender Assignment Surgeries on Children

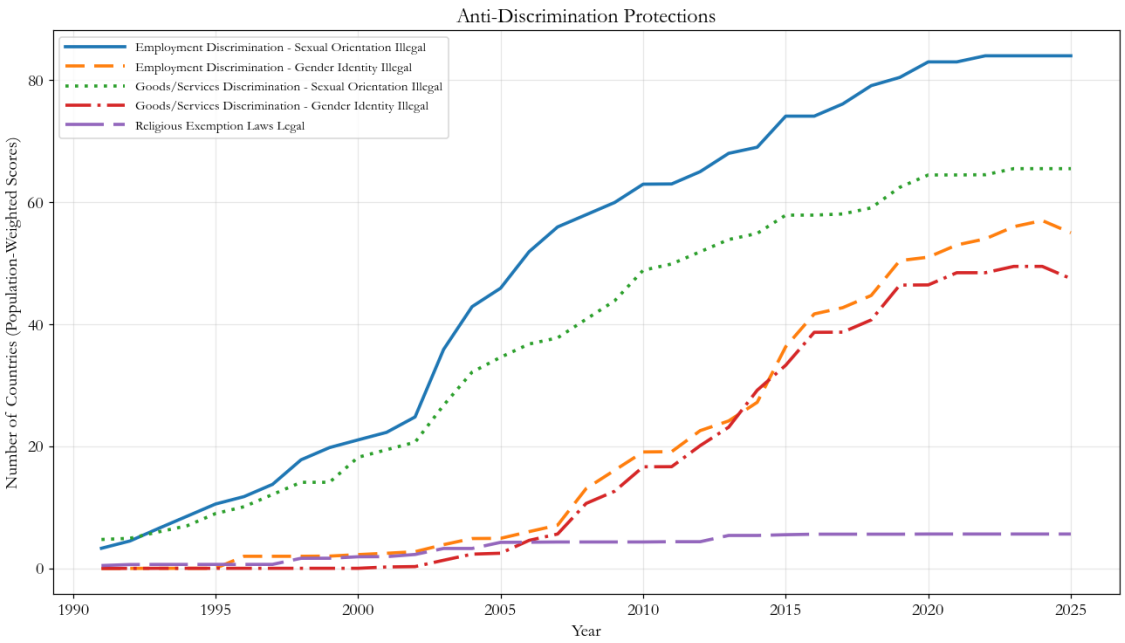


Figure 2.3. Global Trend in Anti-Discrimination Protections, 1991–2025

2.2.4 Hate Crime and Speech

- Hate Crime Protections – Sexual Orientation
- Hate Crime Protections – Gender Identity
- Incitement to Hatred

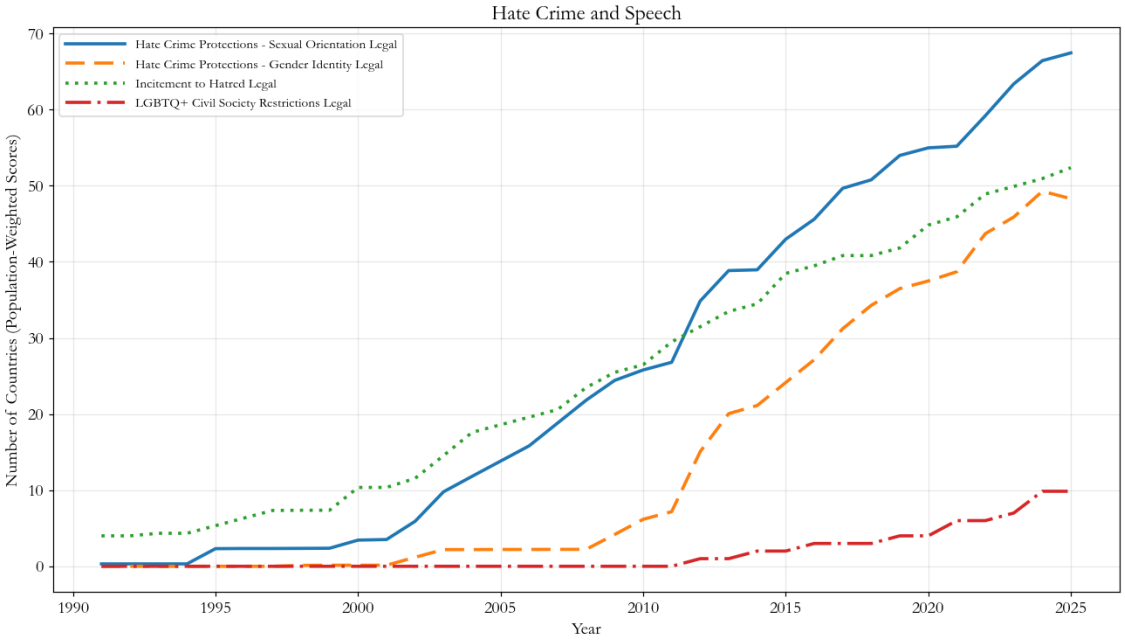


Figure 2.4. Global Trend in Hate-Crime and Speech Protections, 1991–2025

2.2.5 Military Service

- LGB Military
- Transgender Military

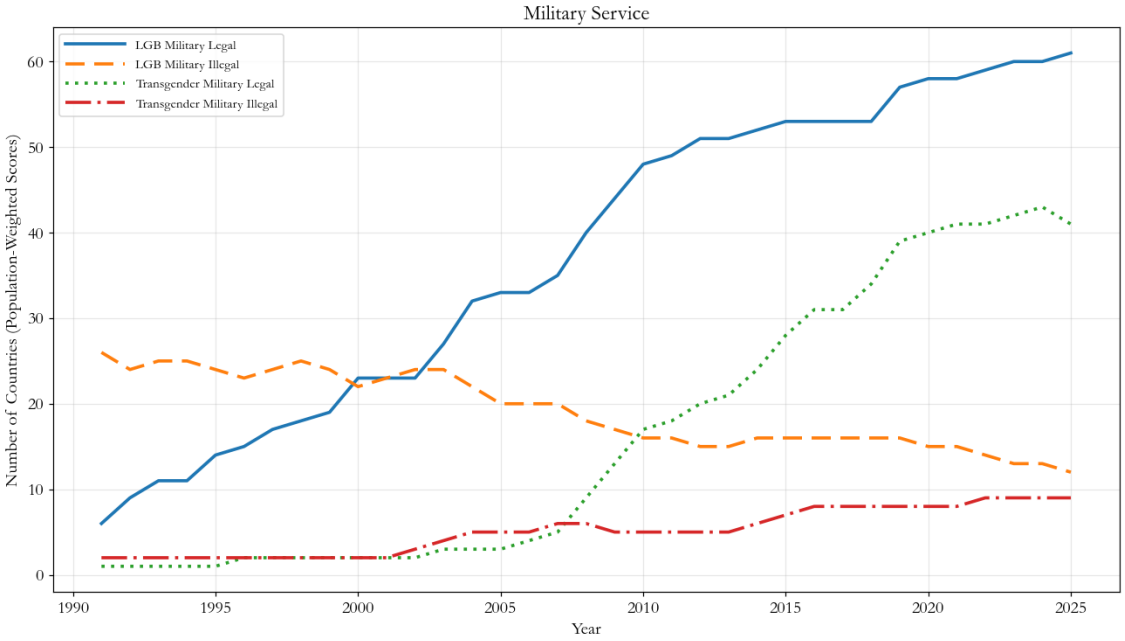


Figure 2.5. Global Trend in Military-Service Policies, 1991–2025

2.2.6 Gender Identity and Healthcare

- Gender Marker Change
- Third-Gender Recognition
- Gender Affirming Care – Adults
- Gender Affirming Care – Minors
- Blood Donations

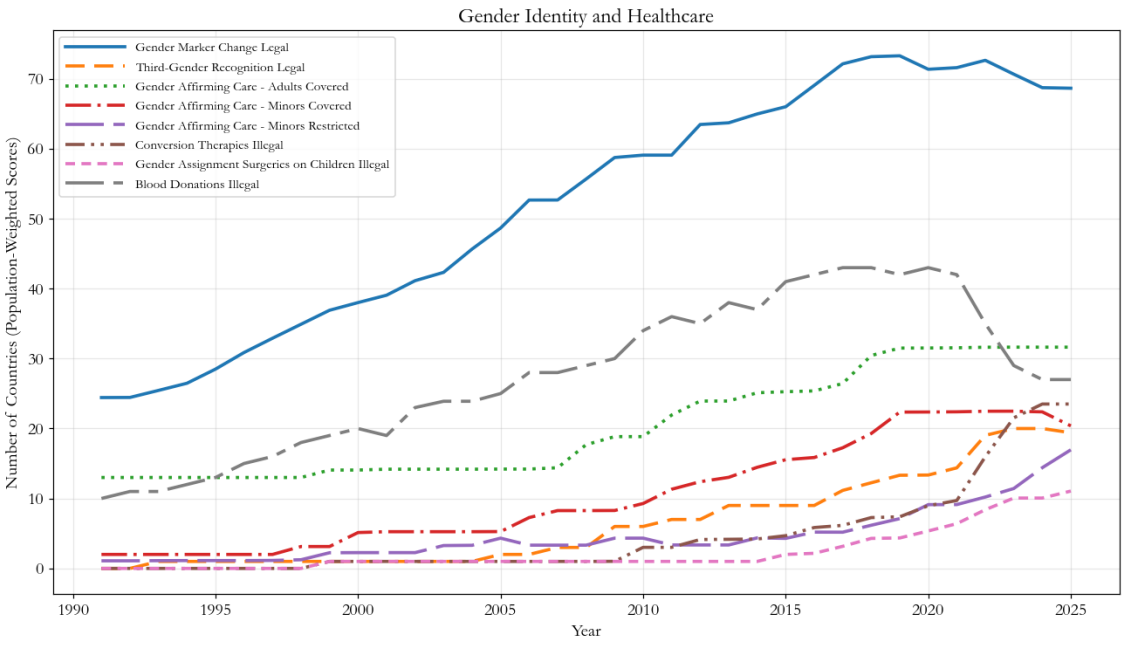


Figure 2.6. Global Trend in Gender Identity and Healthcare-Access Policies, 1991–2025

2.2.7 Constitutional Protections

- Constitutional Protections – Sexual Orientation
- Constitutional Protections – Gender Identity

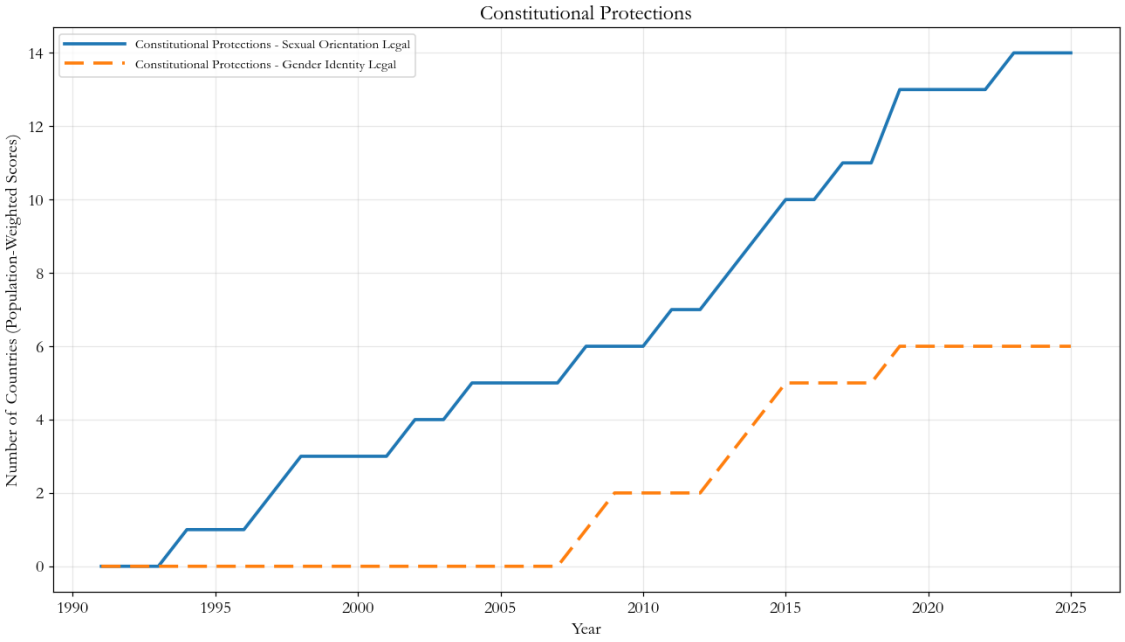


Figure 2.7. Global Trend in Constitutional Protections, 1991–2025

Status
Status takes one of six values:

- Legal
- Illegal
- Equal
- Unequal
- Covered
- Restricted

The status label is paired with the Law to specify the direction of the underlying policy. The mapping from Law × Status to substantive orientation (progressive or regressive) is in §3.5.

2.3 Outcome Variable: Proportion

Proportion records the fraction of the country's census population (one constant census table per country, §3.4) living under the policy in the given year, conditional on the specified Status. For national-only policies, Proportion is binary (0 or 1). In the 18 countries with subnational coverage in at least one policy (Argentina, Australia, Austria, Bosnia and Herzegovina, Brazil, Canada, India, Indonesia, Iraq, Japan, Mexico, Nigeria, Russia, South Africa, Spain, Switzerland, United Kingdom, United States), Proportion is continuous and computed as:

Proportion = Σ(census population of subnational units that have adopted by year Y) / total national census population, both from the same census table

Using a constant denominator ensures that year-to-year change reflects policy adoption alone, not demographic change. Subnational units include states, provinces, autonomous communities, and — if a policy operates at that level, as with Japan's partnership-oath systems — municipalities.

Proportion does not record limits on what an instrument covers, such as an instrument that reached only part of the policy's field before a later amendment widened it. Such limits are recorded in Policy_Scope, Evidence_of_Enforcement and Ease of Access (§3.4.1). The series' Sub_National_Coverage column names the jurisdictions whose own instruments are in force in each year (§2.5).

2.4 Temporal Metadata

Column	Definition

Year_of_National_Adoption (YNA)	The column records the adoption year of the establishing national instrument (signing, Royal Assent, promulgation, final court ruling, approving referendum — see §3.2). For purely national instruments this is the adoption year of that statute or decree. For graduated subnational rollouts it is the adoption year of the instrument that completes national coverage. The column is empty if the policy never achieves nationwide validity. YNA is the adoption year, not the in-force year. If the establishing statute was signed in a year that precedes its entry into force, YNA precedes Year_National_Implementation (YNI), while Proportion already reaches 1.0 in the adoption year (§3.2). For the countries that never criminalized same-sex acts (§3.3) YNA is the Correlates of War entry year, or 1991 if the entry is later. For regimes operative before their earliest citable instrument, YNA takes the adoption year of that instrument (§3.3.2).
Year_of_First_Adoption (YFA)	The column records the year of first adoption. For purely national instruments it is normally the same as YNA (the signing year), and earlier in a series repealed and later restored, in which YNA belongs to the restoring instrument (§3.2). For graduated subnational rollouts it is the adoption year of the first jurisdiction to adopt. YFA is never later than YNA: both record the adoption years in which coverage changes (§3.2).
Year_of_National_Repeal	The column records the year in which the repealing instrument was signed (adoption-year convention, §3.2).
Year_Law_Changed	The column lists the signing year of each instrument that changes a coded value or the coverage of the series after its establishing instrument, in any year, before 1991 included. In an age-of-consent series it also lists a change of the age threshold. It never lists the years recorded in Year_of_First_Adoption and Year_of_National_Adoption, the year of a confirming, re-codifying or restating instrument, or the in-force year of a repeal. A repeal is listed with its signing year. If several instruments mark distinct change-points, the years form a semicolon-separated list (e.g., '2019;2020').
Year_National_Implementation (YNI)	The column records the year in which the instrument that completed nationwide coverage came into force. It is ≥ YNA, and equal to YNA if the instrument took effect in its adoption year. A judgment, an equality-body opinion or a health-authority recommendation is in force when issued. The column is empty if coverage never reaches 1.0, if no in-force date is documented, if the series is based on documented practice alone, or if the series' dating is based on a documented absence of any offence, as for the countries that never criminalized same-sex acts (§3.3). A series coded from practice before its first citable instrument takes the in-force year of the instrument that dates YNA (§3.2.4).

2.5 Supplementary Metadata

Blood_Restriction_Period

Blood_Restriction_Period records the length of the blood-donation deferral for men who have sex with men (MSM). It takes one of ten values:

- 'Permanent deferral'
- '15-year deferral'
- '10-year deferral'
- '5-year deferral'
- '12-month deferral'
- '6-month deferral'
- '4-month deferral'
- '3-month deferral'
- 'Individual risk assessment'

- 'No restriction'

The field is filled only on Blood Donations rows. The Ease of Access indicator is computed from it (§5.2.5).

Max_Punishment

Max_Punishment records the maximum imprisonment for regressive laws and for the criminal bans on conversion practices and on surgeries on intersex children. It takes one of six forms:

- A number of years or months
- 'Life'
- 'Death'
- 'Less than 6 months' — a maximum prison term below six months, scored with terms of three years or less.
- 'Fine or other non-prison penalty' — a fine, a security measure, a licence sanction or deregistration, without prison.
- Blank

The field is blank if the policy imposes no penalty on the person, as with an exclusion from blood donation or from military service. If the provision coded contains graduated parts (a basic and an aggravated form of the same offence), the field takes the maximum of the part that covers the conduct the policy records, not the penalty for an aggravated or non-consensual part (§3.6).

Fine_Amount

Fine_Amount records the maximum fine that the provision coded states for the conduct the policy records, read from the part of the provision that covers that conduct (§3.6), for a private individual and not for an official or a company. It is written as a number with comma thousands separators and the statute's currency, named with its country where the currency's name alone does not identify it, without conversion (for example '2,000,000 CFA francs' or '200 Bahraini dinars'); as the top of a stated range; or in the statute's own unit if the maximum is not stated in money ('100 penalty units', 'Fourth-category fine', '12 months of day-fines'). Kuwait's Penal Code of 1960, adopted before the Kuwaiti dinar replaced the Gulf rupee in 1961, states its fine in rupees, so the field reads '1,000 rupees' until 2006. The field also takes two other values:

- 'Yes' — the provision provides a fine but states no amount, or states only a minimum.
- 'No' — the provision coded provides no fine.

A fine for a related act (an advertisement, ignoring a judgment) and a good-conduct bond are not the fine for the conduct the policy records. Neither is a code-wide power to add a fine to any offence. In a subnational series the field takes the highest fine in force across the covered units or, if the units state fines in units that cannot be compared, the fine of the most populous covered unit that states one. For the United States anti-discrimination series, civil penalties paid to the state count as fines alongside criminal fines, but amounts paid to the victim do not. A unit whose penalty states no maximum does not displace a stated amount.

The field applies to every policy in which the provision coded attaches a fine to the conduct the policy records, including employment and goods-and-services discrimination, incitement and care restrictions. A recognition procedure, a sentencing aggravator with no penalty of its own, a constitutional clause, and uncodified law with no penalty text leave it empty. Otherwise an empty value means that no fine could be established from the provision's text (§3.6.4). Users should treat Fine_Amount as a character field.

Sexes_Covered

Sexes_Covered records the numeric Gender Scope score: 1.00 if the statute covers all genders and 0.50 if coverage is single-sex (a male-only, female-only, or trans-only instrument). The field is filled on every active row (§3.9).

Sub_National_Variation / Sub_National_Coverage

Sub_National_Variation is a binary flag (1 = the policy varies by subnational jurisdiction; 0 = otherwise). Sub_National_Coverage names, in every year of a series with Sub_National_Variation 1, the jurisdictions whose own instruments are in force, taken from the instrument list, at full coverage as well as below it. The cell is empty in a year whose coverage rests on a national instrument alone. The flag is a property of the series, not of the year: it takes 1 in every year of a series whose coverage comes from subnational instruments at any point, or for which Sub_National_Coverage names a separate subnational regime. Every other series takes 0 in every year.

Gender_Change_Requirement

Gender_Change_Requirement records, for Gender Marker Change Legal rows, the requirement attached to legal gender recognition in the row's year. Its value follows the instrument in force in each year. A reforming instrument changes it in the year the reform enters into force, while Year_Law_Changed lists the reform's signing year (§3.2.6, §3.2.7). The permitted values, from most to least accessible, are the following:

- 'Self-declaration' (1.0) — self-declaration procedure with no medical, psychological, or surgical requirement.
- 'Court order' (0.5) — judicial authorisation is the operative gate, with no medical, psychological or surgical evidence required (e.g., France after Loi 2016-1547, Greece after Law 4491/2017).
- 'Medical diagnosis' (0.5) — formal diagnosis required without surgery.
- 'Psychological assessment' (0.5) — psychiatric or psychological assessment or expert testimony required (e.g., the Netherlands from 2014).
- 'Surgery and psychological assessment' (0.25) — the regime combines surgical and psychological requirements, or applies different conditions across pathways, short of full sterilization.
- 'Surgery' (0.25) — gender-affirming surgery required without a sterilization mandate.
- 'Surgery and sterilization' (0.0) — surgery and sterilization both required.

Where no procedure exists, the country-year is not coded. A procedure that is abolished ends the series, whose Year_of_National_Repeal records the repeal. The field is blank if the instrument

does not specify the period's requirement. The Ease of Access indicator is computed from the field (§5.2.5). A blank field is a missing value, which the index fills from the series' own years (§5.3).

Civil_Union_Benefits

Civil_Union_Benefits records the range of rights that a civil union regime confers, on a scale from 1 to 5 (1 = registration with minimal rights; 5 = rights equivalent to marriage, including joint adoption; half-points are allowed). Ease of Access is this value divided by 5 (§5.2.5).

Policy_Scope

Policy_Scope records the reach of an instrument within its policy area as one of a fixed set of labels (e.g. 'Full public provision', 'Ban for minors', 'Identity card or passport only'). Two instruments in the same policy area can look identical on paper but differ substantially in reach: one might apply only to minors while another covers all ages, one might impose criminal penalties while another is administrative, and one might cover all official documents while another only passports. The labels are specific to each policy area, which has its own set of labels for the distinctions that matter in that area. The value can change from year to year, so a documented change of scope — an amendment extending a minors-only ban to all ages, or a passport-only third-gender marker later extended to all documents — appears in the year the amending instrument enters into force (§3.2.6). The Policy Scope indicator of the composite index is computed from these values (§5.2.6). In a policy area without labels the cell is blank and the indicator is 1.0. In the employment and goods-and-services series a blank cell records that the instrument attaches no remedy and scores 0.5, the lowest category (§3.11.2). In the other policy areas with labels a blank cell is a missing value, which the index fills from the series' own years (§5.3). The value sets defined for each policy area are the following:

Policy area	Values (Policy Scope value in parentheses)
Gender Affirming Care — Covered	'Full public provision' (1.0) · 'Regulated without public funding' (0.75) · 'Some treatments only' (0.75) · 'Hormones only' (0.5) · 'Case-by-case approval' (0.25)
Gender Affirming Care — Restricted	'Total ban' (1.0) · 'Some treatments banned' (0.5) · 'Excluded from public funding' (0.5) · 'Restricted by clinical guideline' (0.25)
Conversion Therapies — Illegal	'Ban for all persons' (1.0) · 'Ban for minors' (0.75) · 'Licensed professionals only' (0.5) · 'One service setting only' (0.25)
Employment / Goods–Services Discrimination — Illegal	'Criminal penalty' (1.0) · 'Civil remedy' (1.0) · 'Administrative enforcement only' (0.75) · 'Dismissal only' (0.5) · 'Public sector only' (0.5)
Third-Gender Recognition — Legal	'All documents' (1.0) · 'Identity card or passport only' (0.5) · 'Individual court orders only' (0.25)
Morality/Propaganda — Legal	'All audiences' (1.0) · 'Directed at minors' (0.5) · 'One sector only' (0.25)
LGBTQ+ Civil Society Restrictions — Legal	'Total ban' (1.0) · 'Registration or funding conditions' (0.5) · 'Assembly only' (0.5)
Marriage Equality — Illegal	'Constitutional bar' (1.0) · 'Bar in ordinary law' (0.5)

Five notes apply to the value sets:

- 'Hormones only' includes blockers-only regimes for minors.
- 'Some treatments banned' covers surgery-only or blockers-only restrictions.

- 'Licensed professionals only' includes indirect bans through mental-health laws (§4.13) and bans by licensing boards.
- The Morality value set records the breadth of expression bans (general, minors-directed, or sector-limited).
- The Marriage Equality value set records whether the constitution's own text sets the bar (§3.5.2).

2.6 Evidence of Enforcement Column

Evidence_of_Enforcement (column 22) records documented state enforcement of — or documented access under — the policy in the given year, coded on a five-point scale {0.00, 0.25, 0.50, 0.75, 1.00}. The definitions are in §3.7. Evidence_of_Enforcement is the only indicator stored directly as a dataset column, because no other column determines its value: every value that departs from the policy's default is based on a citation in one of the row's Source columns.

The R script computes the five other indicators of the composite index from the coded columns:

Indicator	Scale	Computed from
Population Coverage	[0, 1]	Proportion (population-weighted subnational share)
Gender Scope	{0.00, 0.50, 1.00}	Sexes_Covered (numeric column)
Penalty Severity	[0, 1]	Max_Punishment
Ease of Access	[0, 1]	Gender_Change_Requirement, Civil_Union_Benefits or Blood_Restriction_Period (three policies)
Policy Scope	[0, 1]	Policy_Scope (every policy; 1.0 at full scope)

Because the script computes these indicators from the coded columns each time it runs, they always agree with those columns.

2.7 Source Columns

Each (Country, Law, Status) series has twelve source columns:

- Source_1 — the citation of the instrument that establishes the series: a statute, court ruling, decree or other instrument (§3.8.1).
- Source_2 through Source_12 — sources of any kind that corroborate a coded value of the series, including entries in a secondary compilation (a database or report that summarizes other sources) with a pointer to the country entry (§3.8.2, §3.8.3).

All values in every row are attributable to one of the row's Source_1 … Source_12 columns. The file has no separate list of sources for each indicator (§3.8).

2.8 Quality Columns

data_confidence

The data_confidence column rates the evidentiary basis of the coding of each series, that is, of each country's rows for one Law × Status combination across the panel (§3.7). The low criteria are tested first. A series that meets none of them is rated medium if a medium criterion applies and high otherwise.

Rating	A series takes this rating if	Example
low	Any of the following applies: (1) the text of the establishing instrument could not be obtained; (2) a document needed to settle a coded value could not be obtained, such as an amending or repealing text; (3) the series is based on documented practice, or on inference, rather than on a located instrument, including years coded before the first citable instrument on a documented absence of an offence, unequal age, bar or deferral; (4) no source corroborates the coding (Source_2 is empty, §3.8.2); (5) a coded value is based on a source named only by its outlet or issuing body and a date.	Netherlands, Blood Donations Illegal: the 1996 donor-selection guideline from which the series is dated could not be obtained.
medium	No low criterion applies, but one of the following does: (a) coverage never reaches the whole country, so the series has no Year_of_National_Adoption; (b) Source_1 cites no instrument dated within five years of Year_of_National_Adoption; (c) that year is set by a documented absence of any offence rather than by an instrument, unless Source_1 cites a penal code that omits the offence and is dated within five years of it; (d) a protective series has, in some covered year, a Policy_Scope label below the full scope of its area (§2.5), an empty remedy category not being a label; (e) coverage is based on reading a provision that names neither the ground nor the conduct, such as a sex ground read to reach gender identity, a general decency clause applied to LGBTI expression, a general donor-risk criterion or an open-ended constitutional ground.	(a) Australia, Civil Unions Legal: state schemes only. (b) United Kingdom, Same-Sex Acts Legal: Source_1 cites the Act of 1967, while national coverage dates from 1982. (c) Belgium, Same-Sex Acts Legal: never criminalised, dated to 1830. (d) Botswana, Employment Discrimination – Sexual Orientation: 'Dismissal only'. (e) Brazil, Hate Crime Protections – Sexual Orientation: the 2019 judgment reading the racism law to reach homophobia.
high	No low or medium criterion applies. The series has at least two sources. Source_1 cites the primary instrument (a statute, decree, regulation, binding guideline, blood-service criterion or judgment) dated within five years of Year_of_National_Adoption.	Albania, Same-Sex Acts Legal: Source_1 cites the Criminal Code of 27 January 1995, the year of national adoption. Source_2 cites a dated ILGA World report chapter.

Every substantive series has a rating, while placeholders have none. For a low series the confidence_note column states every low criterion that applies to it. An official consolidation, revised edition or gazette reprint that contains the provision's text counts as the text of the establishing instrument, whatever its date, so criterion (1) does not apply where one was obtained. A sanction text that could not be obtained leaves Fine_Amount empty and is stated in confidence_note, but it does not by itself lower the rating, since the index does not use Fine_Amount. A term that cannot be read for the same reason leaves Max_Punishment empty and meets low criterion (2), because the index uses Max_Punishment.

confidence_note

The confidence_note column contains a plain-language note, constant within a series, that states why a series is rated low and, if Max_Punishment or Fine_Amount is empty in years in which the provision coded may attach a penalty, why it is empty: for example, an instrument whose text could not be obtained, or the sanction text of one covered jurisdiction that could not be obtained. The column is empty if neither applies.

row_type

The row_type column takes one of two values:

- ‘substantive’ — the row’s series has ≥1 year in which Proportion > 0.
- ‘placeholder’ — the series is all-zero across 1991–2025 and is kept for panel balance only.

2.9 Empty Cells

An empty cell is the file’s only marker of a missing value; the file uses no numeric codes for missing values. What an empty cell means depends on the column.

Column	**An empty cell means**
Proportion	The column is never empty. A value of 0 means that the status is in force in no part of the country in that year.
Year_of_First_Adoption	The series is a placeholder.
Year_of_National_Adoption	Coverage never reaches 1.0, or the series is a placeholder (§3.2.3).
Year_National_Implementation	Coverage never reaches 1.0, the completing instrument states no commencement and none is documented, or the series is based on documented practice alone (§3.2.4).
Year_Law_Changed	No instrument changed a coded value or the coverage of the series after its establishing instrument (§3.2.7).
Year_of_National_Repeal	The status was not repealed nationally within the panel.
Max_Punishment	The policy records no penalty, the conduct has no penalty, the provision states only a minimum term, the offence has no statutory maximum, the consequence is an exclusion, or the sanction text of the provision coded could not be obtained, in which case confidence_note says so (§3.6.1, §3.6.2).
Fine_Amount	The question does not arise, or the sanction text of the provision coded could not be obtained, in which case confidence_note says so. ‘No’ records a provision with no fine and ‘Yes’ a fine with no stated amount (§3.6.3, §3.6.4).
Sexes_Covered	The status is not active in that year (Proportion 0). Every active row has a value (§3.9).
Policy_Scope	The policy has no scope labels, or the instrument states no scope or attaches no remedy. In the employment and goods-and-services series an empty remedy category scores 0.5 (§3.11.2).
Gender_Change_Requirement, Blood_Restriction_Period, Civil_Union_Benefits	The row belongs to another policy, or the series records no requirement, deferral or bundle for that year (§2.5, §3.11).
Sub_National_Coverage	Coverage in that year rests on a national instrument alone (§2.5).
Evidence_of_Enforcement	The status is not active in that year (Proportion 0). Every active row has a value (§3.7).
Source_2 … Source_12	The column is unused. Source_2 is empty where no corroborating source has been located (§3.8.2).
data_confidence	The series is a placeholder.
confidence_note	The series is not rated low and no Max_Punishment or Fine_Amount is empty for want of a sanction text (§2.8).

3. Coding Rules

This section states the rules under which every row of the dataset is coded. Section 4 gives, for each of the 27 policy areas, the rules specific to that policy and the cases that depart from them.

3.1 What Constitutes a Law

3.1.1 Instruments That Found a Row. A substantive row, that is, a row that is coded rather than left as an all-zero placeholder, records a binding instrument of one of these kinds:

- a statute
- a code article
- a decree or regulation with the force of law
- a final judgment of a court whose ruling binds the jurisdiction
- a written administrative instrument that governs the policy if no statute does

Bills, motions, ministerial statements, party manifestos and non-binding declarations create no row. A professional or health-authority guideline, a donor questionnaire, a religious ruling or a ministry web page may create a row if it governs the policy and no binding instrument does. Such a document dates only the years from its own date. The series, that is, the yearly rows of one country for one policy and status from 1991 to 2025, is therefore coded from the earliest dated document stating the criterion. The years before it are coded as years in which no instrument is in force.

> *Example:* Germany Gender Affirming Care - Minors Restricted is based on the guideline of the Deutsche Gesellschaft für Kinder- und Jugendpsychiatrie (DGKJP) on gender identity disorders in childhood and adolescence, dated January 1999, which governed the treatment of minors in the absence of any statute. The series takes 'Restricted by clinical guideline' for 1999–2005.

3.1.2 Reach of the Instrument. An instrument qualifies for a policy area if its own text reaches the conduct or the protected ground that the policy area codes, or if a binding interpretation reaches it. A binding interpretation is a ruling of an apex or constitutional court, of another court whose ruling binds the jurisdiction, or of an equality body deciding an individual complaint on the ground. A residual catch-all clause with no such interpretation does not qualify. An instrument names the gender identity ground if it names gender identity, gender expression, gender reassignment, sexual identity, transgender status or an equivalent. The words "sex" or "gender" alone do not name it.

> *Example:* Brazil Hate Crime Protections - Sexual Orientation Legal begins in 2019 with the Supremo Tribunal Federal's judgment in ADO 26 / MI 4733 of 13 June 2019, which reads the racism law (Lei 7.716/1989) to reach homophobia and transphobia and binds all courts. The series is rated medium because its coverage is based on that reading (§2.8).

3.1.3 Reading the Instrument. An instrument is coded for what its text does, read in full. If the establishing instrument, that is, the first instrument that produced the coded status, does not do

what the series codes, the years before the earliest instrument that does are not coded, so the series begins with that instrument. A Morality/Propaganda row requires an instrument restricting expression or representation that reaches same-sex or transgender content in its text or in its documented application. A general decency clause creates such a row only where its application to LGBTI expression is documented. A provision that punishes sexual conduct, procuring, or leading, inciting or enticing a person to same-sex acts belongs to Same-Sex Acts and creates no Morality/Propaganda row.

> *Example:* Russia Morality/Propaganda Legal begins in 2006 with the Ryazan oblast law of 3 April 2006, whose article 4 bars public actions aimed at the propaganda of homosexuality among minors. The series reaches national coverage with Federal Law No. 135-FZ of 29 June 2013.

3.1.4 Military Service. Military service policies require an instrument governing service eligibility: a defence statute, a service regulation, a medical fitness directive or a documented ministerial policy. A general anti-discrimination law creates a Legal row only if its text reaches military service or the service relationship of soldiers, or if it binds all state institutions. A fitness standard creates an Illegal row only if the diagnosis or transgender status is itself a ground for rejection. A standard that disqualifies only on poor functioning creates no Illegal row.

> *Example:* Greece Transgender Military Illegal is based on Presidential Decree 133/2002, whose psychiatric list of conditions of unfitness names gender identity disorders ('transvestism, transsexualism') as grounds for rejection.

3.1.5 Partial Scope. An instrument whose reach within the policy area is partial is coded as a protection in force, with the Policy_Scope label that describes its reach (§2.5) and a data_confidence of medium or low (§2.8). The cases include:

- instruments that bind only the public sector or the executive branch
- right-of-admission statutes that reach establishments selling goods and services
- protection contained in a broader sex-equality or gender-equality statute, such as one implementing the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), through a clause on multiple grounds rather than a clause on sexual orientation and gender identity
- binding ombudsman or equality-body mandates whose enforcement is investigatory only

Subnational coverage in a federal or decentralised state is recorded through the population share in Proportion (§2.3, §3.4) and is never coded as national protection.

> *Example:* Botswana Employment Discrimination - Sexual Orientation Illegal takes 'Dismissal only' from 2010, because section 23(d) of the Employment (Amendment) Act 2010 bars sexual orientation only as a ground for terminating a contract. The series is rated medium for that reason.

3.1.6 Texts Obtained and Not Obtained. Every coded value is based on an instrument. Where the text of the instrument was obtained, the coding follows its words and the citation

quotes them. Where it was not, the coded value stays and the series is rated low (§2.8), with a confidence_note stating that the text could not be obtained. A copy that reproduces the instrument's words may provide the quotation and is cited as such, whereas a source that only describes the instrument may not. A sentence in a citation cell, a press report or a placeholder note never opens or closes a series or changes its years.

> *Example:* Thailand Gender Affirming Care - Minors Covered is coded from 2024 on the Medical Council regulation on gender-affirming healthcare signed on 20 September 2024. Its text could not be obtained, so the series is rated low and its confidence_note names the missing text.

3.2 Adoption-Year Dating

Section 3.3 sets which instrument a year is dated to. This section sets which year of that instrument each column records and how Proportion and Evidence_of_Enforcement change with it.

3.2.1 Adoption Date. Every instrument is dated to its adoption year: the year a bill is signed or receives assent, a decree is promulgated, a final judgment is handed down, or a referendum approves the instrument. Entry into force, publication in the gazette, passage before assent and the year in a short title are not adoption dates. A regime already in force in 1991 takes its true adoption year, even if that year precedes 1991.

> *Examples:* Bhutan Same-Sex Acts Legal is dated to 2021, because the Penal Code (Amendment) Act passed on 10 December 2020 and received Royal Assent on 17 February 2021. Lesotho's Penal Code Act, 2010 is Act No. 6 of 2012 and is dated to 2012. Sri Lanka Same-Sex Acts Illegal is dated to 1883, the year of the Penal Code Ordinance No. 2, although the Code entered into force on 1 January 1885.

3.2.2 Year_of_First_Adoption. Year_of_First_Adoption records the adoption year of the first instrument that produced the coded status in any jurisdiction. Within the panel, that is, the years 1991 to 2025 that the dataset covers, this is the first year in which Proportion exceeds 0. The column takes one value across the series and is never later than Year_of_National_Adoption. Two kinds of series take a different year. A regime operative in 1991 whose earliest citable instrument is later is coded from 1991 and dated to that instrument (§3.3.2). An age-of-consent series that is not coded while same-sex acts are criminalised nationwide (§3.5.1) takes the first year in which its status is coded, both here and in Year_of_National_Adoption. Timor-Leste Age of Consent Unequal is coded from 1991 under the Indonesian Penal Code and takes 2002, the year of the Constitution that kept that code in force (§4.3).

> *Examples:* United Kingdom Incitement to Hatred Legal takes 2004 from Northern Ireland's Criminal Justice (No. 2) Order, which brought Proportion to 0.03. Angola Blood Donations Legal is coded from 1991 but takes 2014, the year of Decreto Presidencial n.º 281/14, the earliest donor framework that can be cited. Costa Rica Age of Consent Equal is first coded in 2002, after Same-Sex Acts Illegal ends, and takes 2002.

3.2.3 Year_of_National_Adoption. Year_of_National_Adoption records the adoption year of the instrument that completed nationwide coverage. Within the panel this is the first year in which Proportion equals 1.0. The column takes one value across the series and is empty if coverage never reaches 1.0. A series based on documented practice, that is, on evidence that a rule was applied before any instrument stating it can be cited, takes the adoption year of its earliest citable instrument, if one exists (§3.3.2). A series repealed and later restored takes the national adoption year of the regime in force at the end of the panel. This includes an age-of-consent series that is not coded while same-sex acts are an offence at every age (§3.5.1) and is coded again after their decriminalisation. Gabon Age of Consent Unequal, for example, is not coded in 2019 and is coded again from 2020. A restored series leaves Year_of_National_Repeal empty and lists in Year_Law_Changed the year in which its earlier spell ended (§3.10.2).

> *Examples:* United Kingdom Incitement to Hatred Legal takes 2021 from Scotland's Hate Crime and Public Order Act, which brought Proportion to 1.0. Fiji Constitutional Protections - Sexual Orientation Legal is coded from 1997 under the 1997 Constitution, inactive in 2009–2012 after its abrogation and coded again from 2013, so it takes 2013 from the new Constitution. Mexico Gender Affirming Care - Adults Covered has no national adoption year, since its coverage remains below 0.09 through 2025.

3.2.4 Year_National_Implementation. Year_National_Implementation records the in-force year of the instrument that completed nationwide coverage, taken from its documented commencement. A judgment, an equality-body opinion and a health-authority recommendation take effect when issued. An inherited code takes the date it set for the territory. The column is empty if coverage never reaches 1.0, if the completing instrument states no commencement and none is documented, or if the series is based on documented practice alone. A series coded from practice before its first citable instrument takes the in-force year of the instrument that dates Year_of_National_Adoption.

> *Examples:* Singapore Same-Sex Acts Legal takes 2023 from the Penal Code (Amendment) Act 2022, passed on 29 November 2022 and in force from 3 January 2023. Brazil Civil Unions Legal takes 2011, the year of its national adoption, from the Supremo Tribunal Federal's judgment in ADI 4277 / ADPF 132 of 5 May 2011. Cuba Gender Affirming Care - Adults Covered has no implementation year, because Resolución Ministerial No. 126 of 2008 states no commencement.

3.2.5 Proportion. Coverage changes in the adoption year: Proportion takes its new value from the year the instrument was adopted, whatever its date of entry into force. A repealed status in a pair whose statuses exclude each other is coded through the year before the reform's adoption year. In any other series a repealed status is coded through the year before the repeal takes effect. A subnational series ends when its last jurisdiction leaves. A repeal followed by a later creating instrument does not end the series: the status is restored (§3.2.3).

> *Examples:* United Kingdom Incitement to Hatred Legal takes Proportion 0.91 in 2008, up from 0.03, under England and Wales's Criminal Justice and Immigration Act 2008, which was in force from 2010. Mozambique Same-Sex Acts Illegal is coded through 2013,

although the old Penal Code applied until Lei n.º 35/2014 entered into force on 29 June 2015. Norway Civil Unions Legal is coded through 2008 because the Marriage Act amendment of 27 June 2008, which closed registered partnership, took effect on 1 January 2009.

3.2.6 Evidence_of_Enforcement Before Entry into Force. If a series is founded, or a paired status switched, by an instrument that enters into force after its adoption year, Evidence_of_Enforcement, the column that records the documented application of the instrument coded, takes 0.00 in the years from the instrument's adoption to the year before its entry into force, whether the instrument opens a protection or a restriction. An amending instrument that changes a coded value within a series does not take the zero: its new values apply from its year of entry into force and the previous values, Evidence_of_Enforcement included, stay through the lag (§3.2.7). No year takes 0.00 for any of the following:

- an instrument adopted and in force in the same year
- a judgment
- a confirming or re-enacting instrument

In a subnational series the zero applies only while every covered jurisdiction's instrument still awaits entry into force.

Examples: Mozambique Same-Sex Acts Legal takes 0.00 in 2014, between the adoption of Lei n.º 35/2014 and its entry into force, and 1.00 from 2015. England and Wales's Act of 2008 sets no year of United Kingdom Incitement to Hatred Legal to 0.00 because Northern Ireland's Order was already in force, so the series keeps its value of 0.75 in 2008 and 2009.

3.2.7 Year_Law_Changed. Year_Law_Changed lists the signing years of the instruments, after the establishing instrument, that change a coded value (the stated maximum fine included) or the coverage of the series, in any year, before 1991 included. An amending instrument that enters into force after its signing year is listed with its signing year, while the value it changes takes effect in the dataset from the year of entry into force (§3.2.6). In an age-of-consent series the column also lists the signing year of a change of the age threshold, because the threshold is the substance of that policy. The column never lists the years recorded in Year_of_First_Adoption and Year_of_National_Adoption. A repeal is listed with its signing year, never with the year in which coverage ends. The column does not list an instrument that changes no coded value and no coverage, whether the instrument:

- confirms, re-codifies or restates the provision
- extends it to a new medium
- strikes one part of it
- rewords the ground
- widens or narrows the offence's elements

Nor does it list a later code whose text is the first one read for the series, if no value it states is known to differ from the earlier one, as in Guinea (1998) and Uzbekistan (1994). Nor does the

column list an instrument that changes the rule of one jurisdiction if no value of the series changes because the jurisdiction with the largest share of the population keeps its value.

> *Examples:* Germany Gender Affirming Care - Minors Covered lists 2013, when the revised guideline changed the coded scope to 'Hormones only', and 2024, when the S2k guideline changed it to 'Full public provision'. United Kingdom Blood Donations Illegal lists 2011, 2017 and 2021 but not 2016, when Northern Ireland adopted the 12-month deferral that Great Britain had applied since 2011. Algeria Marriage Equality Illegal lists no year for Ordonnance n° 05-02 of 2005, which rewrote article 4 of the Family Code and kept marriage a contract between a man and a woman.

3.2.8 Year_of_National_Repeal. Year_of_National_Repeal records the repealing instrument's signing year. If the repeal takes effect only on a later instrument that could not be located, the repeal is dated to the repealing law's adoption year and confidence_note states the condition.

> *Example:* Greece's Law 5195/2025 of 9 May 2025 repeals the exclusion from service on condition of a ministerial decision setting new tables of diseases, which could not be located. Greece Transgender Military Illegal is therefore coded through 2024 with Year_of_National_Repeal 2025.

3.3 Dating the Establishing Instrument

3.3.1 The Establishing Instrument. The establishing instrument is the first substantive statute or judgment that produced the coded status. A later revision, consolidation, re-codification, renumbering, transposition or amendment that leaves the substantive coding unchanged does not replace it. Such a later text is an extending instrument, that is, one that continues the coded status without changing it. The adoption year changes only if a new instrument changes the coded status, for example by criminalising an act previously legal or by decriminalising one previously illegal. If an earlier instrument established the same coding as a later one, the earlier instrument is the establishing instrument. The coverage series begins with that earlier instrument if the instrument had nationwide effect. Source_1 cites the establishing instrument and names the current codification. If the establishing instrument itself cannot be identified and cited, Source_1 quotes the earliest text that can be quoted and names the instrument it continues. An earlier code identified by its number or date counts as citable even if its text could not be obtained, so it dates the series (§4.1); §3.3.2 applies only where no instrument can be identified.

> *Examples:* Italy Age of Consent Equal is dated to 1889, the Codice penale Zanardelli, which the Codice Rocco of 1930 continued. Bangladesh Same-Sex Acts Illegal is dated to 1860, section 377 of the Indian Penal Code, operative in Bangladesh since independence in 1971. Armenia Same-Sex Acts Illegal (1991–2002) is dated to 1934, the year the offence was created in the Soviet republics. Because the Armenian law of 1934 could not be identified, Source_1 quotes article 116 of the Criminal Code of 1961, which continued the offence.

3.3.2 Regimes in Force Before Their Earliest Citable Instrument. If a regime was operative at the start of the panel but the earliest citable instrument is later, Proportion is coded from 1991 on the documented practice, while both adoption fields (Year_of_First_Adoption and

Year_of_National_Adoption) take the adoption year of the earliest citable instrument. The recurring cases are:

- a blood-donation deferral applied before its first written service framework
- a military exclusion practised before its first directive
- a sharia-based or other regime with no identified instrument, restated in a later code
- a publicly funded care pathway operating before its first formal guideline

No estimated date is recorded for an instrument that cannot be cited. Such a series is rated low (§2.8, criterion 3), as is a series coded before its first citable instrument on a documented absence of an offence, an unequal age, a bar or a deferral. A practice that begins within the panel takes its own year in Year_of_First_Adoption, because first adoption cannot follow the first covered year, unless the policy entry dates the series to an earlier instrument (Switzerland Gender Affirming Care - Minors, §4.24). Year_of_National_Adoption takes the adoption year of the earliest citable instrument, or the practice year if no instrument can be cited. An instrument that amends a coded value never dates adoption, so a practice-only series whose first instrument is an amendment takes the documented practice year. Blood-donation series are an exception (§3.1.1): where no document earlier than the first dated document stating the criterion could be located, the years before that document are not coded, so the Illegal series begins with it.

> *Examples:* Angola Blood Donations Legal is coded from 1991 and dated to 2014, the year of Decreto Presidencial n.º 281/14, the earliest donor framework that can be cited. Maldives Same-Sex Acts Illegal is coded from 1991 on the documented practice of uncodified Islamic Shari'ah and dated to 2014, the year of the Penal Code that first states the offence. Netherlands Gender Affirming Care - Minors Covered is coded from 1998 on documented practice and takes Year_of_First_Adoption 1998 and Year_of_National_Adoption 2005, the year of its earliest citable instrument.

3.3.3 Countries That Never Criminalised Same-Sex Acts. The 35 countries that never criminalised consensual same-sex acts between adults are dated to their entry into the Correlates of War state system, the standard list of states and their dates of entry used in international relations research (Table 3.1). Their Same-Sex Acts Legal series takes the entry year in both adoption fields, or 1991 if the entry is later, even if a later statute restates the absence of an offence. Its implementation year is empty. Proportion is 1.0 except in Argentina and Indonesia, where provincial or regional offences cover part of the population. Sexes_Covered is 1.00, Max_Punishment is empty and Evidence_of_Enforcement takes the default of 1.00 for a policy that records the absence of a prohibition (§3.7.1). It takes 0.50 if documented evidence departs from that default.

> *Examples:* Belgium Same-Sex Acts Legal is dated to 1830. Timor-Leste, which entered the state system in 2002, takes 1991. Haiti takes 0.50 from 2010, when the Port-au-Prince prosecutor's office raided an awareness event and arrested all those present. Indonesia takes 0.50 from 2017 and Rwanda from 2020.

Table 3.1. The 35 Countries That Never Criminalised Consensual Same-Sex Acts Between Adults, with Their Correlates of War Entry Year

Country	Year	Country	Year	Country	Year
Andorra	1993	Dominican Republic	1894	Niger	1960
Argentina	1841	El Salvador	1875	North Korea	1948
Belgium	1830	Equatorial Guinea	1968	Philippines	1946
Benin	1960	Guatemala	1868	Rwanda	1962
Bolivia	1848	Haiti	1859	South Korea	1949
Brazil	1826	Indonesia	1949	Taiwan	1949
Cambodia	1953	Jordan	1946	Timor-Leste	2002
Central African Republic	1960	Laos	1953	Uruguay	1882
Congo	1960	Luxembourg	1920	Vanuatu	1981
Cote d'Ivoire	1960	Madagascar	1960	Venezuela	1841
Democratic Republic of Congo	1960	Micronesia	1991	Vietnam	1954
Djibouti	1977	Monaco	1993		

3.3.4 Argentina. Argentina has no national offence, but provincial and municipal police edicts (edictos policiales and códigos de faltas) punished "public scandal", "immoral conduct" and same-sex intimacy in most provinces into the twenty-first century and were enforced against LGBTI people. Its Same-Sex Acts Legal series is therefore built province by province from the repeal of those edicts. Proportion rises from 0.283 in 1991, the provinces whose codes had no such clause, to 0.992 in 2018. Corrientes joins in 2001, when Decreto-Ley 124/2001 replaced its Police Code of 1901 with a code that names no same-sex conduct. The provision still coded in La Rioja keeps the series below 1.0, so Year_of_National_Adoption is empty. Year_of_First_Adoption is 1951, the year of the first provincial code without the clause (Jujuy). Argentina is the only one of the 35 countries whose adoption fields do not take its entry year.

3.3.5 Age of Consent in the 35 Countries. Eleven of the 35 countries have an Age of Consent Unequal series in part or all of the panel: Benin, Congo, Cote d'Ivoire, Indonesia, Luxembourg, Madagascar, Niger, North Korea, Rwanda, Timor-Leste and Vanuatu. In these and the other countries of Table 3.1, an Age of Consent Equal series takes the adoption year of the earliest statute located that fixed the equal age. If no such statute could be located and the series is based on the documented absence of an unequal threshold, that is, on sources showing that no law set a different age of consent for same-sex acts, both adoption fields take the entry year (1991 if the entry is later) and the implementation year is empty. A regime that was unequal and later equalised takes its own instruments. Source_1 cites the statute that fixed the equal age or, if none could be located, states that documented absence. The dating of marriage bars is set out in §3.5.2.

3.4 Coverage and the Proportion Series

3.4.1 What Proportion Measures. Proportion measures the legal reach of the instrument coded. It is 1.0 if the instrument binds the whole country, and the census share of the covered jurisdictions if it binds a subnational jurisdiction or a group of them, whether or not the policy's entry lists the country among its subnational cases. It does not measure the share of the population that receives the benefit in practice, the sector an instrument binds, or the ease of

access. The index measures those through its Evidence of Enforcement, Policy Scope and Ease of Access indicators. A row whose legal route, that is, the procedure it records, is open in any competent court of the country is national.

> *Example:* Japan Civil Unions Legal takes 0.92 in 2025, the census share of the population living in a municipality or prefecture with a partnership system. The number of couples registered under those systems does not count toward Proportion.

3.4.2 Census Shares. Subnational shares use one cited census table per country with constant denominators, so that a series changes only when coverage changes. The shares are computed over the jurisdictions the panel covers so that they sum to one. The tables in use include the Australian state and territory shares, the Mexican entity shares from the INEGI Censo 2000, the Swiss cantonal shares from the 2000 federal census and the United States state shares from the 2000 census. Japan's table also lists the municipalities with partnership systems inside their prefectures. A municipality counts only while its prefecture is uncovered, so that no resident is counted twice. Sub_National_Coverage names the covered jurisdictions.

> *Example:* Switzerland Civil Unions Legal takes 0.057 in 2001, Geneva's share of the population in the 2000 federal census, and 0.228 in 2002, when Zürich joined.

3.4.3 Joining and Leaving the Covered Set. A jurisdiction joins the covered set, that is, the jurisdictions whose instruments count toward Proportion, in the adoption year of its instrument, as a national instrument does (§3.2.5). A series counts only the jurisdictions whose instruments are cited for it. Coverage ends only on a binding repealing instrument or a final judgment. A final judgment is a court's judgment on the merits that strikes down the provision or permanently enjoins its application, including a judgment of a court of first instance while an appeal is pending; a reversal on appeal restores coverage from its year. A preliminary injunction, a stay or a suspension does not end coverage. It is erosion in practice, which Evidence_of_Enforcement records. A suspension that has ended by the end of the year does not lower that year. A political or administrative event short of a binding repeal, such as a directive, a curriculum change or the dissolution of an enforcement body, does not end coverage (§3.10.3).

> *Example:* Pakistan Gender Marker Change Legal continues after the Federal Shariat Court's judgment of 19 May 2023 against the Transgender Persons (Protection of Rights) Act 2018, because the judgment has not taken effect while appeals are pending before the Supreme Court. The series takes Evidence_of_Enforcement 0.50 from 2022 for the registration authority's departure from the Act.

3.4.4 Provisions Binding Some Communities. A provision that binds only some religious or customary communities counts only for the population it binds. Because the census tables give no shares for communities, such a provision creates no row until a provision, alone or together with others, binds the whole population.

3.4.5 Sub_National_Variation. Sub_National_Variation is a property of the series rather than of the year. It is 1 in every year of a series whose coverage comes from subnational instruments

at any point, or for which Sub_National_Coverage names a separate subnational regime, and 0 in every year of every other series.

> *Example:* Australia Age of Consent Equal takes 1 in every year, including 2016–2025, after Queensland completed national coverage.

3.4.6 Civil Unions After Marriage Equality. A civil union or partnership statute remains in force after marriage equality until it is repealed or closed to new registrations. Marriage equality therefore ends a Civil Unions Legal series only where the reform repeals every partnership regime in force or closes it to new registrations (§3.2.5).

> *Examples:* Spain's Ley 13/2005 did not repeal the partnership laws of the autonomous communities, so Spain Civil Unions Legal continues and reaches 0.887 (fourteen communities) from 2018. Switzerland's federal Partnership Act closed to new registrations when the marriage reform took effect on 1 July 2022, but the cantonal laws of Geneva and Neuchâtel remain open to new declarations, so Switzerland Civil Unions Legal continues at 0.080 from 2022. Argentina's Ley 26.618 of 2010 did not repeal the partnership laws of the City of Buenos Aires and Río Negro, so Argentina Civil Unions Legal remains at 0.092. Mexico Civil Unions Legal remains at 0.121 from 2016 through 2025, as does United States Civil Unions Legal at 0.305 from 2014.

3.5 Status Pairing

3.5.1 Paired Statuses. Only the following policies have paired statuses, that is, two opposing statuses that are both coded with data: Same-Sex Acts, Marriage Equality, Joint Adoption, Age of Consent, Blood Donations, Gender Affirming Care (Adults and Minors), LGB Military and Transgender Military. In every pair except Gender Affirming Care the statuses exclude each other. The old status is coded through the year before the reform's adoption year and the opposing status is active from that year (§3.2.5), so the two are never active in the same year at national scope. If one instrument ends the first and opens the second, no year falls between them. Both statuses are active in the same year only if coverage is subnational and the two describe different parts of the territory, or in United States Joint Adoption from 2016 (§4.8). The Illegal and Legal shares of Same-Sex Acts sum to 1.0, except in South Sudan before 2008 and Yemen before 1994, where neither status is active. Age of Consent has no active status in a year in which criminalisation is national, since no legal age of consent exists for conduct that is itself an offence. San Marino is the one exception to this rule: its Age of Consent Equal series is active in 1991–2003, while Same-Sex Acts Illegal covers the country. Both statuses of a pair may be inactive if no instrument addressing the policy is documented.

> *Examples:* Chad Same-Sex Acts Legal is coded through 2016 and Same-Sex Acts Illegal from 2017, the year of the Code pénal of 8 May 2017. Costa Rica Age of Consent Equal has no active status in 1991–2001, while Same-Sex Acts Illegal covers the country, and is first coded in 2002.

3.5.2 Marriage Bars. A Marriage Equality Illegal row is based on an instrument that defines marriage as between a man and a woman or prohibits same-sex marriage, whether a constitution,

a family code, an ordinary marriage statute or an inherited codified civil code. Two further kinds of clause also create the row. The first is a capacity, right-to-marry or consent clause that names the sexes, such as marriage contracted by a man and a woman or the right to marry a person of the opposite sex. The second is a ceremony formula by which the parties take each other as husband and wife. Implicit wording does not create the row:

- clauses naming husband and wife only in the spouses' rights, duties or surname
- a betrothal clause
- separate marriage ages
- a monogamy clause
- a ceremony addressed to the bride and bridegroom without such a formula
- a common-law definition

Nor does a court judgment create the row if the statute's own wording is implicit. A marriage law that binds one religious community only, where the laws governing the other communities define no parties, creates no row (Sudan, Kuwait, Qatar, Lebanon, Syria, Bangladesh, Brunei, Malaysia). Years based only on implicit wording or on documented practice are not coded, unless an inherited code in force at the start of the panel defines marriage or contains such a formula. The series is dated to the earliest citable qualifying instrument and is coded from 1991 if that instrument was in force at the start of the panel. Policy_Scope records whether the constitution's own text sets the bar. It takes 'Constitutional bar' in the years in which a clause of the constitution in force would itself found the row under this rule, and 'Bar in ordinary law' otherwise. A clause that names the sexes only in the spouses' equal rights, a clause that permits or protects a statutory restriction without stating one, and a treaty with constitutional rank do not count. A label set by a new constitution or an amendment applies from its year of entry into force (§3.2.6), while a constitution that itself establishes the series gives the label from its first year. A union or federal constitution counts for the member countries it bound, so the Soviet republics take the label in 1991 from art. 53 of the USSR Constitution of 1977.

> *Examples:* Algeria Marriage Equality Illegal is based on article 4 of the Family Code, under which marriage is a contract between a man and a woman. Japan's is based on article 24 of the Constitution of 1946, under which marriage is based only on the mutual consent of both sexes. Italy's is based on article 107 of the Codice civile of 1942, under which the parties declare that they take each other as husband and wife. Iceland Marriage Equality Illegal begins in 1993 with the Marriage Act No. 31/1993, which applies to the marriage of a man and a woman. Its predecessor of 1972 named a man and a woman only in its age clause, so the years before 1993 are not coded.

3.5.3 Blood Donation, Joint Adoption and Religious Exemptions. A Blood Donations Legal row is based either on an instrument that removed a deferral keyed to sex between men or on a national blood-service framework that contains no such criterion. A regime that defers individual high-risk sexual behaviour, or counts sexual partners whatever their sex, takes 'Individual risk assessment'. 'No restriction' describes a framework that sets no sexual-behaviour criterion at all. A Joint Adoption Illegal row is based on an instrument that bars same-sex

couples in express terms. A bar that follows only from the definition of marriage creates no row. A Religious Exemption Laws row is based on an exemption that reaches an LGBTI ground, including a refusal right held by clergy or celebrants alone. An exemption limited to the grounds of sex or belief does not qualify.

> *Examples:* United Kingdom Blood Donations Legal takes 'Individual risk assessment' from 2021, when the deferral for men who have sex with men was replaced by questions on each donor's recent sexual behaviour. Greece Blood Donations Legal takes 'No restriction' for 2022–2024. Honduras Joint Adoption Illegal is based on article 116 of the Constitution as reformed in 2004 and ratified in 2005, which prohibits giving children in adoption to marriages or de facto unions of persons of the same sex.

3.5.4 Direction of the Statuses. The direction of a status label, progressive or regressive, differs across policies. In the restriction policies (Death Penalty, Morality/Propaganda, LGBTQ+ Civil Society Restrictions and Religious Exemption Laws), 'Legal' means that the restriction is in effect, which is regressive. In the anti-discrimination policies and the two bans on medical interventions (Employment Discrimination, Goods/Services Discrimination, Conversion Therapies and Gender Assignment Surgeries on Children), 'Illegal' means that the protection exists, which is progressive. In Hate Crime Protections and Incitement to Hatred, 'Legal' means that the protection is in force. Table 3.2 gives the direction of every status.

Table 3.2. Direction of the Statuses

Law	Statuses with data	Direction
Same-Sex Acts	Legal / Illegal	Legal progressive, Illegal regressive
Age of Consent	Equal / Unequal	Equal progressive, Unequal regressive
Marriage Equality	Legal / Illegal	Legal progressive, Illegal regressive
Civil Unions	Legal	Progressive
Joint Adoption	Legal / Illegal	Legal progressive, Illegal regressive (outside the composite, §5.1)
Employment Discrimination – Sexual Orientation and Gender Identity	Illegal	Progressive (the ban exists)
Goods/Services Discrimination – Sexual Orientation and Gender Identity	Illegal	Progressive (the ban exists)
Conversion Therapies	Illegal	Progressive (the ban exists)
Hate Crime Protections – Sexual Orientation and Gender Identity	Legal	Progressive
Incitement to Hatred	Legal	Progressive
LGB Military / Transgender Military	Legal / Illegal	Legal progressive, Illegal regressive
Gender Marker Change	Legal	Progressive
Third-Gender Recognition	Legal	Progressive
Gender Affirming Care – Adults / Minors	Covered / Restricted	Covered progressive, Restricted regressive
Blood Donations	Legal / Illegal	Legal progressive, Illegal regressive
Death Penalty	Legal	Regressive
Morality/Propaganda, LGBTQ+ Civil Society Restrictions, Religious Exemption Laws	Legal	Regressive
Constitutional Protections – Sexual Orientation and Gender Identity	Legal	Progressive
Gender Assignment Surgeries on Children	Illegal	Progressive (the ban exists)

3.6 Maximum Punishment and Fines

3.6.1 Whose Penalty Max_Punishment Records. Max_Punishment records the statutory maximum borne by the LGBTI person under the part of the provision that reaches the conduct the policy records. The field does not record:

- the harshest penalty among the instruments cited for the series
- the penalty for an aggravated or non-consensual part of the same article
- the penalty for a procuring, brothel or public-indecency offence the row does not code
- a penalty borne by a clinician, an organiser or another third party

The two bans that protect LGBTI people from medical interventions, on conversion practices and on surgeries on intersex children, are the exception to this rule: for them the field records the penalty for breaching the ban. If the law sets one penalty for any person who breaches the ban and a higher one for professionals, the field records the general penalty. An exclusion, such as a bar on donating blood or on military service, is not a penalty borne by the person, so it leaves the field empty. For military rows the field records the penalty of the military-specific provision, not that of a civil offence incorporated into service law by a general incorporation clause.

> *Examples:* Ghana Same-Sex Acts Illegal takes '3 years', the maximum for consensual acts under section 104(1)(b) of the Criminal Code 1960, and not the five to twenty-five years for acts without consent under section 104(1)(a). Malta Conversion Therapies Illegal takes 'Less than 6 months', the penalty in article 4(1) of the Act of 2016 for any person who breaches the ban, and not the year of imprisonment that article 4(2) sets for professionals. Greece Blood Donations Illegal leaves the field empty.

3.6.2 Reading the Term. Max_Punishment records the maximum term as the instrument states it, in one of the following forms:

- 'Death'
- 'Life'
- a whole number of years
- a number of months
- 'Less than 6 months'
- 'Fine or other non-prison penalty', which records a stated fine, security measure, professional sanction or other penalty without prison
- empty

A stated range yields its top. If the offence provision states no term, the term is taken from the code's general punishment provision, which is cited separately. Of two statutes that govern the same conduct, the term is taken from the one that states a term for it and has precedence. A figure that a secondary source gives for the maximum corroborates the provision and is never the basis of the value. Death is recorded only if a court applies the death penalty to consensual same-sex acts as operative national law, whether codified or uncodified. Elsewhere the statutory maximum is recorded, even if a citation mentions a penalty available under Sharia. The field is

empty if the conduct the policy records has no penalty, if a provision states only a minimum term, or if an offence has no statutory maximum, such as a common-law offence whose penalty is in the court's discretion or an uncodified regime that states no term. A maximum codified later is not projected back onto the years before it. The index fills an empty penalty with the mean of the series' own active years, or with 0.5 if the series has no penalty in any year (§5.3).

> *Examples:* Sierra Leone Same-Sex Acts Illegal takes 'Life', because section 61 of the Offences Against the Person Act 1861 provides penal servitude for life or for any term not less than ten years. Ghana's section 104(1)(b) makes consensual acts a misdemeanour without stating a term, so the three years are taken from section 296(4) of the Criminal and Other Offences (Procedure) Act 1960. Maldives Same-Sex Acts Illegal takes '7 years' from 2014 under section 24 of the Sexual Offences Act, which the Penal Code's section 18(d)(7) places above the Code's own lighter grading. The eight years that secondary sources give for the Maldives were the top of a grading scale removed from the Penal Code before it entered into force, so the field does not record them. Zimbabwe leaves the field empty for 1991–2005 and takes '1 year' from 2006, when the Criminal Law (Codification and Reform) Act came into force. Until then the offence was a common-law crime.

3.6.3 Fine_Amount. Fine_Amount is read from the same provision as Max_Punishment, so a general punishment provision that sets the term also sets the fine, whereas a code-wide power to add a fine to any offence is not the provision coded. The value is the maximum fine stated for the conduct the policy records and for an ordinary private individual. It is written as a number with the statute's currency, named with its country where the currency's name alone does not identify it, and without conversion, or in the statute's own unit, such as a penalty category, if it states one. The field takes 'Yes' if the provision imposes a fine without stating an amount, or states only a minimum, and 'No' if the provision coded imposes none. The following are not the fine for the conduct the policy records:

- a fine for a related act
- a good-conduct bond
- the higher fine of an aggravated form of the offence or of a form aimed at a group

The following do count:

- an Act's own fine for any breach of the Act
- a fine reaching only part of the field of activity the policy covers
- the fine of a petty degree of the offence
- the fine on a sole trader if the law names no other individual
- the fine on the person whose conduct a restriction on gender-affirming care forbids
- that statute's fine, if a series is based on a tribunal's reading of a statute

> *Examples:* Morocco Same-Sex Acts Illegal takes '1,000 Moroccan dirhams', the top of the range of 200 to 1,000 dirhams in article 489 of the Code pénal. Grenada Same-Sex Acts Illegal takes 'No', because section 431 of the Criminal Code provides imprisonment alone. The power in section 76(1) of the same Code to add a fine to any indictable offence is not

the offence provision. Suriname Employment Discrimination - Sexual Orientation Illegal takes 'Fourth-category fine', the statute's own unit.

3.6.4 Several Instruments and Changes Over Time. If two instruments in force each fine the conduct the policy records, the field takes the higher fine if the units can be compared and the fine of the more recent instrument if they cannot. A subnational series takes the highest fine in force across the covered jurisdictions or, if the units cannot be compared, the fine of the most populous covered jurisdiction that states one. A changed maximum takes effect from the amending instrument's year of entry into force, and the earlier maximum stays through the years before it (§3.2.7). A law that substitutes one currency for another is such an amendment. A later consolidation applies to earlier years only if it reproduces the provision as it then stood without marking an amendment. If the amending instrument could not be located, the field keeps the value stated in the text that was located. A located consolidation that names its amending act dates the new amount to that act's year of entry into force. The field is empty if the sanction text of the provision coded could not be obtained, including a subnational year in which one covered jurisdiction's text is missing. The confidence_note column records each such gap. The field is also empty where the question does not arise: a recognition procedure, a sentencing aggravator with no penalty of its own, a constitutional clause and uncodified law with no penalty text.

Example: Russia Morality/Propaganda Legal takes '5,000 Russian rubles' for 2013–2021 under Federal Law No. 135-FZ and '100,000 Russian rubles' from 2022 under Federal Law No. 479-FZ of 5 December 2022. The field is empty for 2006–2012 because the penalty provisions of at least one covered region could not be obtained.

3.7 Evidence of Enforcement and Confidence

3.7.1 Defaults. Evidence_of_Enforcement records the documented application of the instrument coded in each year, on a scale from 0 to 1. Event-based policies, that is, policies whose instrument takes effect through individual acts of enforcement or use, such as prosecutions, complaints or registrations, default to 0.75, which records an instrument presumed operative whose use is undocumented. The event-based policies are anti-discrimination and constitutional protections, hate-crime and incitement provisions, recognition and adoption rights, coverage of gender-affirming care, criminal prohibitions, and restrictions on expression and on civil society. Two other groups default to 1.00:

- the two policies that record the absence of a prohibition (Same-Sex Acts Legal and Age of Consent Equal)
- rules that apply without an enforcement act (marriage bars, joint-adoption bars, blood-donation rules, restrictions on gender-affirming care, military policies, religious exemptions, and bans on conversion practices and on surgeries on intersex children)

Where no source documents the instrument's application, an active row takes the policy default. A default value needs no citation beyond the instrument the series codes.

Examples: Ghana Same-Sex Acts Illegal takes 0.75 for 1991–2009. Belgium Same-Sex Acts Legal takes 1.00 in every year.

3.7.2 What Counts as Evidence. A value other than the default is based on a cited source that documents an application of the instrument the series codes, in a covered jurisdiction, on the coded ground, that took place in or before the first year of the value, whatever the date of the source. Sources of the following kinds qualify, together with any other source that documents a dated application, such as a peer-reviewed or archival study, an internet-filtering test or a report of a non-governmental organisation:

- a United States Department of State country report
- a Human Rights Watch or Amnesty International report
- a court judgment
- an equality-body decision
- an ILGA World report chapter
- a dated news report of a specific case

A country profile or database entry in a secondary compilation, that is, a database or report that summarises other sources, does not qualify on its own. An application of another provision, of the same instrument on another ground, in a jurisdiction outside the covered set, or before the instrument coded existed does not count, whereas a conviction under a provision that the series itself cites does. Complaint or registration counts that are not broken down by field of activity, by ground or by sex document no use on the coded ground. Evidence that an instrument was not applied is held to the same test as evidence of use. One of the series' Source columns cites each departure from the default.

> *Examples:* Morocco Same-Sex Acts Illegal takes 1.00 from 2007, when the United States Department of State reported that six men were tried and convicted on 10 December 2007 under the law against homosexual acts. Burundi Same-Sex Acts Illegal takes the default of 0.75 for 2009–2022, because the arrests of October 2017 described in a country profile appear in no dated report.

3.7.3 The Scale. For a protection, zero recorded uses keep the 0.75 presumption. A documented failure to implement the instrument, or documented partial application or structural friction, that is, practical obstacles short of refusal, takes 0.50. Documented refusal or obstruction takes 0.25. Documented blocked access takes 0.00. For a restriction, 1.00 records documented enforcement in the period (arrests, prosecutions, convictions or executed sanctions), 0.50 an authoritative characterisation that the law is rarely enforced, and 0.25 official threats or rhetoric without enforcement action. A restriction takes 0.00 if it is documented as never applied, by an official non-prosecution practice, an admission that no one has been prosecuted, a dated statement that the law was not applied in a year or has not been applied since a stated date, or a finding of non-enforcement in country human-rights reporting, such as a statement that the government did not actively enforce the law, for the years such a source names. A report that no arrests or prosecutions were reported records only an absence of evidence, so the year keeps the default. On the Death Penalty policy the absence of any recorded capital case for the conduct is affirmative evidence of non-application and takes 0.00. A death sentence imposed under the coded law counts as 1.00 even if no execution follows, wherever it

falls inside the covered territory. Capital charges without a sentence, or application outside the instrument's normal reach, take 0.50. Tables 3.3 and 3.4 set out the scale.

Examples: Suriname Employment Discrimination - Sexual Orientation Illegal takes 0.50 in 2015, the year the Department of State reported that the law of March 2015 had not been implemented. Ghana Same-Sex Acts Illegal takes 0.25 for 2010–2016, because the Western Region minister's call for police raids in June 2010 led to no reported arrest. Trinidad and Tobago Same-Sex Acts Illegal takes 0.00 in every year, on the statement of counsel for the Attorney General to the High Court in 2018 that the law had never been enforced against consenting males, and on the Court of Appeal's statement in 2025 that no consenting couple had ever been charged. Saudi Arabia Death Penalty Legal takes 0.00 for 1991–1999 and 1.00 from 2000, the year of the executions for homosexual acts reported by Reuters on 11 July 2000.

Table 3.3. Evidence_of_Enforcement for Regressive Policies

Value	Definition
1.00	Enforcement documented in the period: arrests, prosecutions, convictions, executions or executed sanctions
0.75	Presumed enforced: the law is in force and no source documents its use in the period (the default for event-based restrictions)
0.50	Documented as rarely enforced: authoritative characterisations of rarity, or exceptional cases across long periods
0.25	Documented official threats or rhetoric without enforcement action
0.00	A law documented as never applied, or the years between adoption and entry into force (§3.2.6). On the Death Penalty policy, the absence of any recorded capital case for the conduct

Table 3.4. Evidence_of_Enforcement for Progressive Policies

Value	Definition
1.00	Use documented in the period: any citable instance or statistic of the right being exercised, from the documented year forward
0.75	Presumed accessible: in force, use undocumented (the default for event-based protections)
0.50	Documented partial application or structural friction
0.25	Documented refusal to apply, or systematic obstruction
0.00	Documented blocked or revoked access, or the years between adoption and entry into force (§3.2.6)

3.7.4 Which Years a Source Documents. A documented value applies from the documented year forward and is never backdated. Actions, rarity characterisations and threats apply until a later source changes the value, whereas a finding about one year, such as a report that the government did not enforce the law that year or an official refusal that year, documents that year only. A source stating a period documents that period. A standing non-prosecution policy documents the years its source names. An undated statement documents no year. A government admission that no one has been prosecuted, stated without a period, covers every year up to its date. Use or enforcement documented before 1991 applies from 1991 forward until a later source changes the value. A non-enforcement finding is such a later source: after its year, undocumented years take the default until a new action, rarity statement or threat. If a year has

both a documented enforcement action and a dated statement of rarity, the action governs that year; if it has both a non-enforcement finding and documented official threats, the finding governs. The years between an instrument's adoption and its entry into force take 0.00 as set out in §3.2.6.

> *Examples:* Suriname's 0.50 documents 2015 only, so the series takes 0.75 again in 2016. Sierra Leone Same-Sex Acts Illegal takes 0.00 in 2014, 2017 and 2023 alone, the years for which the Department of State reported that the 1861 law was not enforced, and 0.75 in the years between.

3.7.5 Confidence. data_confidence records the evidentiary basis of the coding of the series. Section 2.8 states the test for each rating in one table, with an example of each. A series rated low stays in the dataset. The confidence_note column states every low criterion that applies to it.

The index indicators built from these columns (Population Coverage, Gender Scope, Penalty Severity, Ease of Access and Policy Scope) are defined in §5.2.

3.8 Sources

3.8.1 Source_1 and the Change-Points. Each row has up to twelve source columns, Source_1 to Source_12. Every value in a row is attributable to one of them. The dataset has no separate list of sources for each index indicator. Source_1 cites the establishing instrument with issuer, title, number, date and article and is never an entry in a secondary compilation; a year suffices as the date of an instrument identified by its number or chapter, such as Act XLV of 1860. Every other cell names its source in the same way, by body or author, title, date and pointer, an enforcement cell included. A pointer is a web address, or a page, paragraph, article or case number that leads to the passage. A cell also states in plain terms the basis of the coding if the instrument's text does not make it obvious. Together the Source columns cite every change-point of the series, that is, each year in which coverage, a descriptor (a field that records a term of the instrument, such as the maximum penalty or the scope of protection) or the enforcement value changes.

> *Example:* Albania Same-Sex Acts Legal cites in Source_1 the Criminal Code adopted by Law No. 7895 of 27 January 1995, in force on 1 June 1995, which omitted the 'pederasty' article of the Code of 1977.

3.8.2 Source_2 and the Later Columns. From Source_2 onward a cell cites any source that corroborates a coded value of the series: a different official text, a report of a government, an intergovernmental body or a non-governmental organisation, a judgment, an equality-body or ombudsman document, a peer-reviewed work, a dated press report of a specific case, or a country entry in a secondary compilation with a pointer to that entry, that is, a page, chapter or web address that leads to it. Each cell states which value or years it supports. A copy, translation or database record of the Source_1 instrument corroborates nothing and does not appear, nor does an official consolidation that prints its provision, which counts as the instrument's own text (§2.8), or a copy or database record of another instrument the series already cites in its official text. Source_2 is empty where no corroborating source has been located.

Example: Albania's Source_2 cites the Albania entry of ILGA World's State-Sponsored Homophobia report of December 2020 (p. 104).

3.8.3 Secondary Compilations and Bare Names. A secondary compilation, such as one by ILGA World, the Human Dignity Trust, Transgender Europe (TGEU) or the Organization for Security and Co-operation in Europe (OSCE), never occupies Source_1 and appears elsewhere only with a pointer to a country or policy page or a report chapter. Where the instrument itself has been located, its citation replaces the compilation. A name with a homepage and no pointer, such as 'ILGA, https://ilga.org', 'Equaldex' or 'Human Dignity Trust, https://www.humandignitytrust.org', appears in no source column. A dated report chapter, such as a chapter of ILGA World's State-Sponsored Homophobia or a Human Dignity Trust report on a named Act, is not a page of a secondary compilation. A series that is never covered has no year fields or descriptor values. Its citation cells may cite the instruments that show why it is not covered.

3.8.4 What a Citation Cell States. Each citation cell states what the source is (author or body, title, date and pointer) and what it establishes for the coding. A cell reads as a citation and a statement about the law, never as a note on what was searched or decided. A cell states no share, count or date that differs from the coded value or from what the cited document shows. No provision, judgment, bill or document is cited for something it does not do. No citation appears that could not be confirmed against the publication itself. Names of private persons are replaced by a neutral description. Public officials acting in office and the authors of cited works are named. Court case citations keep their names.

Instrument texts come from national legislative and judicial databases in more than ten languages, for example Légifrance, the Bundesgesetzblatt, the Boletín Oficial del Estado, the Supremo Tribunal Federal and legislation.gov.uk. Enforcement and corroboration draw on reports by Amnesty International, Human Rights Watch and the United States Department of State, on ILGA World's State-Sponsored Homophobia and Trans Legal Mapping reports, and on dated news reports of specific cases. Secondary compilations (Human Dignity Trust country profiles, Transgender Europe and the Hague Centre for Strategic Studies LGBT+ Military Index) never appear in Source_1 and appear elsewhere only with a pointer to the country entry (§3.8.3). Census population tables come from national census bureaus, one per country, from the 2000/2001 round except Bosnia and Herzegovina (2013), Iraq (2024), Nigeria (2006) and Russia (2002). Every cell in a row is attributable to one of its Source_1 … Source_12 columns, which together cover every change-point of the series. The working list of instruments from which the dataset is coded is not distributed.

3.9 Sexes_Covered Coding

3.9.1 The Value. Sexes_Covered takes 1.00 if the instrument covers all genders and 0.50 if it covers one sex or gender category only, as a male-only sodomy provision, a female-only provision or a trans-only instrument does. The value describes the instrument coded itself. A series whose offence terms are sex-neutral takes 1.00 if no part of the code reaches one sex only. A series takes 0.50 if a gross-indecency or equivalent part of the code reaches one sex only, even

if the buggery part is neutral on its face. A code that acquires such a part within the panel changes value in that year. Where coverage is single-sex, the Source columns document it by statute article and wording. Every active row has a value. Inactive years of a series may show the series' value, which the index does not use.

> *Examples:* Jamaica Same-Sex Acts Illegal takes 0.50, because section 79 of the Offences Against the Person Act 1864 punishes gross indecency between males, although section 76 on buggery is neutral in its terms. Malawi Same-Sex Acts Illegal takes 0.50 for 1991–2010 and 1.00 from 2011, when Act 1 of 2011 inserted section 137A on indecent practices between females.

3.9.2 The Terms of the Offence and Sources on Its Reach. The value follows the offence's own terms. If no authority construes an undefined term as to women, the value is based on the terms alone. A specialist source whose subject is precisely the reach of the offence displaces the reading of the terms if it states that the offence reaches one sex only. A secondary compilation's country profile is not such a source.

> *Example:* South Sudan Same-Sex Acts Illegal takes 0.50, on the Human Dignity Trust's finding that section 248 of the Penal Code Act 2008 reaches only penile penetrative intercourse and does not criminalise women.

3.9.3 Disparate Impact. An offence whose enforcement fell on one sex remains, in its terms, an offence of general reach. Disparate impact is application, so it does not give 0.50 without a part of the code that reaches one sex only or a specialist source on the reach of the offence.

> *Example:* Canada Age of Consent Unequal takes 1.00, because section 159 of the Criminal Code reads 'Every person who engages in an act of anal intercourse'.

3.9.4 Values Fixed for a Policy. For four statuses the value is fixed by the definition of the policy rather than read from the instrument. Blood Donations Illegal takes 0.50, because a deferral keyed to sex between men is specific to one sex by definition, whatever the wording of the instrument. Blood Donations Legal, Age of Consent Equal and Death Penalty Legal take 1.00. Age of Consent Unequal is not fixed: the provision may reach one sex (0.50) or both (1.00), as the instrument states.

> *Example:* Greece Blood Donations Illegal takes 0.50, although decision A8/2058/90 excludes 'homosexuals and bisexuals' without reference to sex.

3.10 Policy Reversals

3.10.1 Reversals in the Series. The dataset allows policies to change in a regressive as well as a progressive direction. If a country revokes an existing right, Proportion of the progressive status falls to 0, Year_of_National_Repeal records the repealing instrument and a Source column cites it. The last year coded follows §3.2.5: in a pair whose statuses exclude each other, the status is coded through the year before the repealing instrument's adoption year. In every other policy it is coded through the year before the repeal takes effect. A protection that did not continue into the successor statute in force ends in the year the successor instrument takes effect. A reversal in

a descriptor, such as a stricter gender-change requirement, changes the descriptor from the amending instrument's year of entry into force and is listed in Year_Law_Changed (§3.2.7).

> *Examples:* Russia Gender Marker Change Legal is coded through 2022, before the law of July 2023 abolished the change of the sex entry. Kyrgyzstan Gender Marker Change Legal is coded through 2019. Hungary Employment Discrimination - Gender Identity Illegal is coded through 2024, before Act V of 2025 deleted the gender identity ground from the Equal Treatment Act of 2003. India Gender Marker Change Legal changes from 'Self-declaration' to 'Surgery' in 2020, when the Transgender Persons (Protection of Rights) Act 2019 entered into force.

3.10.2 Reversals Between Paired Statuses. If a reversal replaces one regime with its opposite, as when a blood-donation deferral is lifted or gender-affirming care for minors is restricted, the old status ends and Year_of_National_Repeal records the reform. The opposing status is active from the reform's adoption year. A reversal that is itself reversed restores the earlier status, which then takes its national adoption year from the restoring instrument (§3.2.3). The restored status leaves Year_of_National_Repeal empty, and the year in which its earlier spell ended enters Year_Law_Changed.

> *Examples:* Finland Gender Affirming Care - Minors is Covered for 2011–2019 and Restricted from 2020. The United Kingdom's is Covered through 2023 and Restricted from 2024. Trinidad and Tobago Same-Sex Acts is Illegal for 1991–2017, Legal for 2018–2024 after the High Court's judgment of 12 April 2018, and Illegal again from 2025, after the Court of Appeal reversed that judgment on 25 March 2025. The restored Illegal series takes Year_of_National_Adoption 2025.

3.10.3 What Is Not a Reversal. A reversal requires a binding repealing instrument or a final judgment (§3.4.3). A political or administrative event short of that, such as a policy directive, a change in the education curriculum, the dissolution of an enforcement body or a hostile political climate, does not end coverage and does not fill Year_of_National_Repeal. The instrument remains coded as in force. Evidence_of_Enforcement and data_confidence record any erosion in practice.

3.11 Descriptor Fields

3.11.1 Descriptors in General. A descriptor (Max_Punishment, Fine_Amount, Sexes_Covered, Policy_Scope, Gender_Change_Requirement, Blood_Restriction_Period and Civil_Union_Benefits) takes the value that the quoted instrument states, from that instrument's adoption year or, for an amending instrument, from its year of entry into force (§3.2.7). The instrument cited for the value in the Source columns is the instrument from which it was read. A single ruling that binds only its parties changes no national descriptor.

> *Example:* Russia Morality/Propaganda Legal takes 'Directed at minors' for 2006–2021 and 'All audiences' from 2022, the adoption year of Federal Law No. 479-FZ, which removed the minors qualifier.

3.11.2 Policy_Scope in the Anti-Discrimination Series. Policy_Scope for an anti-discrimination series takes a remedy category, such as 'Criminal penalty' or 'Civil remedy', only if the cited instrument itself states the mechanism the category names. The field is empty if the instrument attaches no remedy, or only a mechanism no category describes. A general action available under other law, such as amparo, a constitutional petition or preserved civil procedure, does not fill it. In the employment and goods-and-services series an empty category scores 0.5, the lowest category (§5.2.6). A penal clause that names the ground and reaches the field of activity the policy covers, including a general clause that punishes discrimination in the exercise of rights, creates the row with 'Criminal penalty'. The series takes that category until a civil remedy of at least equal rank reaches that field. In a subnational series the country-year takes the category covering the largest population share among the covered jurisdictions. A jurisdiction whose instrument states no remedy counts as an empty category. 'Public sector only' records a prohibition that binds public bodies alone and applies whatever remedy the instrument attaches.

> *Example:* Suriname Employment Discrimination - Sexual Orientation Illegal takes 'Criminal penalty' for 2015–2021 under articles 176c and 500a of the Penal Code, and 'Civil remedy' from 2022 under the Equal Treatment in Employment Act of 10 November 2022.

3.11.3 Gender_Change_Requirement. Gender_Change_Requirement takes the category that the text of the quoted instrument states. Three of the categories are assigned as follows:

- 'Medical diagnosis': a medical certificate or conclusion on the change of sex that names no surgery.
- 'Surgery': a change by medical procedure or required surgery.
- 'Surgery and sterilization': a required removal of reproductive organs.

The field is empty if the text states no requirement. A practice that a court or a report finds, as opposed to a requirement the text states, does not change the category.

> *Examples:* Austria Gender Marker Change Legal takes 'Surgery' for 1991–2008 under the Interior Ministry's decrees of 1983 and 1996, and 'Medical diagnosis' from 2009, after the Verwaltungsgerichtshof held on 27 February 2009 that surgery is not a precondition. Germany's takes 'Surgery and sterilization' for 1991–2010 under the Transsexuellengesetz of 1980.

3.11.4 Civil_Union_Benefits. In a subnational series Civil_Union_Benefits takes the bundle of partnership rights (the column's value) covering the largest population share among the covered jurisdictions, as Gender_Change_Requirement does in the Gender Marker Change entry for the United States (§4.21).

> *Example:* United States Civil Unions Legal takes 5.0 from 2005, when California's Domestic Partner Rights and Responsibilities Act of 2003, which gave registered partners in the most populous covered state the rights of spouses, took effect.

4. Policy Entries

This section has one entry for each of the 27 policy areas, grouped by the seven domains of §2.2. Each entry is written to be read on its own, so that a user who works with one policy finds every rule that governs its coding in that entry without reading the rest of the section. For that reason every entry has the same headings in the same order and restates, with a reference to section 3, the general rules on which the coding of the policy most depends. A reader who goes through the section from start to finish will therefore meet the same sentences several times. The repetition is greatest in the policies that come in pairs: sexual orientation and gender identity (employment, goods and services, hate crimes and constitutional protections), adults and minors (gender-affirming care), and LGB and transgender military service. The two entries of a pair are worded alike except where their coding differs.

Each entry opens with a table computed from the data file. For each status of the policy, the table gives the number of countries and of country-years in which the status is in force, the first and last years in which it is in force, and the number of country-years in which it covers only part of the population (Fractional coverage). The text of every entry follows under the nine headings of Table 4.1.

Table 4.1. The Headings of a Policy Entry

Heading	What it states
Question	The question the policy codes for every country and year.
Statuses	The statuses the policy takes, what each records and what a country-year without the policy means.
Inclusion	Which kinds of instrument qualify for the policy and which do not.
Status assignment	How a country-year is assigned to a status.
Coverage	How Proportion measures the share of the population that the policy reaches (§2.3).
Fields	The supplementary columns the policy uses (§2.5) and their categories.
Dating and years	How the year columns (§2.4) are dated for the policy.
Policy-specific rules	The rules that apply to this policy alone.
Exceptions	The countries whose coding departs from the rules above, with the reason for each.

4.1 Same-Sex Acts

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	120	2874	1991	2025	79
Legal	138	4010	1991	2025	79

Question: Is a provision reaching consensual same-sex sexual conduct between adults in force?

Statuses

Two statuses are coded. Illegal records that a provision reaching consensual same-sex sexual conduct between adults is in force, while Legal records that none is. The two statuses are

complementary (§3.5.1): in every country-year their Proportion values sum to 1.0, except in South Sudan before 2008 and Yemen before 1994, where neither status is coded.

Inclusion

An Illegal row is based on a provision reaching the conduct:

- a penal- or criminal-code offence of sodomy, buggery, unnatural offences, gross indecency or same-sex relations;
- codified religious criminal law (Brunei, Indonesia, Iran, Libya, Nigeria);
- uncodified Sharia applied by the courts (Saudi Arabia); or
- an uncodified Roman-Dutch common-law sodomy offence (Eswatini, Namibia).

A general public-morality or public-order offence qualifies if the conduct is punished under it. A Legal row is based on a repeal statute, a replacement code omitting the offence, a judgment striking the provision down or, for a country that never criminalised, the absence of any prohibition (§3.3.3). Ages of consent, propaganda provisions, marriage bars and restrictions on association are coded under their own policies.

Status Assignment

The status is Illegal while the prohibiting provision is in force and changes to Legal in the adoption year of the instrument that ends it (§3.5.1). A prohibition left in the law and not used is still coded Illegal and takes a lower Evidence_of_Enforcement value (§3.7.3). Both statuses take a value above 0 in the same country-year if the offence is set below the national level or if a national offence applies only in part of the territory. Proportion then divides the population between them: the Illegal value is the share where the offence applies, the Legal value the rest. This is the case in five countries: Argentina 1991–2025 (provincial police edicts, §3.3.4), Australia 1991–1996 (Tasmania), Indonesia 2002–2025 (South Sumatra and Aceh), Iraq 2024–2025 (outside the Kurdistan Region) and the United States 1991–2002 (state sodomy laws).

Coverage

Proportion is the share of the population to which the coded status applies: 1.0 if criminal law is set nationally, and a fraction if the offence is set by states or provinces, if a religious criminal code applies in part of the territory, or if a national law applies only outside an autonomous region (Iraq, outside the Kurdistan Region). Selective or absent enforcement does not lower it.

Fields

Max_Punishment records the maximum penalty for consensual same-sex conduct between adults (§3.6). Its values are prison terms, 'Life', 'Death' and 'Fine or other non-prison penalty'. The last records a penalty without prison and occurs in six series. Five are former Portuguese colonies (Angola, Cape Verde, Guinea-Bissau, Mozambique and Sao Tome and Principe), where articles 70 and 71 of the Portuguese Penal Code, in the wording of 1954, applied security measures such as a good-conduct bond or supervised liberty to persons who habitually practised 'vices against nature'. Internment followed only on a second finding. The sixth is Costa Rica for 1991–2001, where article 378(15) of the Penal Code of 1970 punished sodomy practised 'en forma escandalosa' (in a scandalous manner) as a contravención, a petty offence, with day-fines.

If a code contains both a buggery or unnatural-offences provision and a gross-indecency provision, the maximum is taken from the provision under which consensual acts between adults fall (§3.6.1). Fine_Amount is filled on Illegal rows only. Sexes_Covered takes 1.00 if the prohibition reaches conduct between men and between women alike and 0.50 if its terms reach one sex only (§3.9). Where no source documents how the law was applied, Evidence_of_Enforcement takes the default of 1.00 on a Legal row and 0.75 on an Illegal row (§3.7.1).

Dating and Years

A country that never criminalised same-sex acts is dated to the year it entered the Correlates of War state system (§3.3.3, Table 3.1). A country that entered after 1991, such as Timor-Leste in 2002, takes 1991, the first year of the data, because its entry year marks no instrument. Several Illegal series are dated to an earlier code, colonial, Soviet-era or other, that is identified by its number or date but whose text could not be obtained, as in Guinea (1965), Kosovo (1977), Tajikistan (1961) and Uzbekistan (1959). Such a series takes the adoption year of that code. Where a later code continued the offence (Guinea, Uzbekistan), Source_1 quotes the earliest such code (§3.3.1); in Kosovo and Tajikistan no later code did, and Source_1 describes the earlier code. In each such series Max_Punishment and Fine_Amount are empty in the years before the first text that was read (§3.6.2). A regime with no identified instrument, such as uncodified sharia, is coded under §3.3.2. Decriminalisation by judgment is dated to the judgment, not to the amendment of the code that follows it, even while an appeal is pending (§3.4.3), as in Fiji (2005), Trinidad and Tobago (2018) and Botswana (2019).

Policy-Specific Rules

A general criminal provision, a codified religious offence or an authoritative interpretation reaching the conduct establishes the status, so the establishing instrument need not name same-sex conduct expressly. Where no provision reaching the conduct could be located and the status is inferred from other evidence, the series is still coded and is rated low (§2.8). A life penalty is recorded if the provision setting the basic offence provides for it, whether or not courts impose it. Death is recorded only if the death penalty for consensual same-sex acts is part of the national law that courts apply (§3.6.2). A higher penalty that a provision reserves for particular offenders or circumstances, such as a repeat offender, defines an aggravated offence and does not set the maximum (§3.6.1). Three examples are the life imprisonment for ‘aggravated homosexuality’ in s. 144A of the Gambia’s Criminal Code, inserted in 2014; the death penalty for ‘aggravated homosexuality’ in s. 3 of Uganda’s Anti-Homosexuality Act 2023; and the death or life imprisonment for a third conviction in art. 148(2)(c) of Sudan’s Criminal Act 1991. A death penalty set in such a part is coded under Death Penalty (§4.2).

Exceptions

Eswatini and Namibia: sodomy was an offence only under the uncodified Roman-Dutch common law, which no statute defines. Max_Punishment is empty for both, because no statute sets a maximum penalty (§3.6.2). South Africa: sodomy was also a common-law offence until the Constitutional Court struck it down in 1998. Max_Punishment takes the two-year maximum of s. 20A of the Sexual Offences Act 1957, inserted in 1969, which punished sexual acts between

men ‘at a party’ and applied together with the common-law offence. Dominica: from 1998 the maximum is taken from s. 14 of the Sexual Offences Act 1998, the gross-indecency offence: 10 years before its amendment in 2016 and 12 years from 2016. The Gambia: the Criminal Offences Act 2025, which replaced the Criminal Code, states only a minimum term for the offence, so Max_Punishment is empty from 2025 (§3.6.2). Saint Kitts and Nevis and Dominica are Illegal from 1991 under colonial Offences Against the Person Acts of 1873 (s. 56 in Saint Kitts and Nevis, s. 59 in Dominica), which each country later consolidated or re-enacted. Both series are dated to 1873 (§3.3.1). San Marino is Illegal for 1991–2003 under art. 274 of the Penal Code of 1974, which punished habitual sexual acts between persons of the same sex that caused public scandal, until Law No. 121 of 2004 repealed it. Turkmenistan is Illegal from 1991 under the sodomy offence of the Criminal Code of the Turkmen SSR of 1961, whose text could not be obtained. The Criminal Code of 1997 continued the offence as art. 135. Bhutan is Legal for 1991–2003, because no instrument criminalised same-sex acts before the Penal Code of 2004. Year_of_First_Adoption is 1971, the year Bhutan entered the Correlates of War state system (§3.3.3), while Year_of_National_Adoption is 2021, the year of the Penal Code (Amendment) Act that restored the Legal status (§3.2.3). Indonesia: same-sex acts are criminalised only in some regions, South Sumatra from 2002 and Aceh from 2014. The national Criminal Code of 2023 (Law 1/2023), which enters into force in 2026, does not make same-sex acts an offence nationally, because its official explanation confines the offence of extramarital sex to sex between a man and a woman.

4.2 Death Penalty

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	10	279	1991	2025	27

Question: Is death available as a punishment for consensual same-sex sexual acts?

Statuses

The policy takes a single Status. Legal records that death is available as a punishment for consensual same-sex sexual acts. There is no opposing status: a country-year in which death is not available, because it was never provided, was abolished or was replaced by another penalty, is not coded under this policy.

Inclusion

A substantive row is based on a legal basis under which death may be imposed for consensual same-sex sexual conduct, in one of four forms:

- a penal-code article prescribing the penalty (Iran Islamic Penal Code Arts. 233-234, Mauritania Penal Code Art. 308, Sudan Criminal Act 1991 Art. 148(2)(c), Yemen Penal Code Art. 264, Uganda Anti-Homosexuality Act 2023 s. 3, Brunei Syariah Penal Code Order 2013 s. 82)

- a hudud or zina provision applied to such conduct under a codified or uncodified sharia regime (art. 1 of Qatar's Penal Code, Law 11/2004, which applies Islamic sharia to hudud offences committed by Muslims; Saudi Arabia's uncodified Hanbali sharia)
- a state penal code of the same character in a federal system (Nigeria, Zamfara Sharia Penal Code Law No. 10 of 2000)
- a decree of a body exercising legislative power

Capital provisions that apply only to acts committed by force or without consent, bills never enacted, annulled acts and executive statements create no row.

Status Assignment

A series takes Legal on the legal availability of the penalty, whether mandatory on conviction or within judicial discretion. Evidentiary thresholds that make conviction rare, procedural requirements such as confession or four witnesses, and moratoria do not remove the Status. Evidence_of_Enforcement records use and non-use (§3.7.3), so a row may take Legal with enforcement at 0.00.

Coverage

Coverage is national except in Nigeria, where Proportion records the population share of the northern states whose Islamic criminal law makes death available: 0.023349 in 1999 (Zamfara), 0.243714 in 2000, 0.336585 in 2001 and 0.380119 from 2002. Each state joins the covered set in the adoption year of its first instrument (§3.4.3). Sub_National_Coverage names those states. The federal Same Sex Marriage (Prohibition) Act 2013 imposes imprisonment, not death. Proportion does not depend on whether the penalty is sought or imposed.

Fields

Max_Punishment is 'Death' on every row, by the definition of the policy. Sexes_Covered is fixed at 1.00 for this policy (§3.9.4), including the series whose provision reaches only conduct between men (Iran, Mauritania, Yemen, Brunei and the Nigerian sharia states). Source_1 states that limit, except in the Nigerian series, whose Source_1 names the offence of sodomy (liwat) without stating its reach. Evidence_of_Enforcement takes three values (§3.7.3):

- 0.00: no capital sentence or execution for the conduct is documented.
- 0.50: capital charges without a sentence are documented, or application is confined to part of the covered territory.
- 1.00: a death sentence is documented, even if no execution follows.

Policy_Scope is not used.

Dating and Years

A series begins in the adoption year of the capital provision and ends only on its repeal. The last year coded is the year before Year_of_National_Repeal (§3.2.5): Sudan's repeal year is 2020, so its series ends in 2019. In a federal system the series is dated to the earliest state instrument that makes the penalty available, codified or uncodified. Year_of_First_Adoption takes that year,

while Year_of_National_Adoption stays empty because coverage never reaches the whole country.

Policy-Specific Rules

Discretionary and mandatory capital provisions are coded alike, as are provisions reaching same-sex conduct through a general offence such as zina or hudud. A series may be based on an uncodified sharia jurisdiction whose courts may impose the penalty. Such a series is rated by the general criteria of §2.8.

Exceptions

Iraq has no series. Revolutionary Command Council Resolution No. 234 of 2001 reaches only sodomy committed without consent or by force in the text published in the Official Gazette, so it does not make death available for consensual acts (§3.1.3). Saudi Arabia's series is based on uncodified sharia with no article that can be cited. The Brunei, Mauritania and Qatar series remain coded for as long as their provisions are in force, although their sources record conditions that make a sentence unlikely: in Brunei a requirement of confession or four witnesses, in Mauritania a moratorium on executions since 1987, and in Qatar the absence of any recorded death sentence.

4.3 Age of Consent

Status	Countries	Country-years	First year	Last year	Fractional coverage
Equal	127	3314	1991	2025	68
Unequal	53	743	1991	2025	72

Question: Does criminal law fix the same minimum age for lawful sexual activity whatever the sex of the partner, or a higher one for same-sex conduct?

Statuses

The policy takes two Statuses. Equal records that the minimum age for lawful sexual activity stated in criminal law is the same whatever the sex of the partner. Unequal records that a higher age applies to same-sex conduct. Neither status is coded if no age of consent applies to same-sex conduct, for example while same-sex acts are an offence at every age (§3.5.1).

Inclusion

A substantive row is based on criminal law fixing a minimum age for lawful sexual activity that reaches same-sex conduct. The instruments that create a row are penal and criminal code articles, sexual offences acts, decriminalisation and amending statutes, and judicial decisions. The decisions are not confined to apex or constitutional courts: judgments of the High Court, a court of first instance, that struck down the offences against same-sex acts between adults create rows in Antigua and Barbuda, Barbados, Botswana, Dominica, Namibia, Saint Kitts and Nevis, Saint Lucia, and Trinidad and Tobago. In Saint Kitts and Nevis and Saint Lucia the row is Unequal, because an age of 18 remains for same-sex acts against a general age of 16. An instrument that penalises same-sex conduct without fixing an age creates no row. Nor do child-protection or

trafficking statutes that fix no age, minimum-age-of-marriage provisions or prosecutorial guidance.

Status Assignment

The age stated in law alone decides the Status: Equal if the minimum age for same-sex conduct equals the minimum for different-sex conduct, Unequal if it is higher. No Status is coded in a year in which same-sex acts are an offence throughout the country under Same-Sex Acts Illegal (§3.5.1). San Marino is the one exception to this rule. Its Equal series is coded in 1991–2003 together with its Same-Sex Acts Illegal series, because art. 274 of the Penal Code of 1974 punished only habitual acts that caused public scandal, so the general age of consent governed other same-sex conduct.

Coverage

Proportion is the population share of the jurisdictions whose criminal law contains the coded age. It is fractional only in federal states, in Bosnia and Herzegovina, whose entities have criminal codes of their own, and in states in which same-sex acts are an offence in part of the territory. Six series under Equal have fractional coverage (Australia, Bosnia and Herzegovina, Canada, Indonesia, Iraq and the United States), as do four under Unequal (Australia, Bosnia and Herzegovina, Canada and Indonesia). In three of these countries coverage is fractional although the age is set nationally (§3.4.1). In Canada, courts struck down province by province the higher age for anal intercourse in s. 159 of the Criminal Code before its federal repeal in 2019. In Indonesia, the national age does not govern South Sumatra from 2002 or Aceh from 2014, where same-sex acts are an offence. In Iraq, it does not govern the fifteen federal governorates from 2024, for the same reason. The United States series records state-by-state repeal and invalidation.

Fields

On Unequal rows Max_Punishment records the maximum penalty for consensual sexual activity with a person below the higher age, while Equal rows leave Max_Punishment and Fine_Amount empty. The value is usually a term of imprisonment (3 years, 5 years and 10 years among the values in use). The extremes are Life (the Bahamas from 2008) and Death (Cuba to 2021). Sexes_Covered records the reach of the provision that sets the age, as in Same-Sex Acts: 1.00 if it applies to conduct between men and between women alike, 0.50 if its terms reach one sex only. Equal rows take 1.00 throughout, because an equal age applies to everyone by definition (§3.9.4). Unequal rows take 0.50 if the higher age is set for male same-sex conduct alone. They take 1.00 if a later instrument extended it to women or if the provision was drafted without reference to the sex of the participants and reaches indecent acts with a minor 'of the same sex'. Examples are art. 358 of the Code pénal of Côte d'Ivoire and s. 14(3)(b) of South Africa's Sexual Offences Act 23 of 1957, inserted in 1988, which extended the age of 19 to acts between women. Evidence_of_Enforcement takes four values: 1.00, 0.75, 0.25 and 0.00. Where no source documents enforcement, Equal rows take the default of 1.00 and Unequal rows the default of 0.75 (§3.7.1).

Dating and Years

A series is dated to the first substantive instrument that fixed the coded age. Coverage changes in the adoption year. Timor-Leste is Unequal from 1991 to 2008 under the Indonesian Penal Code, which UNTAET Regulation No. 1999/1 and then art. 165 of the Constitution of 2002 kept in force. Its art. 292 punished an adult's indecent acts with a minor of the same sex, a person under 21, while art. 287 set the age for sex between a man and a woman at 15. The series takes 2002, the year of the Constitution, in its adoption fields and is Equal from the Penal Code of 2009. Equalisation by amendment or judgment changes the Status in that instrument's adoption year. Year_Law_Changed records a change of the age (§3.2.7), including a change to a rule based on the age difference between the partners (Costa Rica, Ley 9406 of 2016). The column does not list a change made only in a part of the country that does not hold the largest share of the population, such as the changes made by Republika Srpska in 2017 and by the Brčko District in 2024 in Bosnia and Herzegovina.

Policy-Specific Rules

Equality is tested on the age stated in law alone, so a jurisdiction that equalised the stated age while keeping an offence specific to same-sex acts takes Equal. If the criminal law reaches same-sex conduct at every age, no age of consent governs it, so neither status is coded and the country does not take Unequal.

Exceptions

In Sao Tome and Principe, the security measures that the Portuguese Penal Code applied to persons who habitually practised 'vícios contra a natureza' set no age, so they create no Age of Consent row. Chile's Unequal series is based on art. 365 of the Código Penal as amended by Ley 19.617 of 1999, which set an age of 18 for same-sex acts against the general age of 14. The series runs to 2021 and ends with the repeal of the article by Ley 21.483 of 2022 (§3.2.5). Before 1999 the article punished sodomía at any age, so those years are coded under Same-Sex Acts. China has no Age of Consent status for 1991–1996, the years in which Same-Sex Acts is coded Illegal under the hooliganism offence of the Criminal Law of 1979 (§3.5.1). It is Equal from 1997, because the Criminal Law of 1997 sets no different age for same-sex conduct.

4.4 Morality/Propaganda

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	48	986	1991	2025	44

Question: Is a restriction on the public expression, depiction, promotion or discussion of same-sex relations or transgender identity in force?

Statuses

One status is coded, Legal, which records that a restriction on the public expression, depiction, promotion or discussion of same-sex relations or transgender identity is in force, whether framed as public morality, indecency, propaganda, protection of minors or protection of family

values. There is no opposing status: a country-year with no qualifying restriction is not coded under this policy.

Inclusion
A row is based on an instrument restricting expression or representation. The qualifying forms are:

- criminal-code public-morality and indecency provisions;
- dedicated propaganda or promotion statutes;
- administrative offence code articles;
- broadcasting and media content rules;
- censorship and classification provisions;
- press and publications laws (Jordan, Oman, United Arab Emirates, Yemen);
- cybercrime and electronic-content statutes (Pakistan, Saudi Arabia, Senegal);
- education-sector instruments (Bulgaria, Paraguay, United States).

A statute that binds advertising may establish a series, while a self-regulatory advertising code never does. The provision must reach same-sex or transgender content in its text or in its documented application, so a general obscenity or public-decency provision that does neither creates no row (§3.1.3). Instruments directed at organisations belong to LGBTQ+ Civil Society Restrictions and provisions criminalising sexual conduct to Same-Sex Acts. Each provision, or part of a provision, is assigned to the policy it fits, so one instrument establishes a series in each policy if it contains provisions of both kinds.

Status Assignment
Legal runs from the adoption year of the establishing instrument for as long as that instrument remains in force, and is coded through the year before a repeal or a ruling striking it down takes effect (§3.2.5). The status records the existence of the restriction, not how often it is used: an instrument in force but unused remains coded and takes a lower Evidence_of_Enforcement value.

Coverage
Proportion is the share of the national population living in jurisdictions in which a qualifying restriction is in force, and is fractional if the restriction is enacted below the national level. Only the jurisdictions whose instruments are cited in the series count toward that share (§3.4.3).

Fields
Max_Punishment records the maximum penalty for the expression the restriction punishes and takes 'Fine or other non-prison penalty' if the restriction is enforced by a fine or another sanction without prison. The penalty of an accompanying sexual-conduct provision belongs to Same-Sex Acts. Sexes_Covered takes 1.00 throughout. Policy_Scope takes one of three categories:

- 'All audiences': the restriction applies regardless of audience.

- ‘One sector only’: the restriction binds a defined domain such as broadcasting, education or advertising.
- ‘Directed at minors’: the restriction is framed around access by or exposure of minors.

Fine_Amount takes the following values:

- the stated maximum, if the provision coded attaches a fine;
- Yes, if the provision attaches a fine without stating a maximum, or states only a minimum;
- No, if the provision attaches none.

Where no source documents enforcement, Evidence_of_Enforcement takes the default of 0.75 (§3.7.1).

Dating and Years

Many series are based on a public-morality provision of the colonial period that a later penal code restated. Such a series is dated to the colonial provision, not to the later code (§3.3.1). Year_Law_Changed lists an amendment that extends the restriction to a further sector, medium or audience only if the amendment changes a coded value, as China’s change to ‘All audiences’ in 2017 and Russia’s in 2022 do.

Policy-Specific Rules

Policy_Scope does not modify Proportion: a ‘One sector only’ restriction applying throughout the country takes Proportion 1.0. The index takes the reach of a restriction across sectors from Policy_Scope alone (§5.2.6). A country may have a series here while having no Same-Sex Acts Illegal row.

Exceptions

Lithuania: the series is based on art. 4(2)(16) of the Law on the Protection of Minors against the Detrimental Effect of Public Information, as amended in 2009, which treats as harmful to minors information that promotes a concept of family other than marriage between a man and a woman. The provision does not name same-sex relations, so its reach to them is based on its wording about the family and on its application, which the European Court of Human Rights condemned in Macatė v Lithuania (2023). In Algeria, Kenya, Libya, Mauritania, Morocco, Pakistan, Sudan and Zimbabwe, among other countries, the series is based on a general morality or decency clause whose application to LGBTI expression is documented in the sources cited in the series (§3.1.3). Myanmar: the series is based on the clauses of the Police Act 1945 (s. 35(c)) and the Rangoon Police Act 1899 (s. 30(c)) that punish being found in disguise, which police have used against transgender women. Their maximum of three months is coded ‘Less than 6 months’. In five countries one instrument establishes both this series and the series in LGBTQ+ Civil Society Restrictions: Georgia (Law on the Protection of Family Values and Minors, 2024), Hungary (Act LXXIX of 2021), Iraq (Law No. 15 of 2024), Nigeria (Same Sex Marriage (Prohibition) Act 2013, s. 5(2)) and Uganda (Anti-Homosexuality Act 2023, s. 11). Fine_Amount is ‘Yes’, a fine without a stated maximum, in seven countries:

- Algeria (Loi n° 14-04 of 2014, art. 100);

- Belarus (Criminal Code art. 343(1), from 2024);
- Egypt (Supreme Council for Media Regulation order of 2017);
- Ethiopia (Criminal Code arts. 640-641);
- Singapore (Singapore Broadcasting Authority Act 1994 s. 24 from 1996, the Broadcasting Act in the current code);
- Sudan (Criminal Act 1991 arts. 152-153);
- Tanzania (Online Content Regulations 2020, reg. 21(1)), which states only a minimum.

Six countries have a series here and no Same-Sex Acts Illegal row: Bahrain, Democratic Republic of Congo, Finland, Hungary, Jordan and Paraguay. Finland: the series is based on the ban on public encouragement of same-sex acts that Act 16/1971 inserted in the Penal Code (ch. 20, s. 9(2)). The text of the Act could not be obtained, so the series is rated low (§3.1.6). Government bill HE 6/1997 describes the ban and proposed its repeal, which Act 563/1998 enacted.

4.5 LGBTQ+ Civil Society Restrictions

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	10	62	2012	2025	2

Question: Is a legal restriction in force that bars, conditions or penalises the formation, registration, funding or operation of organisations working on sexual orientation and gender identity?

Statuses

The policy takes a single status, Legal, which records that a restriction on LGBTQ+ associational life is established in law and in force: the state bars, conditions or penalises the formation, registration, funding or operation of organisations working on sexual orientation and gender identity. The status records a restriction rather than a right (§3.5.4). There is no opposing status, so a country-year without such a restriction is not coded under this policy.

Inclusion

A substantive row is based on an instrument whose effect reaches LGBTQ+ organisations as organisations:

- a statute or decree outlawing such associations;
- a registration or incorporation rule denying them legal personality;
- a foreign-agent or funding-control provision restricting their financing; or
- an offence penalising their registration or operation.

A generally applicable non-profit, registration or foreign-agent law counts if it is applied to LGBTQ+ organisations as such. An instrument that names no organisation and regulates expression, depiction or public information is coded under Morality/Propaganda. Bills that were never enacted create no row. The two policies can overlap: an instrument doing both things is the establishing instrument of a row in each.

Status Assignment

Legal runs from the adoption year of the qualifying instrument for as long as it remains in force, and is coded through the year before the year in which it is struck down or lapses (§3.2.5).

Coverage

Proportion is the share of the population living in jurisdictions in which the restriction is in force. Coverage is national except in Iraq, where the series covers only the population outside the Kurdistan Region: the federal law applies there in form, but no implementation by the regional authorities is documented.

Fields

Max_Punishment records the maximum penalty for the organisational conduct that the policy codes and takes six values: 'Fine or other non-prison penalty', 'Less than 6 months', '2 years', '10 years', '15 years' and '20 years'. 'Fine or other non-prison penalty' records regimes enforced through deregistration, fines or other administrative sanctions without imprisonment. 'Less than 6 months' records China's Overseas NGO Law of 2016, whose art. 46 allows detention of up to ten days for the persons responsible. Policy_Scope takes 'Registration or funding conditions' if the instrument conditions legal personality or financing without prohibiting the organisation outright, and 'Total ban' if the organisation or its activity is itself unlawful. Fine_Amount takes one of three kinds of value (§3.6.3):

- the stated maximum, if the provision coded states a maximum fine;
- Yes, if the provision provides a fine without an amount or states only a minimum;
- No, if the provision provides none.

Sexes_Covered takes 1.00 throughout. Evidence_of_Enforcement takes 1.00, 0.75 and 0.00: 1.00 where a source documents enforcement against an organisation, 0.00 between an instrument's adoption and its entry into force (§3.2.6), and otherwise the default of 0.75 (§3.7.1).

Dating and Years

The earliest series begins in 2012, the first year in which a qualifying instrument is documented. Each country is dated to the adoption year of its own instrument. If a later instrument changes the legal effect of the restriction, the series continues and the Policy_Scope label changes in that instrument's adoption year (§3.11.1). Russia takes 'Registration or funding conditions' from 2012 under the foreign-agent law (Federal Law No. 121-FZ) and 'Total ban' from 2023, when the Supreme Court designated the 'international LGBT movement' an extremist organisation. Belarus takes 'Registration or funding conditions' in 2021, when courts liquidated non-governmental organisations under the Law on Public Associations, and 'Total ban' from 2022, when Law No. 144-Z restored art. 193-1 of the Criminal Code, which punishes activity on behalf of an unregistered association.

Policy-Specific Rules

Max_Punishment records the maximum for organising, registering, funding or operating an LGBTQ+ association, not a higher penalty the cited code attaches to unrelated conduct (§3.6.1). Policy_Scope follows the legal effect of the instrument, not its enforcement record: a row whose

instrument leaves an organisation able to exist but unable to register or receive funds takes 'Registration or funding conditions' even if the practical result is dissolution. No country-year is coded from reported practice alone.

Exceptions

Georgia: the Law on the Protection of Family Values and Minors of 2024 names no organisation. It is coded here because its bans, among them the ban on the 'popularization' of same-sex relationships, operate as a ban on the public work of LGBTQ+ organisations. Iraq's Law No. 15 of 2024 names its target: art. 2(4) prohibits 'the activity of any organisation promoting prostitution or homosexuality'. Kazakhstan: the series begins in 2019 with a judgment, not a statute or decree (§3.1.1). The Almaty City Court upheld on 3 September 2019 the Department of Justice's refusal to register Feminita, an initiative working for the rights of lesbian, bisexual and queer women, as a non-commercial organisation. In China, Belarus, Russia and Kyrgyzstan the establishing instruments are general laws on non-profit or foreign-funded organisations that have been applied to deny LGBTQ+ organisations registration or funding: China's Overseas NGO Law of 2016, Belarus's Law on Public Associations, Russia's foreign-agent law of 2012 and Kyrgyzstan's Law No. 72 of 2024 on foreign representatives. Georgia, Hungary, Iraq, Nigeria and Uganda are the five countries whose series in this policy and in Morality/Propaganda are dated to a single instrument.

4.6 Marriage Equality

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	132	3969	1991	2025	26
Legal	38	453	2000	2025	39

Question: Does a legal bar prevent same-sex couples from contracting civil marriage, or may they contract it on the same terms as different-sex couples?

Statuses

Two statuses are coded. Illegal records that a legal bar prevents same-sex couples from contracting civil marriage. Legal records that same-sex couples may contract civil marriage on the same terms as different-sex couples. Neither status is coded if no instrument defines marriage as between a man and a woman and none opens it to same-sex couples, so a country that removes a bar without opening marriage takes neither.

Inclusion

A Legal row is based on an instrument that opens civil marriage itself:

- a statute amending the marriage, family or civil code;
- a dedicated marriage act (Ireland 2015, South Africa 2006); or
- a binding judicial ruling with direct legal effect (Austria, Brazil, Colombia, Costa Rica, Ecuador, Slovenia, Taiwan, United States).

Registered partnership, civil union and de facto union regimes are coded under Civil Unions and never create a Legal row here. An instrument that opens civil marriage alongside a partnership regime establishes a series in each policy (South Africa 2006, Cuba 2022). An Illegal row is based on a legal bar under the rule on marriage bars (§3.5.2), whether in a constitution, a family code or an ordinary marriage statute, and does not require an instrument aimed at same-sex couples.

Status Assignment

Illegal is assigned while a qualifying bar is in force and is coded through the year before the Legal series begins: Iceland's through 2009, before the Marriage Act amendment of 2010, and Ecuador's through 2018, before the Constitutional Court's judgments of 2019. Legal runs from the adoption year of the opening instrument. Both statuses take a value above 0 in the same country-year only while marriage law differs between parts of the country (Canada 2002–2004, United Kingdom 2013–2018, United States 2003–2014).

Coverage

Proportion is the share of the national population living in jurisdictions holding the status. It is fractional in the five countries whose marriage law is set below the national level: Brazil, Canada, Mexico, the United Kingdom and the United States. Each status counts only the jurisdictions with an instrument of its own, so the two shares need not sum to 1.0: a jurisdiction that has neither opened marriage nor enacted a bar is in neither share.

Fields

Sexes_Covered takes 1.00 throughout, because a bar or an opening reaches female and male same-sex couples alike. The policy uses no penalty or fine column. On Illegal rows Policy_Scope takes 'Constitutional bar' where the constitution's own text would found the bar and 'Bar in ordinary law' otherwise (§3.5.2); in the United States the label is the one covering the largest population share among the covered states (§3.11.2). Marriage bars apply without an enforcement act, so Illegal rows take the enforcement default of 1.00. Legal rows, which record a recognition right, take the default of 0.75 where no source documents its use (§3.7.1).

Dating and Years

The dating of a marriage prohibition follows the rule on marriage bars (§3.5.2). A bar that writes an existing common-law definition into statute begins with that statute: Canada's Illegal series begins in 2000 with the Modernization of Benefits and Obligations Act, which defined marriage as the union of one man and one woman. On the Legal side the establishing instrument is the one that opens civil marriage, so a constitutional amendment that permits an opening does not establish the series if a statute enacted under it does (Ireland, Marriage Act 2015 under the Thirty-fourth Amendment of the Constitution). An instrument adopted or ratified by referendum establishes a series on either side: an Illegal series in the Gambia (Constitution approved by referendum in 1996) and Palau (constitutional amendment of 2008), a Legal series in Cuba (Family Code of 2022) and Switzerland (2021). Year_of_National_Repeal on an Illegal series takes the national adoption year of the Legal series. That is also the year the Legal series begins, except in the three countries where the two statuses overlap: Canada, the United Kingdom and the United States.

Policy-Specific Rules

The coded prohibition is the definition of marriage itself, so a country whose code has always defined marriage as between a man and a woman has an Illegal series without any instrument responding to same-sex marriage. Source_1 cites the operative article, not a secondary description (§3.8.1). In a federal or devolved country whose marriage law changes one jurisdiction at a time, each status that is coded takes fractional values in those years. Both do so where bars and openings coexist (Canada, the United Kingdom, the United States).

Exceptions

Canada: the Illegal series begins in 2000, because the common-law definition in force before the Modernization of Benefits and Obligations Act is not a bar (§3.5.2). Iceland and Ecuador: each Illegal series ends in the year before the Legal series begins and does not continue beside it (§3.5.1). United States: the Legal series begins in 2003 with the Massachusetts Supreme Judicial Court's judgment in Goodridge v. Department of Public Health (18 November 2003). Its first year takes Evidence_of_Enforcement 0.00, an exception to §3.2.6, because the judgment took effect only on 17 May 2004. Canada and the United Kingdom: both statuses take fractional values while marriage law differed between parts of the country, in Canada in 2002–2004, as provincial courts opened marriage before the Civil Marriage Act of 2005, and in the United Kingdom in 2013–2018, while Northern Ireland kept its bar after Great Britain opened marriage. United States: the Illegal series takes its 1991–1995 shares from state statutes barring same-sex marriage, among them those of Maryland and Texas from 1973. In those years the two shares sum to less than 1.0, because some states had neither a bar nor an opening. The Defense of Marriage Act of 1996 provides the national bar from 1996. The Illegal share then falls as states open marriage, until the Supreme Court's judgment in Obergefell v. Hodges in 2015.

4.7 Civil Unions

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	48	845	1991	2025	156

Question: Does the law recognise same-sex couples in a legal status short of marriage?

Statuses

The policy takes a single Status. Legal records that same-sex couples are recognised in a legal status short of marriage. There is no opposing status, so a country-year without such recognition is not coded under this policy.

Inclusion

A substantive row is based on recognition of same-sex couples outside marriage, which requires neither formal registration nor a listed set of rights. The instruments that create a row are statutes on registered partnerships, civil unions and civil solidarity pacts, statutory recognition of de facto or cohabiting couples, judicial decisions extending a status to same-sex couples, subnational schemes, counted by the share of the population they cover, and non-binding

municipal partnership certificates. A purely private contract between partners creates no row. Marriage creates no row here: if a country has both policies, the Civil Unions series cites an instrument other than the one cited for Marriage Equality, except where one instrument opens marriage alongside a partnership regime (South Africa 2006, Cuba 2022; §4.6).

Status Assignment

Legal is coded in every year in which the recognition is in force. Civil_Union_Benefits, not the Status, records the range of rights conferred. A status established by judicial interpretation or by municipal certificate is assigned as one established by statute is.

Coverage

Proportion is the population share of the jurisdictions in which the status is available, computed from the census population of each covered jurisdiction (§3.4.2). In six countries coverage is subnational only, so Year_of_National_Adoption is empty: Argentina, Australia, Japan, Mexico, Spain and the United States. The number of couples who register is not measured.

Fields

Sexes_Covered takes 1.00 throughout. Civil_Union_Benefits grades the rights conferred, compared with those of marriage, from 1.0 to 5.0, written with one decimal (§2.5). The whole-number values in use are:

- 2.0: limited recognition, such as the status of cohabiting or reputed spouses or a registered contract with few rights (for example the French pacte civil de solidarité of 1999 and the Portuguese união de facto).
- 3.0: registered partnerships with partial or property rights (for example Finland's Act 950/2001 and the Czech Act 115/2006).
- 4.0: broader registered partnerships (for example Austria's Registered Partnership Act of 2009, Chile's Ley 20.830 and Cyprus's Law 184(I)/2015).
- 5.0: rights close to those of spouses (for example the United Kingdom's Civil Partnership Act 2004, South Africa's Civil Union Act 17 of 2006 and Malta's Act IX of 2014).

Evidence_of_Enforcement takes three values: 1.00, 0.75 and 0.00. Rows take 1.00 where a source documents registrations, 0.00 in the years before an adopted instrument entered into force (§3.2.6) or while its application was blocked (§3.7.3), and otherwise the default of 0.75 (§3.7.1).

Dating and Years

A series begins in the adoption year of the establishing instrument (§3.3.1), and Year_of_First_Adoption takes one value in each country. An amendment that changes the rights of an existing regime changes Civil_Union_Benefits and leaves the adoption year unchanged: the series for Andorra, Colombia, Croatia, the Czech Republic, Denmark, Finland, France, Germany, Hungary, Iceland, Luxembourg, the Netherlands, San Marino, Slovenia, Spain, Sweden, Switzerland and the United States take more than one Civil_Union_Benefits value while the status is in force.

Policy-Specific Rules

Recognition need not be registrable and need not take statutory form. A series takes the intermediate value 3.5 if the rights conferred fall between two steps. Civil_Union_Benefits is left blank if the recognition attaches no defined set of rights.

Exceptions

Japan's series is based on non-binding municipal and prefectural partnership systems from 2015, in the absence of a national law, and leaves Civil_Union_Benefits blank. Each system is weighted by the 2000 census population of its municipality or prefecture and joins the covered set in the year it began, which substitutes for its adoption date. A municipal system counts only until its prefecture adopts a system of its own (§3.4.2). Israel has no civil union statute and no partnership register. Its series is based on judicial recognition of same-sex couples as 'yeduim batsibur' (partners known in public, the status of unmarried cohabitants) following the Supreme Court's judgment in El Al v Danilowitz (HCJ 721/94) of 1994. The Czech Republic series takes 3.0 from 2006 under the Registered Partnership Act (Act 115/2006). It takes 3.5, between two steps, from 2016 to 2024, after the Constitutional Court annulled § 13(2) of that Act, which barred a registered partner from adopting a child (Pl. ÚS 7/15 of 14 June 2016). It takes 4.0 from 2025, when Act 123/2024 replaced registered partnership with a new partnership status (§3.2.6).

4.8 Joint Adoption

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	8	134	1991	2025	35
Legal	39	523	1993	2025	88

Question: May a same-sex couple adopt a child jointly, or does an instrument bar same-sex couples or homosexual persons from adoption in terms?

Statuses

Legal, the only status that the composite index includes, records that a same-sex couple may adopt a child jointly, as co-adopters of a child to whom neither is already a legal parent. An Illegal status is coded for an instrument barring same-sex couples, or homosexual persons, from adoption in terms (§3.5.3). Seven countries have national Illegal rows:

- Andorra (adoption law of 1996, art. 2, 'parelles estables heterosexuals', 1996–2013);
- Benin (Children's Code 2015, opposite-sex couples only);
- the Central African Republic (Loi 20.016 of 2020);
- the Democratic Republic of Congo (Loi 09/001 art. 20, from 2009);
- Georgia (Law on the Protection of Family Values and Minors art. 5(1), from 2024);
- Honduras (Constitution art. 116 as reformed, from 2005);
- the Marshall Islands (Adoptions Act 2002 s 811(3)).

The United States has Illegal rows at the population shares of three states: Florida from 1977 (s. 63.042(3), until the 2010 judgment in In re Adoption of X.X.G.), New Hampshire from 1987 (until the 1999 repeal) and Mississippi from 2000 (s. 93-17-3(5)). Mississippi's bar remains coded after a federal court enjoined its enforcement in 2016 (Campaign for Southern Equality v. Mississippi Department of Human Services), with Evidence_of_Enforcement 0.00, because an injunction does not end coverage (§3.4.3). Where adoption law is silent, neither status is coded.

Inclusion

A substantive row is based on an instrument governing whether a same-sex couple can adopt jointly:

- an amendment to family or adoption law extending joint adoption to same-sex couples or to partners in a recognised union;
- a marriage or registered-partnership statute extending spousal adoption rights to same-sex spouses;
- a binding court ruling striking down a bar; or
- a subnational adoption act.

Second-parent and stepchild adoption of a partner's existing child is a distinct entitlement and does not open the row. Adoption by a single applicant, foster and kinship placement, guardianship, and parentage arising from assisted reproduction do not open it either.

Status Assignment

Legal is assigned if the law permits a same-sex couple to be recorded as joint adoptive parents in a single adoption, by express provision, by a marriage or partnership statute extending spousal adoption rights, or by a binding ruling. An exclusion that follows only from the unavailability of marriage, or from an unamended reference to a husband and wife, is recorded under Marriage Equality, so neither status is coded here (§3.5.3).

Coverage

Proportion is the share of the population living in jurisdictions whose adoption law permits joint adoption by a same-sex couple. Six countries have subnational series because family and adoption law is set by their states, provinces, autonomous communities, territories or devolved administrations: Australia, Canada, Mexico, Spain, the United Kingdom and the United States. Brazil's series is national from 2011, the year of the Supremo Tribunal Federal's judgment in ADI 4277 / ADPF 132, which recognised same-sex stable unions as families. It does not begin in 2006, because the appeal decided by the Tribunal de Justiça do Rio Grande do Sul on 5 April 2006 concerned a second-parent adoption, which does not create a row. Proportion measures legal reach alone, not how many same-sex couples complete an adoption.

Fields

Sexes_Covered takes 1.00 throughout, because joint adoption entitlements apply to female and male couples alike. Evidence_of_Enforcement takes 1.00, 0.75, 0.50 and 0.00 on the scale of §3.7.3. Evidence of use is a completed joint adoption by a same-sex couple, documented in a

court or registry record or in a dated report of the specific adoption (§3.7.2). The policy uses no scope, penalty or fine column.

Dating and Years

If joint adoption follows from a marriage or family-law statute extending spousal adoption rights without further amendment, the series is dated to that statute's adoption year, not to the year of a later administrative confirmation or of the first completed adoption. The series is dated to the adoption amendment if the entitlement instead requires a separate amendment to adoption law after a partnership statute. A series established by a judgment is dated to the year the judgment is handed down even if it takes effect later (§3.2.1). The later date is recorded in Year_National_Implementation.

Policy-Specific Rules

Proportion records legal reach only: obstruction in practice, including agency refusal, discretionary suitability assessment, exemptions granted to faith-based placement agencies, and closed waiting lists, is reflected in Evidence_of_Enforcement and does not reduce Proportion.

Exceptions

Austria, Denmark, Estonia, Finland, Liechtenstein, Switzerland and Taiwan: adoption of a partner's child became available before joint adoption. Each series is dated to the later instrument that opened joint adoption. Canada and the United States: the court rulings that establish the series opened second-parent and joint adoption at the same time. Croatia: the series begins in 2022 with the High Administrative Court's judgment of 26 May 2022 (Usž-2949/21-2), which gave life partners equal access to the assessment of suitability to adopt. The confirmation in 2020 that life partners may foster children does not date the series, because foster placement does not create a row. South Africa: the series begins in 2002 with the Constitutional Court's judgment in Du Toit v Minister of Welfare and Population Development, which read permanent same-sex life partners into the adoption provisions of the Child Care Act 74 of 1983 and the Guardianship Act 192 of 1993. Norway and Iceland: the act that opened joint adoption also extended rights to assisted reproduction. Each series is dated to that act because of its adoption provisions. Germany: the series begins in 2017 with the act opening marriage to same-sex couples, which gave them joint adoption. The first completed joint adoption is evidence of use for Evidence_of_Enforcement, not the start of the series. India: s. 57 of the Juvenile Justice Act and the adoption regulations of the Central Adoption Resource Authority (CARA) confine joint adoption to married couples. Because the bar follows from exclusion from marriage, it is recorded under Marriage Equality and creates no row here (§3.5.3).

4.9 Employment Discrimination - Sexual Orientation

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	87	1773	1991	2025	74

Question: Does a binding instrument prohibit employment discrimination on the ground of sexual orientation?

Statuses

The policy takes a single Status, Illegal, which records that a binding instrument prohibits employment discrimination on the ground of sexual orientation. The series runs from 1991 to 2025. There is no Legal status, so a country-year that is not coded means that no qualifying instrument was in force, not that discrimination was expressly permitted.

Inclusion

A substantive row is based on a binding instrument making sexual orientation discrimination in employment unlawful. Qualifying forms are labour codes and employment acts, general equal-treatment and anti-discrimination statutes reaching employment, constitutional equality clauses, laws transposing the European Union's Employment Equality Directive (2000/78/EC), and binding interpretive doctrine extending an existing ground to sexual orientation. The first year of a series is based on an instrument that names sexual orientation expressly or on binding interpretation that extends an existing ground to it (§3.1.2). A general dignity-at-work or harassment provision that does not reach the ground creates no row. An instrument binding state employers alone qualifies and takes 'Public sector only'.

Status Assignment

A series takes Illegal for every year a qualifying instrument is in force, irrespective of the remedy attached. Policy_Scope records the kind of remedy, so a prohibition enforced only by administrative fine and one whose relief is confined to compensation for wrongful dismissal both take Illegal. An instrument prohibiting the conduct without attaching a remedy still assigns the status. Because the policy has no opposing status, a repeal or lapse ends the series.

Coverage

Proportion records the territorial reach of the prohibition (§3.4.1). Coverage is subnational in five countries (Argentina, Australia, Brazil, Canada and the United States) and national elsewhere. Evidence_of_Enforcement records documented use of the prohibition, such as complaints decided or remedies awarded (§3.7).

Fields

Sexes_Covered takes 1.00 throughout, because no instrument in this policy protects one sex only. Policy_Scope records the kind of remedy the instrument provides, in five categories (§3.11.2):

- 'Civil remedy': a complainant may obtain compensation, reinstatement or equivalent relief before a court or tribunal.
- 'Administrative enforcement only': enforcement runs through a labour inspectorate or equality body issuing fines or orders without a private action for damages.
- 'Dismissal only': relief is confined to wrongful dismissal and does not reach hiring, promotion or harassment.
- 'Public sector only': the prohibition binds state employers alone.

- 'Criminal penalty': discrimination is prosecuted as an offence.

Max_Punishment is not used. Fine_Amount records the fine that the instrument attaches to the discriminatory act.

Dating and Years

The establishing instrument is the first substantive instrument that produced the prohibition (§3.3.1), so a later equal-treatment act, consolidation or EU transposition restating a prohibition that an earlier labour-code clause already established does not change it. An instrument confined to another field creates no employment row: Iceland's series begins with Act 86/2018 on equal treatment in the labour market, not with the amendment of art. 180 of the General Penal Code in 1996, which prohibits discrimination in the supply of goods and services. The series ends, and Year_of_National_Repeal is filled, if a replacing instrument does not keep the ground.

Policy-Specific Rules

The establishing instrument need not name both the protected ground and the employment domain. A constitution, a general equality statute, a criminal-code provision or an equality body's mandate reaching sexual orientation discrimination in employment qualifies, as does a general instrument extended to the ground by binding interpretation, including a reading of national law in conformity with European Union law. A residual catch-all clause alone does not qualify (§3.1.2). Such general or interpretive coverage dates the first year of a series in the same way as an express ground.

Exceptions

Georgia's series has no Policy_Scope label for 2006–2013 (§3.11.2), because it is based on art. 2(3) of the Labour Code (Law No 3132 of 2006, re-enacted in the Code of 2010), which prohibits discrimination in labour relations without attaching a remedy. The label begins in 2014, when the Law on the Elimination of All Forms of Discrimination created an individual court action. For 2006–2013 Evidence_of_Enforcement takes the policy default of 0.75 (§3.7.1). Three series end when a new labour law dropped the ground (§3.10.1). Namibia's ends in 2007, because s. 5 of the Labour Act 11 of 2007 omits the ground that the Labour Act 6 of 1992 listed. Timor-Leste's ends in 2011, because the Labour Law (Lei 4/2012), which repealed the Labour Code of 2002 (UNTAET Regulation 2002/5), omits sexual orientation from its list of prohibited grounds. Mozambique's ends in 2023, because the Labour Law Lei 13/2023 omits the ground that the repealed Labour Law Lei 23/2007 listed. El Salvador's series takes Evidence_of_Enforcement 0.50 from 2019, after the government dissolved in June 2019 the Directorate of Sexual Diversity, which implemented Executive Decree 56 of 2010. Twelve series are rated low: Brazil, Costa Rica, the Czech Republic, Ireland, Lesotho, Mexico, Mongolia, Romania, South Korea, Tuvalu, Ukraine and the United States. Norway's series has no Policy_Scope label for 1998–2003, because § 55 A of the Working Environment Act, inserted in 1998, covered hiring only and named no remedy. Colombia's series takes 'Public sector only' for 1998–2010. It is based on the Constitutional Court's judgment C-481/98, which struck down the listing of homosexuality as misconduct in the statute governing public-school teachers (Decreto

2277 of 1979). From 2011 the series takes 'Criminal penalty' under Ley 1482 of 2011, which inserted art. 134A in the Penal Code.

4.10 Employment Discrimination - Gender Identity

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	57	779	1993	2025	76

Question: Does a binding instrument prohibit employment discrimination on the ground of gender identity?

Statuses

The policy takes a single Status, Illegal, which records that a binding instrument prohibits employment discrimination on the ground of gender identity. The earliest series begins in 1993, with the amendment of the Minnesota Human Rights Act in the United States. The series run to 2025. There is no Legal status, so a country-year that is not coded means that no qualifying prohibition was in force, not that discrimination was expressly permitted.

Inclusion

A substantive row is based on a binding instrument prohibiting employment discrimination on gender identity, gender expression, gender reassignment, sex characteristics or transgender status. The forms represented among the onsets are:

- labour and employment codes
- equality and anti-discrimination acts
- constitutional clauses (Bolivia, Cuba, Ecuador)
- executive decrees and civil-service regulations (Costa Rica, El Salvador)
- penal-code provisions (Honduras Art. 321, Mongolia, Peru Art. 323, San Marino, Spain)
- subnational statutes (Australia, Brazil, Canada, United States)
- interpretive holdings (Colombia, Netherlands, United Kingdom)
- decisions of equality bodies (France, Norway)

No series begins with the statutory mandate of an equality body. An instrument naming only sexual orientation creates no row here.

Status Assignment

A series takes Illegal for every year a qualifying prohibition is in force, whatever the enforcement route and whatever the remedy. Policy_Scope records limits on the covered sector and on redress, so a prohibition binding public employment alone still takes Illegal. Because the policy has no opposing status, a repeal ends the series.

Coverage

Proportion records the territorial reach of the prohibition. Coverage is subnational in four countries: Australia, Brazil, Canada and the United States. Neither a prohibition confined to public employment nor one whose redress is narrow reduces Proportion (§3.4.1).

Fields

Sexes_Covered takes 1.00 throughout. Policy_Scope records the enforcement route in four categories (§3.11.2):

- 'Civil remedy': an enforceable civil claim with a general remedy lies.
- 'Administrative enforcement only': enforcement runs through a labour inspectorate or equality body with penalties but no private claim.
- 'Public sector only': the prohibition binds public employment alone.
- 'Criminal penalty': enforcement is by criminal penalty.

Max_Punishment is not used. Fine_Amount records the fine that the instrument attaches to the discriminatory act.

Dating and Years

A series begins with the first qualifying instrument. A court's interpretation dates the first year only if no enacted instrument states the ground. The Netherlands' series begins in 1996, the year the Court of Justice of the European Union held in P v S and Cornwall County Council (C-13/94) that discrimination arising from gender reassignment is sex discrimination, because the Equal Treatment Act in force from 1994 names no such ground. An enacted instrument that reaches the ground and is already in force when such a holding becomes binding dates the series. An instrument enacted after a binding holding does not change the first year dated to the holding. If an instrument that names the ground precedes a holding, the holding raises Proportion instead, for example from subnational to national coverage. Year_Law_Changed records the signing year of a repeal and of a later instrument that changes the coverage, the remedy category or the stated fine (§3.2.7).

Policy-Specific Rules

An instrument naming gender expression, gender orientation, gender reassignment, sexual identity or transgender status without the phrase gender identity is treated as naming the ground (§3.1.2): Andorra, France ('identité sexuelle'), Germany ('sexuelle Identität'), Sweden, the United Kingdom ('gender reassignment'), India and Pakistan (transgender persons), Mongolia ('хүйсийн чиг баримжаа', gender orientation), Spain, Thailand (expression different from the sex at birth) and Uruguay. An instrument naming gender identity alongside sexual orientation creates a row in each policy. An instrument confined to another field creates no employment row. Conversely, an instrument confined to employment creates no goods-and-services row, as in the seven countries with an employment row and no goods-and-services row: Argentina, Colombia, Costa Rica, Lesotho, Liberia, Suriname and Ukraine.

Exceptions

Three series are dated to an enacted instrument although the sources cite an earlier court holding: India's to the Transgender Persons (Protection of Rights) Act 2019, although the Supreme Court's judgment in National Legal Services Authority v Union of India dates from 2014; Germany's to the General Equal Treatment Act (AGG) of 2006, although the Court of Justice's judgment in P v S dates from 1996; and Finland's to Act 1329/2014, which amended the Act on Equality between Women and Men, although the Helsinki District Court ruled on discrimination against a transsexual employee under that Act in 2011. Three countries have gender identity series with no sexual orientation counterpart: India, Pakistan and Thailand. The United Kingdom's gender identity series begins in 1996 in Great Britain, on the Court of Justice's judgment in P v S and Cornwall County Council, a reference from the Industrial Tribunal at Truro, and becomes national in 1999 with the Northern Ireland regulations. Its sexual orientation series begins in 2003. Nine series have years with no Policy_Scope label, because the instrument attaches no remedy that a category describes (§3.11.2): Argentina (from 2012), Australia (2000–2012), Bolivia (2009), Colombia (from 2023), Cuba (2019–2021), Ecuador (2008), India (from 2019), Pakistan (from 2018) and Uruguay (from 2004). El Salvador's series is based on Executive Decree 56 of 2010, which binds the executive branch only. It takes Evidence_of_Enforcement 0.50 from 2019 and has no repeal, because the dissolution in June 2019 of the directorate that implemented the decree is not a repealing instrument (§3.10.3). Two series end with a repeal in 2025: Georgia's, when Law No 430 of 2 April 2025 removed gender identity from the Law on the Elimination of All Forms of Discrimination, and Hungary's, when Act V of 2025 deleted the ground from the Equal Treatment Act of 2003. Eleven series are rated low: Brazil, Greece, Lesotho, Malta, Mongolia, Norway, Portugal, Slovakia, Ukraine, the United Kingdom and the United States. Brazil's Year_of_First_Adoption is 2001, the year of a São Paulo state law. Its Year_of_National_Adoption is 2019, the year of the Supremo Tribunal Federal's judgment in ADO 26, which applied the racism law to homophobia and transphobia.

4.11 Goods/Services Discrimination - Sexual Orientation

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	66	1375	1991	2025	73

Question: Does a binding instrument prohibit discrimination on the ground of sexual orientation in the supply of goods, services, facilities and accommodations offered to the public?

Statuses

The policy takes a single status, Illegal, which records that a binding instrument prohibits discrimination on the ground of sexual orientation in the supply of goods, services, facilities and accommodations offered to the public. There is no Legal status, so a country-year without a qualifying prohibition is not coded under this policy.

Inclusion

A substantive row is based on a binding instrument that names sexual orientation and reaches the goods-and-services domain, or on a general instrument extended to that ground and domain by binding interpretation. A residual catch-all clause alone does not qualify (§3.1.2). The qualifying forms are:

- equality and anti-discrimination acts covering the supply of goods, services, facilities or public accommodations;
- penal-code provisions criminalising refusal of goods or services;
- constitutional equality guarantees applied to service provision;
- the enabling mandate of an equality body competent over such complaints.

Non-binding guidance, voluntary service-provider codes and an instrument confined to employment create no row here.

Status Assignment

Illegal is assigned for every year a qualifying prohibition covering the field is in force, whatever the remedy attached, so criminal, administrative, civil and public-sector-only regimes take the same Status. A repeal, or an amendment removing goods and services from the fields covered, ends the series.

Coverage

Proportion measures the legal reach of the prohibition, not the share of claimants who obtain redress. In five countries the series is subnational, based on the laws of their states, provinces, Länder or nations: Austria, Brazil, Canada, the United Kingdom and the United States. The Austrian series is based on the anti-discrimination laws of the Länder (Landes-Antidiskriminierungsgesetze), because Part III of the federal Equal Treatment Act (Gleichbehandlungsgesetz) reaches only ethnicity and sex in the supply of goods and services. The United States series is based on state public-accommodations statutes, because the Supreme Court's judgment in Bostock v. Clayton County (2020) interprets Title VII of the Civil Rights Act of 1964, which governs employment only.

Fields

Sexes_Covered takes 1.00 throughout. Policy_Scope records the enforcement mechanism in four categories:

- 'Civil remedy': a claimant may obtain damages or equivalent civil relief.
- 'Administrative enforcement only': an equality body, inspectorate or regulator imposes fines or orders.
- 'Public sector only': the prohibition binds state and publicly funded providers but not private suppliers.
- 'Criminal penalty': refusal of service on the ground is a punishable offence.

Policy_Scope is empty if the cited instrument specifies no mechanism, for example in Ecuador for 1998–2008 and in Portugal and Uruguay from 2004 (§3.11.2). Evidence_of_Enforcement

takes 1.00, 0.75, 0.50 and 0.00 on the scale of §3.7.3. Max_Punishment is not used. Fine_Amount records the fine that the instrument attaches to the discriminatory act.

Dating and Years

The establishing instrument is the first substantive instrument prohibiting sexual orientation discrimination in the supply of goods and services (§3.3.1). A later re-enactment, consolidation or transposition of a European directive does not change it if a domestic prohibition already reached the ground and the field. If one equality act covers several fields, the series is dated to that act's articles on the supply of goods and services, independently of the employment series (for example §§ 19–21 of Germany's General Equal Treatment Act, AGG, and art. 7 of the Netherlands' General Equal Treatment Act, AWGB). If separate instruments cover the fields, each series is dated to its own instrument (for example Ireland, employment 1993 and goods and services 2000; Croatia, the Labour Act amendment and the Gender Equality Act, both of 2003).

Policy-Specific Rules

Qualification depends on the reach of the instrument, not the body of law in which it appears: a penal, civil, consumer or administrative code, a constitutional guarantee, or an equality body's mandate qualifies if it reaches refusal or unequal supply on the ground. An interpretation extends a general instrument only if it binds the jurisdiction. A prohibition confined to public providers still qualifies (§3.1.5).

Exceptions

Malta: the series begins in 2012 with Act IX of 2012, which inserted the ground into the definition of discrimination in the Equality for Men and Women Act (Cap. 456). Act IV of 2009, an earlier amendment of that Act, does not name sexual orientation (§3.1.2). Costa Rica: the series is based on art. 48 of the General Law on HIV/AIDS (Ley 7771 of 1998), a general penal prohibition of discrimination that names 'opción sexual' (sexual option) among its grounds. United States: coverage remains fractional through 2025, so Year_of_First_Adoption is filled and Year_of_National_Adoption is empty (§3.2.3). France: the series is dated to 1985, when Law No. 85-772 added discrimination on grounds of 'mœurs' (morals) to the Penal Code's offence of refusing a good or a service. I read 'mœurs' as naming sexual orientation, which Law No. 2001-1066 later added beside it.

4.12 Goods/Services Discrimination - Gender Identity

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	50	683	1993	2025	66

Question: Does a binding instrument prohibit discrimination on gender identity grounds in the supply of goods, services, facilities and public accommodations?

Statuses

The policy takes a single Status, Illegal, which records that a binding instrument prohibits discrimination on gender identity grounds in the supply of goods, services, facilities and public

accommodations. The earliest series begins in 1993, with the amendment of the Minnesota Human Rights Act in the United States. The series run to 2025. There is no Legal status, so a country-year without a qualifying prohibition is not coded under this policy.

Inclusion

A substantive row is based on a binding instrument reaching gender identity discrimination in the supply of goods, services, facilities or public accommodations. The instruments that begin the series take these forms:

- equality and anti-discrimination acts
- goods-and-services provisions of civil and administrative codes
- constitutional equality guarantees (Cuba, Ecuador, Fiji)
- penal-code provisions criminalising refusal of goods or services (Bolivia, France Art. 225-1, Honduras, Iceland, Luxembourg, Mongolia, San Marino, Spain)

No series begins with the statutory mandate of an equality body. Neither an instrument confined to employment, education or housing nor a code of practice, ministerial guidance without legal effect, or a service-provider policy creates a row here.

Status Assignment

A series takes Illegal for every year a binding prohibition covering the supply of goods and services is in force, whatever remedy it attaches. Policy_Scope records the remedy, so a regime enforced only through administrative sanctions takes the same status as one providing a full civil remedy. A repeal, or a narrowing that drops goods and services, ends the series.

Coverage

Proportion records how far the prohibition legally reaches, not how many claims are upheld (§3.4.1). Coverage is subnational in Brazil, Canada and the United States and national elsewhere.

Fields

Sexes_Covered takes 1.00 throughout. Policy_Scope, where filled, records the enforcement mechanism and takes four values (§3.11.2):

- ‘Civil remedy’: a claimant may bring proceedings and obtain damages or equivalent relief.
- ‘Administrative enforcement only’: enforcement runs through an equality body, inspectorate or regulator imposing fines or orders, not through a private action.
- ‘Criminal penalty’: refusal of service on the ground is a punishable offence (for example Greece 2016–2023, Law 4443/2016 Art. 11(1)).
- ‘Public sector only’: the prohibition binds public bodies alone (El Salvador, the only such series).

Max_Punishment is not used. Fine_Amount records the fine that the instrument attaches to the discriminatory act.

Dating and Years

If one equality act covers several fields, the goods-and-services series is dated to that act's provisions on the supply of goods and services, independently of the fields coded under other policies. The first years of the employment and goods-and-services series for gender identity differ in Australia, Bolivia, Fiji, France, Iceland, the Netherlands, Norway, Peru, Portugal and the United Kingdom. Seven countries have an employment series with no goods-and-services series (Argentina, Colombia, Costa Rica, Lesotho, Liberia, Suriname and Ukraine), while every country with a goods-and-services series also has an employment series. Year_Law_Changed records the signing year of a repeal and of a later instrument that changes the coverage, the remedy category or the stated fine (§3.2.7).

Policy-Specific Rules

Most instruments name the ground. Others reach it through the interpretation of a ground they do name. Germany's series is based on the term 'sexuelle Identität' (sexual identity) in the General Equal Treatment Act (AGG), which the government's explanatory memorandum reads as covering transsexual persons (Bundestag document 16/1780, p. 31), together with the reading of 'Geschlecht' (sex) in line with European Union law. Such an interpretation need not come from an apex court or from the Court of Justice of the European Union. The Netherlands' series is based on the first opinion in which the national equality body, the College voor de Rechten van de Mens, applied the ground of sex to gender identity in the supply of goods and services (opinion 2014-64 of 22 May 2014). An amendment of 2019 (Staatsblad 2019, 302) later wrote that reading into the Act. Norway's series is based on the Equality and Anti-Discrimination Ombud's case 06/1107 of 2006. New Zealand has no series because no court or tribunal has held that gender identity falls under the ground of sex in s 21 of the Human Rights Act 1993. Neither the Human Rights Commission's formal statement of 24 February 2005 nor the Crown Law Office opinion of 2006 is a binding application of that ground. Under the general rule on the reach of the instrument (§3.1.2), a residual catch-all clause with no interpretation reaching the ground does not qualify.

Exceptions

Mexico and Peru are the cases in which a general instrument qualifies through a residual catch-all clause (§3.1.2). Mexico's series is based on the federal anti-discrimination law (Ley Federal para Prevenir y Eliminar la Discriminación, LFPED) as reformed on 20 March 2014. The law names 'identidad de género' in no version, so the series is based on its ground 'el género' read together with its residual clause 'cualquier otro motivo' (any other reason). The reform begins the series, so Year_Law_Changed is empty (§3.2.7). Peru's series is based on art. 38.1 of the Consumer Protection Code of 2010, whose residual clause 'o de cualquier otra índole' (or of any other kind) the consumer protection authority INDECOPI applies to gender identity discrimination by suppliers. The series begins in 2014 with Resolución 1197-2014/SPC-INDECOPI, the earliest known decision that applies the clause to gender identity (§3.1.2). Policy_Scope is empty if the cited instrument states no mechanism (§3.11.2), for example in Cuba (2019–2021), Fiji (from 2013), India (from 2019), Pakistan (from 2018) and Uruguay (from 2004). Two series end with a repeal in 2025: Georgia's, when Law No 430 of 2 April 2025 removed gender identity from the Law on the Elimination of All Forms of Discrimination, and Hungary's, when Act V of 2025

deleted the ground from the Equal Treatment Act of 2003. Brazil's Year_of_First_Adoption is 2001, the year of a São Paulo state law. Its Year_of_National_Adoption is 2019, the year of the Supremo Tribunal Federal's judgment in ADO 26, which applied the racism law to homophobia and transphobia.

4.13 Conversion Therapies

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	25	195	1999	2025	47

Question: Does a binding instrument prohibit the practice, provision or promotion of interventions intended to change sexual orientation or gender identity?

Statuses

The policy takes a single Status. Illegal records that a binding instrument prohibits the practice, provision or promotion of interventions intended to change sexual orientation or gender identity. There is no Legal status, so a country-year without a prohibition is not coded under this policy and is not read as permitting the practice.

Inclusion

A substantive row is based on an instrument with legal force. The instruments that create a row take five forms:

- criminal-code provisions and prohibiting statutes (for example Belgium's Loi of 31 July 2023, Cyprus's Law 39(I)/2023, France's Loi 2022-92, Malta's Act LV of 2016 and Norway's Act LOV-2023-12-20-113)
- mental-health statutes that forbid a diagnosis based on sexual orientation or gender identity (Argentina's National Mental Health Law, Ley 26.657, Fiji's Mental Health Decree 2010 and Paraguay's Mental Health Law, Ley 7018 of 2022)
- health-ministry decrees, circulars and interpretive letters binding licensed providers (Chile's Ministry of Health Circular B2/N 06 of 10 March 2023, Ecuador's Ministry of Health Acuerdo Ministerial 767, the circular of Israel's Ministry of Health Director-General of 14 February 2022 and the letter of Taiwan's Ministry of Health and Welfare Wei-Bu-Yi-Zi No. 1071660970 of 22 February 2018)
- binding instruments of professional councils (Brazil's Federal Council of Psychology, Resolução CFP 001/1999, and India's National Medical Commission, notification of 25 August 2022)
- subnational statutes and regulations of the same character

Non-binding guidance of professional associations, non-binding parliamentary declarations, motions and bills not adopted create no row (§3.1.1).

Status Assignment

A series takes Illegal if the instrument prohibits conversion practices for at least one category of provider or one category of recipient; Policy_Scope records the limitation. The legal character of the instrument does not bear on assignment: criminal statutes, ministerial and professional-council regulation and provider-licensing statutes alike take Illegal.

Coverage

Proportion is the population share of the jurisdictions in which a qualifying prohibition is in force. Six countries have subnational coverage: Australia, Canada, Mexico, Spain, Switzerland and the United States. The Swiss series counts Neuchâtel (2 May 2023), Vaud (29 October 2024) and Valais (14 November 2024) from their adoption years, each weighted by its share of the population in the federal census of 2000. Fribourg, where only a motion was passed, and Geneva, where a bill remains in committee, are not counted. A limitation to minors or to one category of provider does not reduce Proportion (§3.4.1).

Fields

Max_Punishment is taken from the prohibiting instrument (§3.6.1):

- 'Fine or other non-prison penalty' if the sanction is a fine, a licence sanction or another penalty without prison.
- The maximum prison term if the ban is criminal.
- Empty in the four series whose instrument states no sanction (Argentina, Chile, Fiji and Paraguay) and in Taiwan's, whose instrument, a letter of the Ministry of Health and Welfare, could not be obtained (§3.6.2).

Sexes_Covered takes 1.00 throughout. Policy_Scope records how far the prohibition reaches, whatever its sanction, in four categories:

- 'Licensed professionals only': prohibitions binding regulated clinicians.
- 'Ban for all persons': prohibitions reaching any provider.
- 'Ban for minors': prohibitions limited to minors.
- 'One service setting only': prohibitions confined to a service setting.

The kind of sanction is recorded in Max_Punishment and enters the index through it, so a ban enforced by administrative fines and a criminal ban of the same reach take the same Policy_Scope label. Evidence_of_Enforcement takes three values. A ban applies without an enforcement act, so its default is 1.00 (§3.7.1). It takes 0.50 where a source documents that the ban is only partly applied (§3.7.3) and 0.00 in the years before an adopted instrument entered into force (§3.2.6).

Dating and Years

Each instrument is dated to its adoption year. A subnational jurisdiction joins the covered set in the adoption year of its own instrument (§3.4.3). An indirect ban is a mental-health law that forbids a diagnosis based on sexual orientation or gender identity, and so bars treatment aimed at

changing them. It is dated to that law, not to a later instrument stating the prohibition in express terms. The Source_1 cells of the Fiji and Paraguay series state that the ban is indirect.

Policy-Specific Rules

Direct bans and indirect bans through a mental-health law both take Illegal. Because an indirect ban binds health professionals, it takes 'Licensed professionals only'. The instrument need not use the term conversion therapy. 'One service setting only' marks a prohibition confined to a service setting, not one confined to advertising.

Exceptions

The series for Israel and Taiwan are based on health-ministry instruments that bind licensed providers although they are neither statutes nor regulations (§3.1.1): the circular of Israel's Ministry of Health Director-General of 2022 and the letter of Taiwan's Ministry of Health and Welfare of 2018. Israel's Knesset bills of 2016, 2017 and 2020 were not enacted and create no row. The series for Brazil and India are based on instruments of professional councils that bind licensed practitioners. Ecuador, whose ban reaches the offering and practice of the treatment in rehabilitation centres, takes 'One service setting only'. Spain takes 'One service setting only' for 2009–2015, when the largest community with a ban (Navarra, then Canarias) confined it to its health service, and 'Ban for all persons' from 2016, when the largest community with a ban prohibited the practice for any provider (Madrid, Ley 3/2016, art. 70.4.c; Andalucía, Ley 8/2017, art. 6.2), as the national Ley 4/2023 (art. 17) does from 2023. Greece's series takes 'Ban for minors' under art. 62 of Law 4931/2022, which prohibits conversion practices on minors and on adults under judicial support, requires the express consent of any other person subjected to them and forbids their promotion and advertising. Australia's series takes 'Ban for all persons' with Proportion 0.453301 in 2021, because only some states and territories had adopted a prohibition by then.

4.14 Religious Exemption Laws

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	6	155	1991	2025	80

Question: Is a religious or conscience exemption in force that permits refusal of a service, an office or a statutory obligation on an LGBTI ground?

Statuses

One status is coded, Legal, which records that a religious or conscience exemption permitting refusal of a service, an office or a statutory obligation on an LGBTI ground is in force in the country-year. There is no opposing status, so a country-year with no qualifying exemption is not coded under this policy.

Inclusion

The exemption must reach an LGBTI ground (§3.5.3). Two forms establish a row:

- a religious carve-out written into anti-discrimination law (Australia, religious-body exceptions in state anti-discrimination acts; United Kingdom, Employment Equality (Sexual Orientation) Regulations 2003 reg 7(3));
- a religious exemption written into a marriage statute (Canada, Civil Marriage Act 2005 ss 3 and 3.1; New Zealand, Marriage Act 1955 s 29(2); United States, exemptions embedded in state marriage-equality statutes from Vermont 2009).

An organised-religion exception limited to the grounds of sex or belief establishes no row. Outside the United States, whose state series also counts the conscience and religious-freedom statutes listed under the policy-specific rules, no series is based on a freestanding conscience or religious-freedom statute, on a constitutional provision, or on a binding ruling.

Status Assignment

Legal is assigned from the adoption year of the establishing instrument and runs until repeal or invalidation. Neither the breadth of the class entitled to refuse nor the range of services covered is a threshold: a right of religious officials alone to refuse to solemnise a marriage establishes a series at Proportion 1.0, as does an exemption of religious organisations from the ban on sexual orientation discrimination in employment. No column records how broad the exemption is.

Coverage

Proportion is the share of the national population living under jurisdictions in which a qualifying exemption is in force. It takes 1.0 for a national instrument and is fractional in three countries: Australia and the United States, where exemptions are enacted by states or territories, and the United Kingdom, where the exemption reaches only part of the country because the 2003 Regulations extend to Great Britain only.

Fields

Max_Punishment is empty, because the exemption imposes no penalty on anyone. Fine_Amount takes No, because the instruments confer a right to refuse and impose no monetary penalty. Sexes_Covered takes 1.00 throughout. Evidence_of_Enforcement takes 1.00 on every row in force (§3.7.1), because the exemption is a defence that the person refusing can invoke without any act of enforcement by the state.

Dating and Years

The establishing instrument is the earliest one whose exemption reaches an LGBTI ground (§3.3.1), which dates all six series: Australia from New South Wales 1982, Canada 2005, New Zealand 2013, Norway 1998, the United Kingdom 2003 and the United States from Massachusetts and the District of Columbia 1989. A general religious exception enacted earlier alongside a sexual orientation ground does not date the series earlier. Consolidation of an exemption into a later act leaves the series dated to the original instrument (United Kingdom, Equality Act 2010 Sch 23). If one instrument contains both a clergy-refusal provision and a broader exemption, the citation names both. No column records which of the two establishes the series.

Policy-Specific Rules

The exemption is coded as in force from its adoption whether or not it has been invoked. No column records whether it has been invoked. An exemption does not reduce the coverage of the anti-discrimination policy it qualifies, because that policy is coded from its own instrument. A marriage-equality statute that contains the exemption establishes a row in each policy. In the United States the state series counts the following:

- religious carve-outs in state anti-discrimination law, from the adoption of the act adding the ground, so that a general religious-organisation clause older than the ground counts from that act;
- exemptions and refusal rights in marriage and civil union statutes, whether or not tied to religion;
- instruments directed at same-sex couples or LGBTI people: marriage-law refusal clauses (North Carolina 2015, Texas 2015, Florida 2016), counsellor and child-placing conscience laws (North Dakota 2003, Tennessee 2016), the Mississippi conscience act of 2016, and the Arkansas religious-freedom act of 2015 enacted in response to same-sex marriage.

Indiana's religious-freedom act of 2015 does not count: its companion amendment (Senate Enrolled Act 50), in force from the same date, provides that it authorises no refusal on the ground of sexual orientation or gender identity. Generic state religious-freedom restoration acts are not counted.

Exceptions

New Zealand: the series begins in 2013 with s 29(2) of the Marriage Act 1955, inserted by the Marriage (Definition of Marriage) Amendment Act 2013, rather than in 1993 with s 28 of the Human Rights Act 1993, an employment exception for organised religions that does not reach an LGBTI ground (§3.5.3). Canada: the series is based only on the right of religious officials to refuse to solemnise a marriage (Civil Marriage Act 2005, s. 3), which qualifies although it reaches no commercial service (§3.5.3). United Kingdom: the series is based on the Employment Equality (Sexual Orientation) Regulations 2003, secondary legislation that remains the establishing instrument after the Equality Act 2010 consolidated the exemption (§3.3.1). Australia: the exceptions for religious bodies in state laws that reach sexual orientation establish coverage, while the Tasmanian exceptions, which permit discrimination on religious belief alone, do not. United States: coverage is based on state instruments and is fractional. The series begins in 1989 with Massachusetts and the District of Columbia. Norway: the series begins in 1998 with § 55 A of the Working Environment Act, which exempted posts in religious communities from the ban on sexual orientation discrimination in hiring. From 2008 it is also based on the exemption for officiants in the Marriage Act.

4.15 Gender Assignment Surgeries on Children

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	12	95	1999	2025	14

Question: Does a binding instrument prohibit or condition deferrable sex-assignment or sex-characteristic-modifying surgery on children?

Statuses

The policy takes a single Status, Illegal, which records that a binding instrument prohibits or conditions deferrable sex-assignment or sex-characteristic-modifying surgery on children. The Legal rows of this policy are all-zero placeholders (§1.1). The earliest series begins in 1999, with the Colombian Constitutional Court's judgments, because no qualifying instrument was in force anywhere before that year. A country-year that is not coded records the absence of a prohibition, not a permission.

Inclusion

A row is based on a binding instrument that bars or conditions the procedures. Instruments regulating consent or authorisation qualify alongside outright bars:

- the Colombian Constitutional Court's requirement, in judgments SU-337/99 and T-551/99, of qualified and persistent informed consent, which the sources describe as a procedural restriction rather than an absolute ban
- Kenya's conditional restriction (Children Act No. 29 of 2022 s. 23(1)(f), organ change or removal barred except on a medical geneticist's advice)
- Germany's Act on the Protection of Children with Variants of Sex Development of 2021 (§ 1631e of the Civil Code), which bars such surgery unless a family court authorises it
- Cuba's requirement that a 'grupo asistencial multidisciplinario' certify an imminent danger to life (Ley 178/2025, art. 79.4)
- Greece's Law 4958/2022, arts. 17-20, which allow the interventions from age 15 only with consent, a committee opinion and court authorisation

The forms represented are statutes, constitutional-court judgments and administrative or executive instruments with legal force, the last including a health-ministry circular (Chile, Circular No. 15 of 2023 of the Ministry of Health, MINSAL, issued under Ley 21.430) and a state executive order (India, Government Order Ms. No. 355 of 2019 of the state of Tamil Nadu). No row is based on a hospital protocol, a professional ethics code, a non-binding parliamentary declaration, or a treaty-body or national-human-rights-institution recommendation. Such material appears only as evidence of contrary practice in later Source columns (Germany, Greece, Malta, Portugal).

Status Assignment

A series takes Illegal for every year the instrument is in force, whether the sanction attached is criminal, administrative or professional. The prohibited category turns on the child's incapacity to consent and on the deferrability of the intervention. Neither element is expressed uniformly: deferrability appears as deferrable (Malta), non-emergency (Chile), and life-threatening, health-risk, medical-necessity, vital-risk and functional-disorder exceptions (India, Portugal, Spain, Cuba, Germany). Incapacity appears as the child's own consent (Germany, Malta) or as a minimum age of 12 (Spain), 15 (Greece) or 16 (Iceland). No establishing instrument reaches only adults or only cosmetic surgery unrelated to sex characteristics.

Coverage

Proportion records the reach of the prohibition. Coverage is subnational in India, where the instrument is a state government order, and in Spain until 2023, where regional prohibitions preceded Ley 4/2023; elsewhere it is national.

Fields

Sexes_Covered takes 1.00 throughout. Policy_Scope is not used. Max_Punishment is coded as follows (§3.6.1):

- Empty if the prohibiting instrument states no sanction (Chile, Colombia, Cuba, Germany, Iceland, India, Portugal, Uruguay, and Spain's regional laws of 2016–2022) or only a minimum prison term (Greece, Kenya).
- 'Fine or other non-prison penalty' for a fine or a professional or administrative sanction without prison (Spain from 2023, whose national law states a fine; Malta for 2015–2017).
- 5 years in Malta from 2018, when Act XIII of 2018 added criminal sanctions.

Fine_Amount records the fine that the instrument states, if it states one.
Evidence_of_Enforcement takes the default of 1.00 for rules that apply without an enforcement act (§3.7.1), lowered to 0.50 in the four series in which the procedures are documented as continuing under the prohibition: Germany, Greece, Malta and Portugal.

Dating and Years

The year of a constitutional-court judgment that establishes the prohibition is the adoption year, which a later reaffirming judgment does not reset: Colombia's Year_of_First_Adoption and Year_of_National_Adoption remain 1999 after T-622/2014. An implementing instrument that follows a judgment in the same year dates the adoption year: India's is dated to the Tamil Nadu Government Order, not to the Madras High Court judgment of 22 April 2019.
Year_Law_Changed records a later amendment to the operative content (§3.2.7), as with Malta's 2018 addition of criminal sanctions to the 2015 Act.

Policy-Specific Rules

Max_Punishment records the penalty for breaching the ban, which may fall on the operating clinician (§3.6.1), and is empty if the instrument states no penalty or only a minimum term. Colombia's is the only series of this policy dated to a judgment.

Exceptions

Colombia's series is based only on the requirement that the child be able to consent: the judgments that establish it do not ask whether the surgery could be deferred. Greece's instrument permits the intervention from age 15 with consent, a committee opinion and court authorisation, so it is included, like Kenya's, Germany's and Cuba's, as an instrument that conditions the procedures. India's Year_of_National_Adoption is empty because coverage never reaches 1.0 (§3.2.3). Three series take Evidence_of_Enforcement 0.00 in the year between adoption and entry into force (§3.2.6): Cuba (2025), Iceland (2020) and Uruguay (2017).

4.16 Hate Crime Protections - Sexual Orientation

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	68	956	1991	2025	71

Question: Does the law attach a distinct penal consequence to an offence committed because of the victim's sexual orientation, through aggravation, reclassification or a separate bias offence?

Statuses

The policy takes one status, Legal, which records that the law attaches a distinct penal consequence to an offence committed because of the victim's sexual orientation, through aggravation, reclassification, or a separate bias offence. A country-year without such a provision is not coded under this policy.

Inclusion

A substantive row is based on an instrument with penal force under which an offence committed because of the victim's sexual orientation is punished more severely or differently:

- a penal-code article listing the ground among aggravating circumstances;
- a standalone hate-crime offence;
- a sentencing statute directing enhanced punishment if the motive is proven;
- an apex or constitutional court ruling bringing the ground within an existing bias clause; or
- a binding prosecutorial directive.

Recording protocols, monitoring mandates, action plans, circulars and training directives do not qualify. Provisions penalising incitement, threats or public expression of hatred belong to Incitement to Hatred.

Status Assignment

Legal is assigned for each year a qualifying instrument is in force. The test is whether sexual orientation bias changes the legal treatment of the underlying offence, through a raised sentencing range, a mandatory aggravating factor, a distinct offence or a reclassification, not whether the motive is recorded or weighed at the court's general discretion. The series ends on repeal or when a later instrument no longer reaches the ground.

Coverage

Proportion is the population share living under a jurisdiction whose criminal or sentencing law contains the provision. Five countries have subnational series: Australia, Bosnia and Herzegovina, Mexico, the United Kingdom and the United States. The Mexican series is built from the state penal codes: an entity counts from the adoption year of the provision raising the penalty for homicide, or for injuries alone, by reason of the victim's sexual orientation or sexual preference, drafted either as a qualifying circumstance or as a named offence. Coverage is the combined share of the adopting entities in the population of the 2000 census of the national statistics institute (INEGI), which is 0.832 in 2025. A qualifier of 'odio' (hatred) or

'discriminación' that does not name the ground, a residual clause and aggravating circumstances attached to other offences do not count.

Fields

Sexes_Covered takes 1.00 throughout, because a provision naming the ground protects same-sex-attracted men and women alike. Evidence_of_Enforcement takes 1.00, 0.75, 0.50, 0.25 and 0.00 on the scale of §3.7.3. Evidence of use is the application of the provision in charging and sentencing, not general policing of violence against LGBTI people. The policy uses no scope, penalty or fine column.

Dating and Years

If two instruments make the motive count, the series is dated to the earlier (§3.3.1). In Mexico each entity is dated to the adoption year of its own code provision. The United States series is based on state law until the federal Matthew Shepard and James Byrd Jr. Hate Crimes Prevention Act of 2009 takes it to 1.0. The Bosnian series begins with the amendments of 2010 to the criminal codes of Republika Srpska and the Brčko District and reaches 1.0 with the amendment of 2016 to the code of the Federation of Bosnia and Herzegovina (Official Gazette of the Federation 46/16). Australia's series is based on the state sentencing aggravators that name the ground (New South Wales 2002, South Australia 2021, Queensland 2023, Tasmania 2025) and does not reach 1.0.

Policy-Specific Rules

The object of the provision separates this policy from Incitement to Hatred: a rule raising the penalty for an offence against a person is coded here, while a rule penalising the expression itself is coded there. A country whose law contains both has a series in each. Both series may be dated to one instrument.

Exceptions

Netherlands: the series is based on the Public Prosecution Service's binding directive on discrimination (Aanwijzing discriminatie), which raises the sentence that prosecutors demand by 25 per cent (§3.1.1). Art. 44bis of the Penal Code (Wetboek van Strafrecht) wrote the aggravation into statute in 2025. New Zealand and Samoa: sentencing statutes make the motive a mandatory aggravating factor without raising the available range. Germany: the series is based on § 46(2) of the Criminal Code (StGB), the general sentencing clause, which names motives directed against sexual orientation from 2023. Iceland, Norway, Slovenia, Sweden and Uruguay: the hate-speech provision is assigned to Incitement to Hatred, while this series is dated to a separate provision. Brazil: the series in both policies are dated to one judgment, the Supremo Tribunal Federal's ruling in ADO 26 / MI 4733 of 2019. Australia: the vilification offences of the states and the Commonwealth offences of advocating or threatening force or violence against groups (Criminal Code ss 80.2A-80.2BA as amended in 2025) penalise the expression itself and are coded under Incitement to Hatred. The sentencing provisions of Victoria and the Northern Territory do not name the ground, while the Australian Capital Territory has none. The Commonwealth urging-violence offences of 2010, confined to race, religion, nationality and political opinion, are not counted.

4.17 Hate Crime Protections - Gender Identity

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	50	532	1998	2025	50

Question: Does the law attach a distinct penal consequence to an offence committed because of the victim's gender identity, through an aggravating circumstance, a sentencing enhancement or a distinct bias-motivated offence?

Statuses

The policy takes one status, Legal, which records that the law attaches a distinct penal consequence to an offence committed because of the victim's gender identity, through an aggravating circumstance, a sentencing enhancement or a distinct bias-motivated offence. A country-year without such a provision is not coded under this policy.

Inclusion

A substantive row is based on a binding penal or sentencing instrument under which an offence committed because of the victim's gender identity is punished more severely or differently:

- an aggravating-circumstance clause naming the ground;
- a standalone bias-crime offence (Uruguay, San Marino);
- a sentencing statute making the motive a mandatory aggravating factor (New Zealand, Samoa, Sweden); or
- a judgment of an apex court that reads the ground into a listed category (Brazil).

The ground must be named in the list of grounds, included in the statutory definition of a listed term (Ireland, Criminal Justice (Hate Offences) Act 2024 s. 3; South Africa, Act 16 of 2023), or read into the list by a binding judgment. Incitement provisions belong to Incitement to Hatred. Data-collection mandates, recording protocols and prosecutorial guidance containing no substantive aggravation or offence do not qualify.

Status Assignment

Legal is assigned for every year a qualifying provision is in force, whatever its form. The test is whether the bias changes the legal treatment of the offence, not whether the motive is recorded or weighed at the court's general discretion. A repeal or invalidation ends the series.

Coverage

Proportion measures how far the provision legally reaches, not the rate at which bias motivation is charged or proven. Four countries have subnational series: Australia, Mexico, the United Kingdom and the United States. The Mexican series is built from the state penal codes: an entity counts from the adoption year of the provision raising the penalty for homicide, or for injuries alone, by reason of the victim's gender identity, whether drafted as a qualifying circumstance or as a named offence. Coverage is the combined share of the adopting entities in the population of the 2000 census of the national statistics institute (INEGI), which is 0.703 in 2025. A qualifier of

‘odio’ (hatred) or ‘discriminación’ that does not name the ground, a residual clause, the words ‘género’ or ‘sexo’ alone, and aggravating circumstances attached to other offences do not count.

Fields

Sexes_Covered takes 1.00 throughout, because the provisions reach all persons targeted on the ground and are not restricted by recorded sex. Evidence_of_Enforcement takes 1.00, 0.75, 0.50, 0.25 and 0.00 on the scale of §3.7.3. A value of 1.00 records documented prosecutions or sentences on the ground. The policy uses no scope, penalty or fine column.

Dating and Years

If two instruments make the motive count, the series is dated to the earlier (§3.3.1). Belgium’s is dated to the Law of 14 January 2013, which added a change of sex to the aggravating motives of art. 405quater of the Penal Code, not to the amendment of 2022. Uruguay’s is dated to Ley 17.677 of 2003, which created the offence of art. 149ter of the Penal Code, not to the homicide aggravator of 2017. Ecuador’s is dated to the reform of the Penal Code of 2009, not to the Comprehensive Organic Criminal Code (COIP) of 2014. Greece’s is dated to Law 4285/2014, not to the renumbering of the provision by Law 4619/2019. Honduras’s is dated to Decreto 23-2013, not to the Penal Code of 2019. In Mexico each entity is dated to the adoption year of its own code provision. The United States series begins in 1998 with a California statute and reaches 1.0 in 2009 with the federal Matthew Shepard and James Byrd Jr. Hate Crimes Prevention Act. The Australian series is based on the state sentencing aggravators that name gender identity (South Australia 2021, Queensland 2023, New South Wales 2024, Tasmania 2025) and does not reach 1.0. The Commonwealth Act of 2025 adds the ground to offences of advocating or threatening violence, which are coded under Incitement to Hatred. The United Kingdom series does not reach 1.0 and has no Year_of_National_Adoption.

Policy-Specific Rules

A general aggravation clause qualifies only if gender identity is named in it, included in the definition of a term it names, or read into it by a binding judgment. A listed ground counts on its own terms even where the list ends with a residual clause (Cuba, El Salvador), while a residual clause alone never does (§3.1.2).

Exceptions

Germany: the series is based on § 46(2) of the Criminal Code (StGB), the general sentencing clause, as amended in 2023. Gender identity is covered because the government’s explanatory memorandum reads the clause to include it, not because the clause names it or a court has read it in (§3.1.2). Mongolia: the series is based on Criminal Code art. 10.1 s. 2.14, the homicide aggravation for hatred on grounds that include ‘хүйсийн чиг баримжаа’ (gender orientation), which arts. 11.1, 11.4 and 11.6 apply to bodily injury. I treat the term as naming the ground under the rule of the Employment Discrimination - Gender Identity entry (§4.10). Brazil: the series in both policies are dated to the Supremo Tribunal Federal’s judgment in ADO 26 / MI 4733 of 2019. Cyprus: the incitement offence is assigned to Incitement to Hatred, while the hate-crime series is dated to art. 35A of Law 31(I)/2017. Colombia: the series is based on the

Constitutional Court's judgment C-257/16 (18 May 2016), which reads 'sexo' (sex) in the aggravating circumstances of art. 58.3 of the Penal Code to cover gender identity.

4.18 Incitement to Hatred

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	53	899	1991	2025	58

Question: Is public incitement to hatred, hostility, violence or discrimination against people on the ground of sexual orientation unlawful and subject to an enforceable sanction?

Statuses

The policy takes one status, Legal, which records that public incitement to hatred, hostility, violence or discrimination against people on the ground of sexual orientation is unlawful and subject to an enforceable sanction. A country-year without such a prohibition is not coded under this policy.

Inclusion

A substantive row is based on an instrument making anti-LGBTI incitement or hate expression unlawful with a sanction attached:

- a criminal-code article penalising public incitement to hatred, hostility, violence or discrimination;
- a press, broadcasting or audiovisual statute prohibiting such content under regulatory penalty; or
- an anti-discrimination act creating an actionable prohibition on incitement or hate-based harassment.

Sexual orientation is named expressly in the establishing provision or in a statutory definition the provision incorporates (Andorra, Penal Code art. 338.1 read with art. 30.6; North Macedonia, art. 9 of the 2020 anti-discrimination law read with its art. 5). A group or residual clause does not by itself create a row (§3.1.2). Sentencing aggravators for bias-motivated offences against a person belong to Hate Crime Protections. Self-regulatory media codes, ethics charters, platform terms, non-binding declarations and constitutional dignity clauses without an operative prohibition do not qualify.

Status Assignment

Legal is assigned for each year a qualifying prohibition is in force. The test is whether the instrument renders the expression itself unlawful and attaches a sanction to the person who incites. The sanction may be criminal, civil or administrative. The enforcement route does not alter Status. Prohibitions reaching a group or a member of it satisfy the test, as do group-defamation and hateful-insult offences, while a provision addressing defamation of an individual rather than hatred defined by reference to a protected ground does not.

Coverage

Proportion is the population share living under a jurisdiction whose law contains the qualifying prohibition. Three countries have subnational series: Australia, Bosnia and Herzegovina and the United Kingdom. In each, criminal law, media regulation or anti-vilification law is set by the constituent units. In Bosnia and Herzegovina I do not read the entity provisions covering national, racial and religious hatred alone as reaching sexual orientation, so Proportion is confined to the share of the units whose codes name the ground (Republika Srpska from 2017, Brčko District from 2024).

Fields

Sexes_Covered takes 1.00 throughout, because prohibitions reaching sexual orientation cover expression targeting same-sex-attracted men and women alike. Max_Punishment is not used, because it records a penalty borne by an LGBTI person (§3.6.1), while the penalty here falls on the person who incites. Evidence_of_Enforcement takes 1.00, 0.75, 0.50, 0.25 and 0.00 on the scale of §3.7.3. Evidence of use is the documented application of the prohibition to anti-LGBTI expression through prosecutions, regulator decisions or civil findings. The most common value is 0.75, the default for a prohibition whose use is undocumented (§3.7.1).

Dating and Years

The establishing instrument is the first domestic instrument prohibiting incitement on the ground of sexual orientation. A consolidating penal code, a re-enactment, an amendment or the transposition of a supranational instrument does not change it (§3.3.1). The Australian series reaches 1.0 in 2025 with the Commonwealth Criminal Code Amendment (Hate Crimes) Act 2025. The United Kingdom series begins in 2004 with Northern Ireland's Criminal Justice (No. 2) Order and reaches 1.0 in 2021 with Scotland's Hate Crime and Public Order Act (§3.2.2, §3.2.3).

Policy-Specific Rules

The object of the rule separates this policy from Hate Crime Protections: prohibitions on expression are coded here, while penalty enhancements for offences against a person are coded there. A country with both has a series in each, dated independently. Administrative anti-discrimination instruments containing no incitement prohibition create no row.

Exceptions

Serbia: the series begins with art. 11 of the Law on the Prohibition of Discrimination of 2009, a civil prohibition. Art. 387 of the Criminal Code, with its residual clause, is a further, criminal basis. South Africa: the prohibition is civil: s. 10 of the Promotion of Equality and Prevention of Unfair Discrimination Act 2000 (PEPUDA), enforced by the equality courts. Mexico: the prohibition is administrative: art. 9 of the federal anti-discrimination law (LFPED), enforced by the National Council to Prevent Discrimination (CONAPRED). San Marino: the provision names both sexual orientation and gender identity. Netherlands and Germany: the series are dated to offences of group defamation or hateful insult, not to incitement offences. Suriname: the amendment of the Penal Code of 2015 added sexual orientation to the group-insult offence of art. 175, whose grounds the incitement offence of art. 175a also applies. Brazil: criminal

liability comes from the Supremo Tribunal Federal's judgment in ADO 26 / MI 4733 of 2019, to which the hate-crime series is also dated.

4.19 LGB Military

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	34	670	1991	2025	0
Legal	61	1309	1991	2025	0

Question: Does a legal bar prevent lesbian, gay and bisexual people from serving in the national armed forces, or is service legally open regardless of sexual orientation?

Statuses

Illegal records a legal bar on lesbian, gay and bisexual people serving in the national armed forces, framed as an exclusion, a disqualification or a punishable offence. Legal records that service is legally open regardless of sexual orientation. The statuses exclude each other (§3.5.1). Neither is coded if no bar and no instrument opening service is documented, except that Denmark (1991–1995) and Sweden (1991–1998) are coded Legal from 1991 on the documented absence of a bar before their first instrument, and are rated low (§2.8).

Inclusion

A substantive row requires an instrument governing service eligibility (§3.1.4): a military justice or defence act, service conditions, a conscription or medical fitness regulation, an instrument repealing a bar, a directive opening service, or a ruling striking a bar down. A general criminal prohibition on same-sex conduct does not create a military row even if it reaches service members, so a country may have a Same-Sex Acts series with no row here. A general anti-discrimination instrument creates a Legal row if it expressly reaches service members or binds all state institutions, or every institution of the executive to which the armed forces belong (El Salvador, Executive Decree 56 of 2010). A criminal-code discrimination offence creates one only if its basic form is addressed to holders of public authority. Unit-level practice, informal screening and hostility unaccompanied by a legal bar do not create or change a row. A bar practised before its first located directive is coded from 1991 under the rule for regimes in force before their earliest citable instrument (§3.3.2).

Status Assignment

Illegal is assigned if an instrument in force bars LGB people from serving or penalises same-sex conduct among service members, whether by a military penal provision, an exclusion or discharge rule, or a disqualifying fitness criterion. Legal is assigned if service is legally open, by repeal of a bar, an affirmative directive or statute, or a binding ruling. The boundary is the existence of a legal bar, not observed treatment.

Coverage

Coverage is national throughout: armed forces are a national institution and the instruments governing eligibility and military discipline are national, so Proportion takes 1.0 on every row in force, Sub_National_Variation takes 0 and Sub_National_Coverage is empty.

Fields

Max_Punishment records the maximum penalty of the military-specific provision barring or penalising service and takes a determinate term if the provision punishes the service member. It is empty if the bar operates only by rejection or discharge, because an exclusion is not a penalty borne by the person; it is also empty on Legal rows. In the index an empty field on an Illegal row scores 0 (§5.2.3). Fine_Amount takes No if no fine attaches to that provision and is empty on Legal rows. Sexes_Covered takes 1.00 if the bar or the authorisation reaches men and women alike and 0.50 if the governing provision reaches one sex only. Evidence_of_Enforcement takes 1.00, 0.50 and 0.00, with a default of 1.00 for military policies (§3.7.1). The evidence of application is courts-martial, discharges and screening under a bar, or openly serving personnel under an open one.

Dating and Years

The establishing instrument is the earliest citable instrument governing service eligibility, so a colonial or Soviet-era predecessor that is inferred but cannot be cited does not date the series. An exclusion practised before its first directive is coded from 1991, the first year of the data, while its adoption year is that of the directive (§3.3.2). The years between adoption and Year_National_Implementation take Evidence_of_Enforcement 0.00 (§3.2.6), as in the United States in 2010, between the Don't Ask, Don't Tell Repeal Act of December 2010 and its entry into force in 2011, and in the Czech Republic in 2000. No year takes 0.00 if adoption and entry into force fall in the same year (Kosovo 2008, Serbia 2009).

Policy-Specific Rules

Max_Punishment records the penalty of the military-specific provision itself, not that of a civil offence incorporated into service law by a general incorporation clause (§3.6.1). A series based on an internal or unpublished instrument is still coded and is rated low (§2.8).

Exceptions

Tanzania: Max_Punishment takes 5 years under s. C.30 of the Code of Service Discipline of the National Defence Act 1966, which punishes 'disgraceful' conduct by a serviceman, not the life term of the Penal Code offence that s. C.65 brings into military law (§3.6.1). Peru: Max_Punishment takes 20 years, the maximum term of 'prisión' under art. 26 of the Code of Military Justice of 1980 (Código de Justicia Militar). Iraq: Max_Punishment takes 5 years under art. 76 of the Military Penal Code read with para. 88 of the Penal Code. Malaysia: the establishing instrument is s. 83 of the Armed Forces Act 1972, which punishes 'disgraceful conduct of an indecent or unnatural kind', not the Penal Code offences that s. 88 brings into military law. Armenia, Chile, Iran, Italy, Lithuania, Singapore, Slovenia, Thailand, Turkey and Uruguay: the bar is based on conscription-screening, admission-screening or medical-classification instruments and leaves Max_Punishment empty (§3.6.1). Sexes_Covered takes 0.50 if the screen reaches only

men, because only men were liable to conscription or the armed forces were closed to women (Iran, Italy to 1994, Singapore, Thailand, Uruguay to 1996), and 1.00 if the fitness standard reaches recruits or members of both sexes. Singapore's instrument is a confidential internal directive. Serbia: Legal rows are based on the general Anti-Discrimination Act of 2009, whose art. 16(2) reaches members of the army expressly (§3.1.4). Kosovo: the establishing instrument is the 2008 Law on Service in the Kosovo Security Force (No. 03/L-082), whose art. 4.1(h) obliges members to treat other members without discrimination on grounds including sexual orientation. Colombia is Illegal for 1991–1998 under art. 184(d) of Decreto 85 of 1989, the disciplinary regulation of the armed forces, which made 'actos de homosexualismo' a fault against military honour. The Constitutional Court struck the provision down in judgment C-507/99 of 14 July 1999.

4.20 Transgender Military

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	12	178	1991	2025	0
Legal	45	570	1991	2025	0

Question: Does an in-force rule bar transgender people from military service, or may transgender people serve?

Statuses

Two statuses are coded. Illegal records that an in-force rule bars transgender people from military service, while Legal records that transgender people may serve. Neither is coded if no instrument or documented practice governs eligibility on this ground, or in a country that maintains no standing armed forces. A country can take the two statuses only in different years, never in the same year (§3.5.1).

Inclusion

Under the rule on military service (§3.1.4), a row requires an instrument governing service eligibility, or documented practice if none is located (rated low): a defence-ministry directive or instruction, service medical and fitness-for-service standards, a military code or regulation, an executive order, or a judgment determining eligibility. A general equality or anti-discrimination provision establishes a row only if its scope reaches the armed forces, by an express clause on conscription or military service or by binding all state institutions. Rules on conduct in service that leave eligibility untouched create no row. Policies addressed to same-sex-attracted personnel are coded under LGB Military.

Status Assignment

Illegal is assigned if an in-force rule excludes transgender people from service or makes transgender identity, transition or a related diagnosis a ground for rejection or discharge, including a medical or fitness standard that disqualifies on a criterion reaching transgender applicants without naming them (Armenia, Government Decision N 2053-Ն of 2022; Russia,

Government Decree 123/2003; Spain, Orden PRE/2622/2007). Legal is assigned if service is open, whether by express authorisation or by withdrawal of an earlier exclusion.

Coverage

Coverage is national on every row: the armed forces are a single national institution, so Proportion takes 1.0 throughout on both statuses, Sub_National_Variation is 0 and Sub_National_Coverage is empty. Proportion records the reach of the eligibility rule, not how many transgender people serve.

Fields

Max_Punishment is empty on every row, because an exclusion by rejection, disqualification or discharge is not a penalty borne by the person. Fine_Amount takes No on Illegal rows and is empty on Legal rows. Sexes_Covered takes 0.50 on every Illegal row except Spain's for 2007–2008 and the Netherlands' for 2016–2025, which take 1.00. On Legal rows other than Colombia's it takes 1.00, because no instrument or description of those rows records a single-sex limitation. Colombia's Legal rows are the exception and take 0.50, because they are based on instruments concerning trans women and the conscription of men. Where no source documents how the rule was applied, Evidence_of_Enforcement takes the default of 1.00 (§3.7.1).

Dating and Years

Each run of consecutive years under one status is dated to the instrument that adopts the change it records. An exclusion lifted and later reimposed therefore produces successive runs under the two statuses, each with its own adoption year and with Year_of_National_Repeal on the run that ends. A change that alters the terms of service without reversing the status starts no new run and appears in Year_Law_Changed only if it changes a coded value (§3.2.7).

Policy-Specific Rules

A row records eligibility rules alone, so provisions on conduct, promotion or gender-affirming care inside a service instrument are coded elsewhere. A series based on documented practice rather than on a located instrument is still coded and is rated low (§2.8). A rule applied to no applicant in a given year remains coded and takes a lower Evidence_of_Enforcement value.

Exceptions

United States: the series has two runs on two instruments, Legal 2016–2024 under Directive-Type Memorandum 16-005 of 30 June 2016 and Illegal 2025 under Executive Order 14183 of 27 January 2025. The exclusion in force before 2016 has no Illegal series. The restriction of 2019 (Directive-Type Memorandum 19-004, which barred the accession of most people with a history of gender dysphoria while retaining serving members) and its revocation in 2021 (Executive Order 14004) change no coded value and do not appear in Year_Law_Changed (§3.2.7). Evidence_of_Enforcement takes 0.50 for the years of that restriction, 2019–2020. Netherlands: the series is Legal from 1996 on the General Equal Treatment Act (Algemene wet gelijke behandeling) read with the Court of Justice's judgment in P v S, ending in 2015, and Illegal from 2016 on the Defence medical-examination manual (PUC_39065_10), which declares persons with transsexualism unfit and bears no date. The Illegal series takes Evidence_of_Enforcement 0.00 for 2016–2021, because the State Secretary for Defence stated in 2021 that no member had

been removed or refused on grounds of gender identity since 1974. Germany: the series stays Legal from 2006, although the 2021 medical-fitness regulation (Zentralvorschrift A1-831/0-4000) grades a permanent disorder of gender identity unfit for service, because the Defence Ministry's instrument of 2017 keeps soldiers with gender dysphoria fully deployable under the Soldiers' Equal Treatment Act of 2006, so the grading does not exclude transgender people as such (§3.1.4). Switzerland: the series is based on documented practice from 2020 with no citable instrument. Albania, Austria, Belgium, Bolivia, Bosnia and Herzegovina, Bulgaria, Chile, Croatia, Cuba, the Czech Republic, Denmark, Ecuador, El Salvador, Fiji, Finland, Georgia, Hungary, Kosovo, Moldova, Montenegro, North Macedonia, Pakistan, Portugal, Serbia, Slovakia, Slovenia and Sweden: the series is based on a general equality or anti-discrimination provision whose scope reaches the armed forces, expressly through conscription in Sweden (Discrimination Act, ch. 2, s. 15) and through service relationships in the Czech Republic (Anti-Discrimination Act § 1(1)(c)), or by binding all state institutions, as in Ecuador (Constitution Art. 11(2)). Honduras (Penal Code art. 211) and Luxembourg (Code pénal arts. 454 and 456): the series is based on a criminal-code discrimination offence addressed to holders of public authority. Colombia: Sexes_Covered takes 0.50 on the Legal rows, which are based on Sentencia T-099/2015 and Ley 1861 de 2017, art. 12(k), on trans women and the conscription of men. Pakistan, Poland, Russia and Ukraine are the four countries with a series here and no LGB Military row. Greece: the Illegal rows of 2002–2024 are based on Presidential Decrees 133/2002 and 11/2014, which rate gender identity disorder as a ground of unfitness. The Legal row of 2025 is based on Law 5195/2025, whose repeal of Presidential Decree 11/2014 (art. 61(3)) takes effect only with a later ministerial decision setting new tables of diseases. The exclusion therefore ends in the year before the Law's adoption year (§3.2.8).

4.21 Gender Marker Change

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	75	1863	1991	2025	60

Question: Does a binding pathway exist through which a person may change the sex or gender marker recorded in civil-registry entries or identity documents?

Statuses

The policy takes a single Status, Legal, running 1991 to 2025, which records that a binding pathway exists through which a person may change the sex or gender marker recorded in civil-registry entries or identity documents. The status is indifferent to how demanding the pathway is, because Gender_Change_Requirement records its conditions. There is no Illegal status, so a country-year without a pathway is not coded under this policy.

Inclusion

A substantive row is based on a binding instrument for legal gender recognition: a recognition statute, a civil-registry or birth-certificate amendment provision, an administrative regime governing the sex marker on identity documents, or an apex-court judgment establishing a

pathway. Consistently applied court practice also qualifies, including the practice of granting the change through a declaratory action where no statute exists. Regimes that require medical treatment or surgery qualify on the same terms as self-identification regimes. Neither a provision governing name change alone nor a statute whose implementing legislation was never adopted and under which no changes occur qualifies.

Status Assignment

A series takes Legal for every year an operative pathway is in force. The test is the existence of the pathway, not the stringency of its conditions, which are recorded in Gender_Change_Requirement and the Ease of Access indicator. A repeal or a judicial invalidation ends the series.

Coverage

Proportion records the legal reach of the pathway, not the number of marker changes granted. Coverage is subnational in four countries: Australia, Canada, Mexico and the United States. Under the general rule on coverage (§3.4.1), a route available through any competent court is national.

Fields

Sexes_Covered takes 1.00 throughout, because no regime is restricted by direction of transition. Gender_Change_Requirement records the substantive precondition and takes seven values (§3.11.3):

- 'Surgery': the regime requires gender-affirming surgery.
- 'Surgery and sterilization': the regime requires surgery with irreversible infertility.
- 'Medical diagnosis': the regime requires a formal diagnosis without surgery.
- 'Psychological assessment': the regime requires a psychiatric or psychological assessment or expert testimony.
- 'Court order': the regime requires judicial authorisation as the operative gate and no medical, psychological or surgical evidence.
- 'Self-declaration': the regime requires only a declaration by the applicant.
- 'Surgery and psychological assessment': the regime combines the two or applies different conditions across pathways.

The field is empty in seven series: Bosnia and Herzegovina, Moldova and Montenegro throughout, Canada for 2012–2016, Croatia for 1993, Finland for 1991–2002 and Kazakhstan for 1999–2002. Policy_Scope and Max_Punishment are not used. Fine_Amount stays empty because a recognition procedure attaches no fine.

Dating and Years

A series is dated to the first binding recognition instrument of any kind. Year_Law_Changed and Gender_Change_Requirement record a later self-identification reform, which leaves Year_of_National_Adoption unchanged. Where a pathway was first based on documented practice, a later reform is its earliest citable instrument and gives both adoption years (§3.3.2; Luxembourg 2018, Norway 2016). Year_National_Implementation takes the commencement of

the establishing instrument (§3.2.4). Israel's series runs from 1991, the first year of the data, on the Ministry of Interior's practice of changing the sex entry after surgery under the Population Registry Law 5725-1965. Both adoption fields take 2015, the year of the announcement of January 2015 that a Ministry of Health committee's certification would suffice, which also opens the 'Psychological assessment' category. Year_Law_Changed is empty and Year_National_Implementation takes 2015. Evidence_of_Enforcement takes 0.00 between the adoption and the entry into force of the instrument that establishes a series (§3.2.6). An amending reform does not take 0.00: its new requirement applies from its entry into force, while the earlier values stay through the lag. Switzerland's reform of 18 December 2020 thus applies 'Self-declaration' from 2022, and Chile's Ley 21.120 of 2018 from 2019.

Policy-Specific Rules

United States coverage combines a federal and a state layer. The Department of State passport policy of 9 June 2010 (Foreign Affairs Manual, 7 FAM 1300 Appendix M) is a national identity-document pathway, so Proportion takes 1.0 from 2010 to 2024 and the national adoption year is 2010. Before 2010, and in 2025 after Executive Order 14168 of 20 January 2025 ended federal gender-marker changes (whose enforcement the Supreme Court allowed by its stay in Trump v. Orr of 6 November 2025), Proportion is the population share of states with an operative birth-certificate route. A state counts from the earliest year that an obtained text documents its route, whatever the route requires. A practice counts from the year in which a court finds that it began. A city's regime does not count as a route for its state. A law requiring vital statistics to record sex at birth closes a route only if its text reaches amendments or a court so holds. Gender_Change_Requirement takes the category covering the largest population share: the national layer's category ('Medical diagnosis' 2010–2020, 'Self-declaration' from the self-selection policy of 30 June 2021) while it is in force. Australia follows the same rule: the Australian Government Guidelines on the Recognition of Sex and Gender of 2013 set the category from 2013 ('Psychological assessment'), and before 2013 every state and territory law required surgery or a reassignment procedure ('Surgery'). The later state and territory reforms, from the Australian Capital Territory in 2014 to New South Wales and Western Australia in 2024, are recorded on their own instruments and do not change the series value.

Exceptions

Lithuania's series begins in 2017 with the first changes that courts ordered, not in 2000 with art. 2.27 of the Civil Code, which was never applied because its implementing law was never adopted, as the European Court of Human Rights found in L. v Lithuania (2007). Latvia's series begins in 2002 with the registry practice that the Senate's judgment of 14 January 2008 (SKA-5/2008) documents, under which an extract from a medical card was accepted as the basis for amending the birth-register entry, not in 2012 with the Civil Status Acts Law. Year_National_Implementation takes the commencement of the establishing instrument (§3.2.4), while a judgment takes its own year (Brazil 2009, Portugal 1984, Serbia 2012). The field is empty in twelve series: those for Belarus, Bulgaria, Chile, China, Cuba, Cyprus, Lithuania, Mongolia, Singapore, Taiwan and Uruguay, whose series is based on a documented practice or whose completing instrument has no documented commencement, and that for Mexico, whose coverage never reaches 1.0. Denmark's adoption year is dated to the Sterilisation and Castration

Act (Lov nr. 318 af 13. juni 1973), because legal gender change followed a castration permitted under it. Kazakhstan's is dated to Government Resolution 620 of 1999, Serbia's to the Constitutional Court's decision Uz-3238/2011 of 2012, Portugal's to the Lisbon Court of Appeal's judgment of 17 January 1984, with coverage from 1991, and Taiwan's to the Ministry of the Interior's letter of 11 November 1987. Six series end with a repeal, recorded in Year_of_National_Repeal: Hungary 2020 (Act XXX of 2020, under which the sex at birth cannot be changed), Kyrgyzstan 2020 (the Law on Acts of Civil Status, Law No. 110, which omits the change-of-sex ground), Bulgaria 2023 (the Supreme Court of Cassation's interpretive decision No. 2/2020, which closed the judicial route), Russia 2023 (Federal Law No. 386-FZ), Georgia 2024 (the Law on the Protection of Family Values and Minors) and Namibia 2024 (the Civil Registration and Identification Act, which confines the change to persons born intersex). Mexico's Year_of_National_Adoption is empty because coverage never reaches 1.0 (§3.2.3). The United States takes 2010, the year of the federal passport pathway. Finland: 'Surgery and sterilization' for 2003–2022 is the category that best fits the Trans Act (Act 563/2002, in force 1 January 2003), which required that the applicant be 'steriloitu tai ... muusta syystä lisääntymiskyvytön' (sterilised or otherwise infertile) but not that surgery be performed. Before it, in 1991–2002, Gender_Change_Requirement is empty, because the Supreme Administrative Court's decision KHO 1988-A-46, which establishes the series, states no condition. The registry offices' reliance on a doctor's statement in those years is a practice that does not set the category (§3.11.3). Norway: 'Surgery and sterilization' for 1991–2015 records the administrative practice described in the government bill Prop. 74 L (2015–2016), which required a diagnosis, hormone treatment and completed irreversible sterilisation. New Zealand: 'Surgery' for 1995–2022, because the Family Court's declaration under section 28(3)(c)(i) of the Births, Deaths, Marriages, and Relationships Registration Act 1995 requires medical treatment to acquire a physical conformation that accords with the nominated sex. Colombia: 'Surgery and psychological assessment' for 1994–2014 records the alternative routes, through surgery or through an expert assessment, that the Constitutional Court's judgment T-063/15 describes.

4.22 Third-Gender Recognition

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	20	235	1993	2025	10

Question: Is a legal gender category outside male and female available on official records?

Statuses

One status is coded, Legal, which records that a legal gender category outside male and female is available on official records. There is no opposing status, so a country-year in which no instrument makes such a category available is not coded under this policy.

Inclusion

A row is based on an instrument making a third or non-binary category legally available:

- a statute creating the category (Germany, Iceland, Kenya);
- a civil-registration or passport instrument issuing a marker outside M and F (Australia, Canada, Costa Rica, Denmark, Malta, New Zealand, United States);
- an apex-court judgment directing recognition (Austria, Colombia, India, Nepal, Pakistan);
- a civil-registration provision recording that a newborn's sex could not be determined or leaving it unrecorded (Germany 2013, Netherlands 1993);
- a court order or an individual registry decision granting the category to individual applicants (Chile; Argentina, Mendoza's Civil Registry resolution of 2018);
- an executive decree (Argentina 2021); or
- a cabinet decision with gazette notification (Bangladesh 2013).

A regime permitting movement only between male and female is coded under Gender Marker Change. No row is created by customary, ethnographic and census categories, by anti-discrimination provisions naming non-binary people without making a category available, or by a judgment declining to create the category.

Status Assignment

Legal is assigned from the adoption year of the instrument making the category available and remains assigned while that instrument is in force. Statutory, administrative and case-by-case judicial availability all take Legal and are separated in Policy_Scope, so the route by which the category is obtained does not affect Status.

Coverage

Proportion is the share of the national population in jurisdictions where the category is available, and is fractional if registration or identity-document authority is located below the national level. On an 'Individual court orders only' row, Proportion takes 1.0 if the order route is open in any court of the country, under the rule on national reach (§3.4.1), and is fractional only if the route is confined to named subnational jurisdictions. Administrative obstruction, fees or refusal to issue the marker are recorded in Evidence_of_Enforcement.

Fields

Policy_Scope records how far the category extends across official records, in three categories:

- 'All documents': the category is available across the civil register and official documents generally.
- 'Identity card or passport only': the category is available on identity cards or passports but not on the underlying civil-status register.
- 'Individual court orders only': the category is granted to individual applicants, by court order or by an individual registry decision, in the absence of a general statutory or administrative route.

Policy_Scope does not modify Proportion, so a nationwide 'Identity card or passport only' regime takes Proportion 1.0. Sexes_Covered takes 1.00 throughout, because the category is defined outside the male-female pair. Where no source documents use, Evidence_of_Enforcement takes the default of 0.75 (§3.7.1).

Dating and Years

An apex-court judgment directing recognition establishes the status from the year of the judgment, without waiting for implementing legislation or the first document issued (Austria 2018, Colombia 2022, Nepal 2007, Pakistan 2009). If an administrative instrument made the category available before the judgment, the series is dated to that instrument (§3.3.1). No series begins after its Year_National_Implementation.

Policy-Specific Rules

Availability is coded from the instrument, not from the first marker issued or the number of applicants served. A jurisdiction joins the covered set in the adoption year of its own instrument. A subnational series counts only the jurisdictions whose instruments are cited in it (§3.4.3).

Exceptions

India: the series begins in 2009 with the Election Commission's direction of November 2009 adding an 'Others' category to enrolment forms and electoral rolls, rather than with the Supreme Court's judgment in National Legal Services Authority v Union of India of 2014, which widens the scope to 'All documents'. Chile: 'Individual court orders only' rows take Proportion 1.0 although the first ordering court was a regional court of appeal (§3.4.1). Germany and the Netherlands: a birth-register entry for a newborn who cannot be assigned to either sex counts from the adoption of the provision making it, § 22(3) of Germany's Civil Status Act (PStG) of 2013 (no sex entry) and art. 1:19d of the Netherlands' Civil Code (BW) of 1993 (an entry that the sex could not be determined). Both take 'Identity card or passport only', although the entry is made in the birth register, because eligibility is confined to such newborns. Germany's Act of 18 December 2018, which introduced the entry 'divers', widens the scope to 'All documents'. The Netherlands series still takes 'Identity card or passport only' after the order of the District Court at Roermond of 28 May 2018 opened the entry to an adult by court order. Argentina: the series is fractional from 2018, covering Mendoza alone, until Decreto 476/2021 makes the category available nationally. Mexico: the series begins in 2022 with Hidalgo's Family Law (art. 214 Ter, share 0.022933) and reaches 1.0 in 2023 with the national instruments on passports. The first non-binary birth certificate, granted by amparo in Guanajuato in 2022, is not among the instruments coded. Kenya: the series begins in 2022 with the Children Act. The 2014 Baby 'A' judgment, which declined to create the category, is not a basis for the series. Bangladesh, Kenya and Nepal are the three countries with a series here and no Gender Marker Change Legal series. New Zealand: the series begins in 2005 with the 'X' passport marker that the Human Rights Commission (2008) and the Department of Internal Affairs (2011) document. Its Year_of_National_Adoption is 2012, the year of the passport policy that first states the option (§3.3.2). The scope becomes 'All documents' in 2023, when the Births, Deaths, Marriages, and Relationships Registration Act 2021 entered into force. Year_Law_Changed lists 2021, the Act's signing year (§3.2.7).

4.23 Gender Affirming Care - Adults

Status	Countries	Country-years	First year	Last year	Fractional coverage

Covered	33	755	1991	2025	93
Restricted	13	166	1991	2025	36

Question: Does a qualifying instrument place gender-affirming care for adults inside public provision, and does an instrument bar, withdraw or condition that care?

Statuses

The policy takes two statuses, running 1991 to 2025. Covered records that a qualifying instrument places adult gender-affirming care inside public provision. Restricted records that an instrument bars, withdraws or conditions it. Neither is coded in a country-year if no qualifying instrument runs in either direction. In the United States both take a value above 0 from 2001 (§3.5.1), because some states place the care inside Medicaid while others exclude it. Each status records the reach of its own instruments. The two statuses use different Policy_Scope labels: Malta's Covered series, for example, takes 'Some treatments only' from 2018.

Inclusion

The same test applies to both statuses: an instrument qualifies if it determines in practice whether the care is publicly provided or restricted. Qualifying forms are statutes, decrees, ministerial circulars, health-authority guidelines and recommendations defining the publicly funded service range, reimbursement and commissioning decisions, medical-council regulations, and binding case law on health insurance (Austria; Switzerland, Federal Supreme Court judgment BGE 114 V 153). The absence of public funding, standing alone, is not Restricted. The adoption year is not dated to the existence of a clinic alone.

Status Assignment

A series takes Covered if the instrument places the care inside the publicly funded or publicly authorised range, whatever the breadth of that range. A narrower entitlement is recorded through Policy_Scope, not through Restricted. A series takes Restricted if the instrument removes the care from that range, prohibits it, or conditions it. The boundary is set by what the instrument does rather than by what the system spends: a system that funds no care but has adopted no withdrawing instrument takes neither status.

Coverage

Proportion records the reach of the funding or restricting instrument. Coverage is subnational in five countries: Mexico, the United Kingdom (England and Wales from 1999, with Scotland from 2011), the United States, Spain until 2023, and Iraq, whose Restricted row covers the fifteen federal governorates from 2024. Waiting lists and de facto non-provision are recorded in Evidence_of_Enforcement, not in Proportion (§3.4.1).

Fields

Sexes_Covered takes 1.00 throughout. Policy_Scope records the service range in nine categories:

- 'Full public provision': assessment, hormonal and surgical care fall within public provision.
- 'Case-by-case approval': provision turns on individual authorisation.

- ‘Some treatments only’ (Covered) and ‘Some treatments banned’ (Restricted): some modalities fall inside the range and others are excluded.
- ‘Hormones only’: hormonal treatment alone is provided or permitted.
- ‘Regulated without public funding’: care is lawfully regulated but has no public funding (Thailand).
- ‘Total ban’: care is prohibited outright.
- ‘Restricted by clinical guideline’: the limitation operates through health-authority guidance or clinical specification.
- ‘Excluded from public funding’: a Restricted row based on an instrument that removes the care from public funding, such as a Medicaid exclusion or a statutory bar on public funds (United States state series).

An exclusion confined to surgery takes ‘Some treatments banned’. An exclusion that carves out minors under the federal Early and Periodic Screening, Diagnostic and Treatment (EPSDT) entitlement reaches the adult row only. Max_Punishment is filled on Restricted rows alone and in three countries only: ‘Fine or other non-prison penalty’ in Kuwait and 3 years in Iraq and Myanmar. Saudi Arabia’s instrument states no sanction, so its Max_Punishment is empty. Fine_Amount records the fine that the instrument states, if it states one. Where no source documents application, Restricted rows take the default of 1.00 for rules that apply without an enforcement act, while Covered rows take the default of 0.75 for policies applied through individual acts (§3.7.1).

Dating and Years

A series is based on a binding instrument or on documented national practice. If a publicly funded pathway operated before the earliest citable instrument, Proportion is coded from the practice period while the adoption year is that of the instrument (§3.3.2). Such a series is rated low. The following series are coded on that basis:

- the Netherlands (series from 1991; adoption 2005, the Health Insurance Act, Zorgverzekeringswet, signed 16 June 2005, with the position statement of the Health Care Insurance Board, CVZ, of 2007)
- Norway (1991; adoption 2011, ministerial approval of the national treatment service)
- Finland (1991; adoption 2002, Decree 1053/2002 on the organisation of gender reassignment)
- France (1991; adoption 2010, the decree that moved the care to the list of long-term conditions covered in full, ALD 31, after the General Inspectorate of Social Affairs, IGAS, documented full coverage under ALD 23 and a protocol of 1989)

Austria’s series runs from 1991 on the ministerial letter of 21 November 1990, with full coverage from the Supreme Court’s judgment of 1996. Norway’s series takes Evidence_of_Enforcement 0.00 in 2000 because the service closed that year. Denmark’s adoption year is dated to the Act on Sterilisation and Castration (Lov nr. 318 af 13. juni 1973), whose § 15 places the cost of castration on the state, Sweden’s to the Gender Recognition Act (Lag 1972:119) and

Switzerland's to the Federal Supreme Court's insurance rulings of 1988. All three precede the panel, so each series runs from 1991.

Policy-Specific Rules

An instrument addressing both age groups generates a row in this policy and in Gender Affirming Care - Minors. An instrument reaching minors alone leaves the adult row unchanged. Every country-year that takes Restricted here also takes Restricted in the minors policy. Under the general rule on maximum punishment (§3.6.1), a restricting instrument that penalises only the clinician or provider leaves Max_Punishment empty.

Exceptions

Belgium's adoption year is dated to the royal decree (arrêté royal) of 17 December 2008 that added the care to the schedule of treatments reimbursed by the National Institute for Health and Disability Insurance (INAMI), rather than to the Transsexuality Act of 2007, which governs legal gender recognition and not coverage. South Africa's adoption year is dated to the 2019 essential-medicines listing of the National Essential Medicines List Committee (NEMLC). Croatia's series has no Policy_Scope label for 2011–2013. In the Covered series eighteen countries are rated low (Austria, Belgium, Brazil, Croatia, Cuba, Denmark, Finland, France, Germany, Iran, the Netherlands, Norway, Portugal, Spain, Switzerland, Thailand, the United Kingdom and the United States), as do four in the Restricted series (Iraq, Oman, Saudi Arabia and the United Arab Emirates). The Covered series for Mexico, the United Kingdom and the United States leave Year_of_National_Adoption empty because coverage never reaches 1.0 (§3.2.3), as does Iraq's Restricted series. The United States Restricted series reaches 1.0 in 2025. United States: the series is based on state Medicaid exclusions and coverage instruments and, for the Restricted series in 2025, on Executive Order 14187, a national instrument. Medicare, the veterans' and military health systems and prison health rules are programmes for particular populations and are not coded.

4.24 Gender Affirming Care - Minors

Status	Countries	Country-years	First year	Last year	Fractional coverage
Covered	25	406	1991	2025	63
Restricted	20	189	1991	2025	38

Question: Does a qualifying instrument place gender-affirming care for minors inside public provision, and does an instrument bar, withdraw or condition that care?

Statuses

The policy takes two statuses, running 1991 to 2025, both limited to care for persons below the age stated in the instrument. Covered records that a qualifying instrument places that care inside public provision. Restricted records that an instrument bars, withdraws or conditions it. Neither may be coded in a country-year. As in the adults policy, the two statuses do not exclude each other (§3.5.1). Both take a value above 0 in three countries only: Canada in 2024 and 2025,

where the statuses divide the population; Sweden from 2022, where each is at 1.0; and the United States from 2001.

Inclusion

The test is the same as in the adults policy and applies to both statuses: an instrument qualifies if it determines in practice whether care for minors is publicly provided or restricted. The qualifying forms of instrument are those listed for the adults policy. The absence of public funding alone is not Restricted.

Status Assignment

A series takes Covered if the instrument places the care inside the publicly funded or authorised range, whatever its breadth. A range confined to puberty suppression and hormonal treatment is recorded as 'Hormones only', not as Restricted (for example Israel, Circular 6/2020; Brazil 2019; Italy 2019; the United Kingdom, the National Health Service's Gender Identity Development Service). A series takes Restricted if the instrument removes the care from the range, prohibits it, or imposes a minimum age or authorisation conditions. An instrument that bars the care below a set age takes 'Total ban'.

Coverage

Proportion records the reach of the funding or restricting instrument. Coverage is subnational in four countries: Canada, Spain and the United States, and Iraq, whose Restricted row covers the fifteen federal governorates from 2024. Evidence_of_Enforcement records clinic closures and de facto non-provision (§3.4.1).

Fields

Sexes_Covered takes 1.00 throughout. Policy_Scope takes eight of the adults policy's nine values, with the same meanings: 'Excluded from public funding' is included and 'Some treatments only' is not. Three Restricted categories are based on the following instruments:

- 'Total ban': prohibitions, including bans below a set age (Argentina, emergency decree DNU 62/2025; Brazil, Resolução 2.427/2025 of the Federal Council of Medicine, CFM; Russia, Federal Law 386-FZ; United States, Arkansas SAFE Act 2021 and later state statutes).
- 'Some treatments banned': bars to a single modality (Canada, Alberta 2024; United Kingdom 2024).
- 'Restricted by clinical guideline': assessment and authorisation conditions, in the three series that take it (Germany 1999–2005; Finland 2020; Sweden 2022).

Max_Punishment is filled on Restricted rows alone and in three countries only: 'Fine or other non-prison penalty' in Kuwait and 3 years in Iraq and Myanmar. Saudi Arabia's instrument states no sanction, so its Max_Punishment is empty. Fine_Amount records the fine that the instrument states, if it states one.

Dating and Years

If a paediatric pathway operated before the earliest citable instrument, Proportion is coded from the practice period while Year_of_National_Adoption is that of the instrument (§3.3.2).

Year_of_First_Adoption takes the year the practice began if that year is within the panel. Such a series is rated low. The Netherlands (series and first adoption 1998, national adoption 2005), Norway (2000; national adoption 2020, the national guideline of the Directorate of Health, Helsedirektoratet), Belgium (2007; national adoption 2017, the agreement of the National Institute for Health and Disability Insurance, RIZIV/INAMI) and the United Kingdom (series from 1991, both adoption years 2009) are coded on that basis. Austria (series and adoption 2017, the recommendations of the Federal Ministry of Health and Women's Affairs, BMGF), Sweden (2015, the knowledge support of the National Board of Health and Welfare, Socialstyrelsen), Switzerland (series from 2000, on the Federal Supreme Court's insurance rulings of 1988 that also establish adult coverage) and South Africa (series and adoption 2006, s. 129 of the Children's Act 38 of 2005, which commenced in 2010) are dated to their instruments directly. Year_of_National_Repeal ends a Covered series if the instrument was withdrawn, as in four series: Finland 2020, the United Kingdom 2024, Argentina 2025 and Brazil 2025. When guidance restricts without withdrawing publicly funded care, the Covered series continues alongside the Restricted series with the scope that the care keeps. Sweden's Covered series continues from 2022 as 'Case-by-case approval', because provision turns on individual assessment. Finland's Covered series ends in 2019, before its Restricted series begins in 2020. Germany's Restricted series, based on the guideline of January 1999, ends in 2005. Its Covered series begins in 2006, when the revised guideline admitted treatment on case-by-case approval.

Policy-Specific Rules

An instrument addressing both age groups creates a series here and in Gender Affirming Care - Adults. An instrument reaching minors alone changes only this policy. Argentina, Brazil, Finland, Germany (1999–2005), Sweden and the United Kingdom take Covered in the adults policy against Restricted here. The converse occurs only in the United States, where both policies have both statuses. Under the general rule on maximum punishment (§3.6.1), an instrument penalising only the clinician, the provider or a consenting parent leaves Max_Punishment empty.

Exceptions

Croatia's Covered series has no Policy_Scope label for 2011–2013. In the Covered series eleven countries are rated low (Belgium, Canada, Croatia, the Czech Republic, Finland, the Netherlands, Norway, Switzerland, Thailand, the United Kingdom and the United States), as do six in the Restricted series (Germany, Iraq, Oman, Saudi Arabia, the United Arab Emirates and the United States). United States: the series is based on state Medicaid exclusions and coverage instruments from 1983, on the state treatment bans from 2021 and, in 2025, on Executive Order 14187, a national instrument. Norway's Covered series takes 'Hormones only' for 2000–2019 and 'Full public provision' from 2020, because the national guideline admits breast surgery in exceptional cases. The series takes Evidence_of_Enforcement 0.00 in 2000 because the service closed that year.

4.25 Blood Donations

Status	Countries	Country-years	First year	Last year	Fractional coverage
Illegal	52	969	1991	2025	2

Legal	61	1013	1991	2025	0

Question: Does the national donor-eligibility framework exclude men who have sex with men from donating blood, or does it assess eligibility without any criterion keyed to sexual activity between men?

Statuses
The policy takes two Statuses. Illegal records that men who have sex with men are excluded from donating blood, permanently or for a defined deferral period. Legal records that donor eligibility is assessed without any criterion keyed to sexual activity between men. The two exclude each other (§3.5.1). Neither is coded if no national donor criterion addressing the question is documented.

Inclusion
A substantive row is based on a national donor-eligibility criterion addressing sexual activity between men. The instruments that create a row are statutes and health codes governing blood safety, ministerial decrees, orders and circulars, including the instruments called resoluciones in Spanish-speaking countries, and the donor-selection criteria of a national blood transfusion or Red Cross blood service. Documented national practice also creates a row if no binding instrument is located. Hospital-level guidance and the screening practice of an individual collection centre create no row. A documented national framework that contains no criterion keyed to sex between men creates a Legal row (§3.5.3). Where no framework is documented, neither status is coded.

Status Assignment
A series takes Illegal for any donor rule that defers or excludes on the basis of sexual activity between men, whatever the length of the deferral, which Blood_Restriction_Period records. A series takes Legal if the documented national framework contains no such criterion. Otherwise Legal begins with the first binding instrument that removes the criterion. A non-binding instrument does not begin a Legal series. Portugal is Illegal from 2007 to 2020 under Decreto-Lei 267/2007 and Norma 009/2016 of the Directorate-General of Health (DGS), and Legal from the update of that Norma of 19 March 2021, not from the Assembly of the Republic's Resolution 39/2010, a recommendation that did not bind the blood service.

Coverage
Coverage is national except in South Africa, whose Illegal series counts the eight provinces of the South African National Blood Service from 2003 (Proportion 0.899053 in 2003 and 2004) and the Western Cape, served by the Western Province Blood Transfusion Service, from 2005. This series takes Sub_National_Variation 1. Every other series takes Proportion 1.0 in every covered year, Sub_National_Variation 0 and Sub_National_Coverage blank. Proportion records the legal reach of the donor rule only (§3.4.1), while Evidence_of_Enforcement records how far the rule is applied at collection.

Fields

Max_Punishment is empty on every row, because an exclusion at donor screening is not a penalty borne by the donor. Fine_Amount takes No on Illegal rows and is empty on Legal rows. Sexes_Covered corresponds exactly to Status: 0.50 on Illegal rows and 1.00 on Legal rows (§3.9.4). Blood_Restriction_Period records the length or kind of the deferral and takes ten values:

- 'Permanent deferral'
- '12-month deferral'
- 'Individual risk assessment'
- 'No restriction'
- '3-month deferral'
- '4-month deferral'
- '5-year deferral'
- '6-month deferral'
- '10-year deferral'
- '15-year deferral'

The field is empty for South Africa in 2003, when the documented exclusion stated no period. A deferral of five years or longer scores with 'Permanent deferral'. The value '15-year deferral' records Colombia's look-back over the past fifteen years (Ministry of Health Resolución 901 of 1996, 1996–2017). Evidence_of_Enforcement takes four values: 1.00, the default for a donor rule, which applies without an enforcement act (§3.7.1), and 0.50, 0.25 and 0.00 where a source documents partial application, obstruction or non-application (§3.7.3).

Dating and Years

An Illegal series runs from the earliest dated document stating the criterion. Where no earlier document could be located, the years before it are not coded (§3.3.2). A Legal series based on a framework with no criterion is coded from 1991 if that framework was in force in 1991 (§3.3.2). In both, the adoption year is that of the earliest citable framework, whether a blood-safety statute, a ministerial instrument or a published donor-selection criterion. Where a Legal series follows an Illegal one, it begins in the adoption year of the binding instrument that removes the criterion. No estimated date is recorded for a practice whose instrument cannot be cited.

Policy-Specific Rules

The length of a deferral never affects the Status: a 3-month, 12-month or 5-year deferral takes Illegal as a permanent exclusion does, so the difference appears only in Blood_Restriction_Period. A series recording 'Individual risk assessment' takes Legal only if no criterion keyed to sex between men applies alongside it (§3.5.3).

Exceptions

Côte d'Ivoire's series is based on the donor-selection practice of the National Blood Transfusion Centre (Centre National de Transfusion Sanguine), documented by a clinical study of donations in 2006–2008, because no binding deferral instrument has been located. Iran's series, rated low, is based on the donor-deferral practice described in published studies, since no document of the

blood service naming sex between men could be obtained (§3.1.6). Brunei's series takes Illegal from 2010 on the Brunei Red Crescent's dated reproduction (16 June 2010) of the criterion of the Ministry of Health's Blood Donation Centre, 'Mereka yang pernah mengamalkan hubungan sejenis' (those who have engaged in same-sex relations). Algeria's series takes Legal from 1962 on Loi 62-157, which kept in force the blood-donation articles of the French public health code. None of its later blood frameworks (1968–2018) states a criterion about sex between men. The Oman, Bulgaria, Nigeria, Burkina Faso, Comoros and Eswatini series take Legal from 1991, the first year of the data: their national donor-selection instruments (Oman's policy of 2021, Bulgaria's Law on Blood, Blood Donation and Blood Transfusion of 2003, Nigeria's National Blood Policy of 2005 and Blood Safety Standards of 2022, Burkina Faso's Code de la santé publique of 1994, the Comoros decree on the blood service, Décret n° 01-130/CE of 27 December 2001, and Eswatini's draft National Blood Transfusion Service Policy of 30 November 2010) name no criterion for men who have sex with men. These series are rated low (§2.8, criterion 3), because the years before each instrument are coded on the documented absence of a criterion. These instruments defer individual high-risk sexual behaviour or set no sexual-behaviour criterion at all (§3.5.3). Croatia's series takes Legal from 2007 on the same basis, under the regulation published in Narodne novine 80/2007, because the regulation (Pravilnik) of 1998 that named homosexual behaviour ceased to apply under the Blood Act of 2006. Colombia's 15-year deferral of 1996–2017 is a look-back over the past fifteen years, set by Resolución 901 of 1996, whose text is known from the Constitutional Court's judgment T-248/12. France's Illegal series runs from 1991 on the circular of the Directorate-General of Health (DGS) of 20 June 1983, which limited men with multiple male partners to plasma donation without barring them, so the value 'Permanent deferral' describes it only approximately. Bolivia's Illegal series (1997–2018) is based on art. 16.I of Decreto Supremo 24547, which permanently excluded 'Homosexuales o bisexuales promiscuos' (promiscuous homosexuals or bisexuals), and takes Evidence_of_Enforcement 0.50 because the exclusion reaches only part of the group. New Zealand's series begins in 2002 with its first dated document stating the criterion, since no earlier one could be located (§3.3.2).

4.26 Constitutional Protections - Sexual Orientation

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	14	230	1994	2025	0

Question: Does protection of constitutional rank reach sexual orientation?

Statuses

The policy takes a single Status. Legal records that protection of constitutional rank reaches sexual orientation. There is no opposing status, so a country-year without such protection is not coded under this policy.

Inclusion

A substantive row is based on text of constitutional rank naming sexual orientation. Twelve countries have rows based on such text, in three forms:

- an enumerated non-discrimination clause (Bolivia Art. 14.II, Cuba Art. 42, Ecuador Art. 23(3), Kosovo Art. 24(2), Portugal Art. 13(2))
- a constitutional amendment (Malta, Act X of 2014; Mexico, the reform published in the Diario Oficial de la Federación of 10 June 2011; the Netherlands, the amendment published in Staatsblad 2023/62; San Marino, Legge di Revisione Costituzionale 1/2019; Sweden, the Instrument of Government, Regeringsformen, ch. 1 art. 2 and ch. 2 art. 12)
- an entrenched interim or amending text (South Africa Act 200 of 1993 s. 8(2), Fiji Constitution Amendment Act 1997 s. 38(2)(a))

A row is also based on an open-ended constitutional ground supported by jurisprudence (Nepal), or on an apex-court reading of an enumerated category (Taiwan). Ordinary statutes, labour codes, equality acts, decrees, administrative regulations, treaty ratifications and draft constitutions never promulgated create no row.

Status Assignment

Legal is the only Status the policy takes, so any qualifying provision assigns it, including a provision that names the ground but reaches a single field. Policy_Scope is not used, so no column records such a limit.

Coverage

Coverage is national throughout: Proportion takes 1.0 in every covered year, Sub_National_Variation takes 0 and Sub_National_Coverage is blank. A provision limited in domain but not in territory does not reduce Proportion (§3.4.1).

Fields

Sexes_Covered takes 1.00 throughout because the protected ground reaches persons of every sex. Evidence_of_Enforcement takes four values:

- 1.00: the guarantee is applied through constitutional adjudication or direct invocation before a court or equality body.
- 0.75: the guarantee is justiciable and supported by implementing law without a body of applied cases.
- 0.50: application is partial or contested.
- 0.00: the year falls between the adoption of the constitutional text and its entry into force (§3.2.6); the only two such years are Fiji 1997 and Sweden 2002.

Max_Punishment and Policy_Scope are not used.

Dating and Years

A series is dated to the earliest constitutional text naming the ground. A new constitution that keeps the ground does not change the first year (§3.3.1), so the first year is not changed by the Constitution of 2008 in Ecuador, that of 1996 in South Africa or that of 2013 in Fiji. If the

ground is not named and an apex court reads a named category to include it, the series is dated to the judgment, not to the constitutional text.

Policy-Specific Rules

Protection reaching sexual orientation only through statute or through ordinary jurisprudence belongs to other policy areas. A constitutional provision naming gender identity is coded under the corresponding gender identity policy. An instrument naming both grounds creates a series in each. If a constitution is abrogated and the ground returns in the text that replaces it, the series is interrupted in the years without the ground but does not end.

Exceptions

Nepal's series is based on the open-ended grounds of arts. 18(2) and 18(3) of the Constitution of 2015 together with jurisprudence, because that Constitution does not name the ground. Taiwan's series is based on Judicial Yuan Interpretation No. 748, which in 2017 read the equality clause of art. 7 of the Constitution to cover sexual orientation, and begins in that year. Fiji's series is coded for 1997–2008 and again from 2013. In 2009–2012, after the abrogation of the Constitution of 1997, its rows take Proportion 0.00. Year_of_First_Adoption stays 1997, while Year_of_National_Adoption and Year_National_Implementation take 2013, the year of the new Constitution (§3.2.3). Year_Law_Changed records 2009, the year of the abrogation.

4.27 Constitutional Protections - Gender Identity

Status	Countries	Country-years	First year	Last year	Fractional coverage
Legal	6	78	2008	2025	0

Question: Does the national constitution name gender identity among the grounds on which discrimination is prohibited or equality is guaranteed?

Statuses

The policy takes a single Status. Legal records that the national constitution names gender identity among the grounds on which discrimination is prohibited or equality is guaranteed. There is no opposing status, so a country-year without such a provision is not coded under this policy.

Inclusion

A substantive row is based on the ground named expressly in the text of the national constitution, whether in the founding text or in a constitutional amendment. The policy's rows are based on six texts: Ecuador Constitution 2008 Art. 11.2, Bolivia Constitution 2009 Art. 14.II, Fiji Constitution 2013 s. 26(3)(a), Malta Constitution (Amendment) Act X of 2014, Nepal Constitution 2015 Arts. 12, 18(3) and 42, and Cuba Constitution 2019 Art. 42. Statutory anti-discrimination law, equality-body mandates and administrative regulation create no row here however broadly they reach. No row is based on a term substituted for gender identity, on an open-ended equality clause construed to reach it, or on a ground named only as sex.

Status Assignment

Legal, the only Status the policy takes, depends on whether the constitution names the ground, not on the remedies attached to it or the fields in which it is invoked. Policy_Scope is not used, so no column records a limit to particular fields. If the provision is removed, the series ends.

Coverage

Coverage is national throughout: constitutional text binds the whole territory, so Proportion takes 1.0 in every covered year and no country has subnational coverage.

Fields

Sexes_Covered takes 1.00 throughout because the ground is written without restriction as to sex. Evidence_of_Enforcement takes three values, 0.50, 0.75 and 1.00, and is the only descriptor whose value differs between the series of this policy. It records how far the constitutional ground is given effect through litigation and implementing law. Max_Punishment and Policy_Scope are not used.

Dating and Years

A series is dated to the adoption year of the constitutional text naming the ground, not to a later implementing statute or to the first judgment applying it. Year_of_National_Adoption and Year_of_First_Adoption take that year on every row in force. Year_National_Implementation takes it too, except in Malta, whose field is empty because the commencement of Act X of 2014 is not documented (§3.2.4). The series begins in the adoption year. Year_of_National_Repeal is empty.

Policy-Specific Rules

Gender identity and sexual orientation are coded as separate series under their respective policies. A clause that names both grounds is cited in each policy, with Source_1 worded separately in each: Bolivia Constitution 2009 Art. 14.II, Cuba Constitution 2019 Art. 42, and Malta Constitution (Amendment) Act X of 2014 Arts. 32 and 45. If the two grounds were written into the constitution at different times, each is dated to its own text.

Exceptions

The Ecuador and Fiji series date the two grounds to constitutional texts a decade or more apart: gender identity to the constitutions of 2008 and 2013, and sexual orientation to the texts of 1998 and 1997. Nepal's series is dated to the Constitution of 2015 rather than to the Supreme Court's judgment in Pant v Nepal (2007), which directed the government to recognise a third gender. Nepal's sexual orientation series is based on open-ended grounds because that Constitution does not name sexual orientation.

5. Index Construction

The R script, Velasco_LGBTI_Index_Construction.R, is distributed with the dataset and is also available at kristophervelasco.com. The script builds three composite indices from the data file. Each adds the scores of the 23 progressive policies and subtracts the scores of the 12 regressive policies over the same 35 Law × Status combinations, so the three differ only in how a policy is scored. The National Index (§5.6) counts the policies in force nationally and takes no account of their reach or enforcement. The Additive Index (§5.4) scores each policy as Population Coverage times the equal-weight mean of its other indicators. The CFA Index (§5.5) scores each policy from a one-factor confirmatory factor analysis of its indicators.

The CFA Index takes its principles and measurement approach from the index published in Velasco (2023). That index scored each policy by a confirmatory factor analysis of the policy's indicators and summed the scores, adding progressive policies and subtracting regressive ones. The CFA Index applies this logic to more policies, countries and years, so it replicates the logic and measurement approach of the 2023 index without being a literal replication of that index (Appendix C). The article is Velasco, Kristopher. 2023. "Transnational Backlash and the Deinstitutionalization of Liberal Norms: LGBT+ Rights in a Contested World." *American Journal of Sociology* 128(5): 1381–1429.

The Additive Index is the preferred version of this release for four reasons. The index is formative: a policy's robustness is defined as the combination of its coverage, scope, penalty, enforcement and access, not inferred from how those components covary. Equal-weight scores on an absolute [0, 1] scale keep a fixed meaning across countries, years and releases, so adding a country or a year never changes another country's score. A law in force in part of a country counts in proportion to the population it reaches, while the factor-analytic construction gives it a far larger share of a national law's score (§5.5.6). The data-driven weights of the CFA Index change the ranking little (§5.5.6, Appendix B). The index file also reports the Additive Index in two parts, progressive_index and regressive_index (§5.4.3).

The construction proceeds in five steps, each described in its own subsection: the selection of the policies and of the indicators that measure each one (§5.1), the conversion of coded values into indicator scores (§5.2), the filling of missing values (§5.3), the policy and country scores of the Additive Index (§5.4) and those of the CFA Index (§5.5). The National Index (§5.6), the output file (§5.7), the trends of the Additive Index (§5.8) and a guide to building an index under other choices (§5.9) follow. Appendix B reports how far the ranking depends on these choices.

5.1 Policies, Directions and Indicators

The unit of scoring is a policy in a country-year: one Law × Status combination, such as Same-Sex Acts Illegal, for one country in one year. Of the 36 substantive combinations, 35 are scored. Joint Adoption Illegal is left out because it is the complement of Joint Adoption Legal, which the index includes, so scoring both would count the same policy twice. The placeholder combinations (§1.1) are never in force and are not scored. A policy is scored only in the country-

years in which it is active, that is, in which its Proportion is above 0: 34,131 policy-country-years in all. An inactive policy contributes 0 to every index.

Each policy has a direction: a progressive policy protects or recognizes LGBTI people and is added to the index, while a regressive policy restricts or punishes them and is subtracted. Table 3.2 (§3.5.4) gives the direction of every status, including the two military exclusions, LGB Military Illegal and Transgender Military Illegal, which are regressive.

Each policy is measured by three to five of six indicators, each on a scale from 0 to 1 on which a higher value means more of the policy. Three indicators apply to every policy: Population Coverage, the share of the population the law reaches; Policy Scope, how far the law reaches within its policy area; and Evidence of Enforcement, the documented application of the law. Gender Scope applies to the nineteen policies whose law can reach one sex or gender category only. Penalty Severity applies to the seven regressive policies whose law can punish the person, and to the two progressive bans on conversion practices and on surgeries on intersex children, for which it records the penalty for breaching the ban (§3.6.1). Penalty Severity does not apply to Death Penalty, whose penalty does not vary, to Transgender Military Illegal, Marriage Equality Illegal and Blood Donations Illegal, which exclude people without punishing them, or to Religious Exemption Laws, which state no penalty. Ease of Access applies to the four policies whose rows have an access field of their own: Gender Marker Change Legal, Civil Unions Legal and both statuses of Blood Donations. Table 5.1 lists the policies, their direction and the indicators that apply to each.

Table 5.1. The 35 Scored Policies, Their Direction and Their Indicators

Policy	Direction	Gender Scope	Penalty Severity	Ease of Access
Same-Sex Acts (Legal)	Progressive	Yes		
Age of Consent (Equal)	Progressive	Yes		
Employment Discrimination – Sexual Orientation (Illegal)	Progressive	Yes		
Employment Discrimination – Gender Identity (Illegal)	Progressive	Yes		
Hate Crime Protections – Sexual Orientation (Legal)	Progressive	Yes		
Hate Crime Protections – Gender Identity (Legal)	Progressive	Yes		
Incitement to Hatred (Legal)	Progressive	Yes		
Civil Unions (Legal)	Progressive			Yes
Marriage Equality (Legal)	Progressive			
Joint Adoption (Legal)	Progressive			
Gender Marker Change (Legal)	Progressive			Yes
LGB Military (Legal)	Progressive	Yes		
Transgender Military (Legal)	Progressive			
Conversion Therapies (Illegal)	Progressive		Yes	
Gender Assignment Surgeries on Children (Illegal)	Progressive		Yes	
Goods/Services Discrimination – Sexual Orientation (Illegal)	Progressive	Yes		
Goods/Services Discrimination – Gender Identity (Illegal)	Progressive	Yes		

Constitutional Protections – Sexual Orientation (Legal)	Progressive	Yes		
Constitutional Protections – Gender Identity (Legal)	Progressive	Yes		
Blood Donations (Legal)	Progressive			Yes
Gender Affirming Care – Adults (Covered)	Progressive			
Gender Affirming Care – Minors (Covered)	Progressive			
Third-Gender Recognition (Legal)	Progressive			
LGB Military (Illegal)	Regressive	Yes	Yes	
Transgender Military (Illegal)	Regressive	Yes		
Death Penalty (Legal)	Regressive	Yes		
Morality/Propaganda (Legal)	Regressive	Yes	Yes	
Same-Sex Acts (Illegal)	Regressive	Yes	Yes	
Age of Consent (Unequal)	Regressive	Yes	Yes	
Marriage Equality (Illegal)	Regressive			
Gender Affirming Care – Adults (Restricted)	Regressive		Yes	
Gender Affirming Care – Minors (Restricted)	Regressive		Yes	
LGBTQ+ Civil Society Restrictions (Legal)	Regressive		Yes	
Religious Exemption Laws (Legal)	Regressive	Yes		
Blood Donations (Illegal)	Regressive			Yes

Population Coverage, Policy Scope and Evidence of Enforcement apply to every policy and are not shown.

5.2 From Coded Values to Indicator Scores

Each indicator is read from one column of the data file, or from three columns in the case of Ease of Access, by the fixed scale that Table 5.2 summarizes and §5.2.1–§5.2.6 set out. Every scale is oriented so that a higher value means more of the policy: on a progressive policy, a stronger protection; on a regressive policy, a deeper restriction. Before it scores any row, the script checks that every ordered scale is oriented that way and stops if one is not. The script also stops if a coded value is not on its scale, so every value in the data file has a defined score. The scores enter the Additive Index unchanged, without standardization or rescaling against other countries.

Table 5.2. The Six Indicators

Indicator	Read from	Scores	Policies
Population Coverage	Proportion	0 to 1, the census share covered	All 35
Gender Scope	Sexes_Covered	0.5 or 1.0	19
Penalty Severity	Max_Punishment	0.0, 0.2, 0.4, 0.6, 0.8 or 1.0	9
Evidence of Enforcement	Evidence_of_Enforcement	0.00, 0.25, 0.50, 0.75 or 1.00	All 35
Ease of Access	Gender_Change_Requirement, Civil_Union_Benefits, Blood_Restriction_Period	0.0 to 1.0	4
Policy Scope	Policy_Scope	0.25 to 1.0	All 35

5.2.1 Population Coverage

Population Coverage equals the Proportion column (§2.3): 1 where the law binds the whole country and, where it binds only some jurisdictions, their share of the population in the country's constant census table. The indicator measures the share of the population to which the law applies, not the share that benefits from it in practice (§3.4.1).

5.2.2 Gender Scope

Gender Scope equals the Sexes_Covered column (§2.5, §3.9): 1.0 where the law covers all genders and 0.5 where it covers one sex or gender category only, as a provision on sexual acts between men does. Every active row has a value.

5.2.3 Penalty Severity

Penalty Severity is read from Max_Punishment by the bands of Table 5.3. The field records the statutory maximum borne by the LGBTI person or, for the two bans, the penalty for breaching the ban (§2.5, §3.6). A term stated in months is converted to years before banding, so a maximum of eighteen months scores 0.2. The prison-term bands, which rise with the severity of the sanction, are those of the 2023 index, kept so that scores remain comparable across versions.

Table 5.3. Penalty Severity Scores

Max_Punishment	Penalty Severity
'Death'	1.0
'Life'	0.8
More than 15 years	0.6
More than 3 and up to 15 years	0.4
Up to 3 years, including 'Less than 6 months'	0.2
'Fine or other non-prison penalty'	0.0
Empty on LGB Military Illegal	0.0
Empty on any other policy	Missing (§5.3)

An empty Max_Punishment on an LGB Military Illegal row scores 0.0, because such a bar operates by rejection or discharge and punishes no one (§3.6.1). Every other empty penalty, such as that of a restriction on gender-affirming care that penalizes only the clinician or provider (§3.6.1), is a missing value (§5.3).

5.2.4 Evidence of Enforcement

Evidence of Enforcement equals the Evidence_of_Enforcement column (§2.6), which takes 0.00, 0.25, 0.50, 0.75 or 1.00 by the definitions of Tables 3.3 and 3.4 (§3.7). Where no source documents how a law was applied, the column takes its policy's default (§3.7.1). The default is 0.75 for the policies that take effect through individual acts of enforcement or use, such as prosecutions, complaints or registrations, because such a law is presumed to operate although its use is not documented. Rules that apply without an enforcement act, such as a marriage bar or a blood-donor rule, and the two policies that record the absence of a prohibition, Same-Sex Acts Legal and Age of Consent Equal, default to 1.00, because such a rule is in effect for everyone it covers once it is in force. A value other than the default is based on a cited source (§3.7.2). The

years between an instrument's adoption and its entry into force take 0.00 (§3.2.6). Because a default is a coded value, Evidence of Enforcement is never missing on an active row.

5.2.5 Ease of Access

Ease of Access, read from the access field of its policy by the scores of Table 5.4, measures how readily a right can be exercised or, on the regressive Blood Donations row, how deep the restriction is.

Table 5.4. Ease of Access Scores

Policy	Coded value	Score
Gender Marker Change (Legal)	'Self-declaration'	1.0
	'Medical diagnosis', 'Psychological assessment' or 'Court order'	0.5
	'Surgery' or 'Surgery and psychological assessment'	0.25
	'Surgery and sterilization'	0.0
Civil Unions (Legal)	Civil_Union_Benefits, 1 to 5	The grade divided by 5
Blood Donations (Legal)	'No restriction' or 'Individual risk assessment'	1.0
	'3-month deferral' or '4-month deferral'	0.75
	'6-month deferral'	0.5
	'12-month deferral'	0.25
	'Permanent deferral' or a deferral of five years or longer	0.0
Blood Donations (Illegal)	Any deferral	1 minus the Legal score
All four	Empty	Missing (§5.3)

The gender-marker scale orders the requirements from a declaration by the applicant alone to required sterilization. A diagnosis, an assessment and a court order, none of which requires surgery, share the middle score; surgery scores 0.25. On the Blood Donations Illegal row the deferral scale is inverted, so a permanent deferral scores 1.0 and a three-month deferral 0.25. A relaxation of the deferral therefore lowers the regressive score, just as a wider protection raises a progressive one.

5.2.6 Policy Scope

Policy Scope is read from the Policy_Scope label by the scores of the table in §2.5. In each policy area with labels, the labels score from 1.0, for the broadest reach the policy can have, down to 0.25 or 0.5 for the narrowest. On a regressive policy a higher score records a broader restriction. For example, Botswana's protection against dismissal on the ground of sexual orientation ('Dismissal only') scores 0.5, while Paraguay's restriction confined to education ('One sector only') scores 0.25. On Marriage Equality Illegal the label records whether the constitution's own text sets the bar: 'Constitutional bar' scores 1.0 and 'Bar in ordinary law' 0.5, because a bar written into the constitution can be lifted only by amending it (§3.5.2). In a subnational series the label is the one covering the largest population share among the covered jurisdictions (§3.11.2), which for the United States marriage bar is 'Constitutional bar' in 2008–2014. On the 22 policies for which the codebook defines no scope labels, Policy Scope is 1.0 in every row, so it does not distinguish one law from another on those policies.

In the employment and goods-and-services series an empty label is a coded state of the law: it records that the instrument attaches no remedy, or only a mechanism that no category describes (§3.11.2), and scores 0.5, the score of the lowest remedy category. In the other labelled areas an empty label is a missing value, which the index fills from the series' own years (§5.3). The only such case is Croatia's two Gender Affirming Care Covered series in 2011–2013 (§4.23, §4.24).

5.3 Missing Values

An indicator is missing on an active row where the field it is read from is empty and no rule of §5.2 gives the empty field a score. The script fills a missing value with the indicator's mean over the other active years of its series, the rows of one country for one policy and status. Where the series has no value for that indicator in any year, it fills 0.5, the midpoint of the scale, which favors neither end. A value is never taken from another country or from a pooled average, so every country's score depends on its own data alone.

Of the 34,131 scored policy-country-years, 856 have no stated penalty, of which 128 take their series' mean and 728 take 0.5. Another 92 have no stated access value, of which 24 take their series' mean and 68 take 0.5. The six rows with an empty scope label in a labelled area (§5.2.6) take their series' mean. Population Coverage, Gender Scope and Evidence of Enforcement are never missing on an active row. Table 5.5 gives the counts by policy.

Table 5.5. Missing Indicator Values by Policy

Indicator	Policy	Scored rows	Missing	Filled from the series' mean	Filled at 0.5
Penalty Severity	Conversion Therapies (Illegal)	195	47	0	47
Penalty Severity	Gender Assignment Surgeries on Children (Illegal)	95	81	7	74
Penalty Severity	Morality/Propaganda (Legal)	986	134	49	85
Penalty Severity	Same-Sex Acts (Illegal)	2,874	235	57	178
Penalty Severity	Age of Consent (Unequal)	743	89	14	75
Penalty Severity	Gender Affirming Care – Adults (Restricted)	166	123	0	123
Penalty Severity	Gender Affirming Care – Minors (Restricted)	189	146	0	146
Penalty Severity	LGBTQ+ Civil Society Restrictions (Legal)	62	1	1	0
Ease of Access	Civil Unions (Legal)	845	12	1	11
Ease of Access	Gender Marker Change (Legal)	1,863	79	22	57
Ease of Access	Blood Donations (Illegal)	969	1	1	0
Policy Scope	Gender Affirming Care – Adults (Covered)	755	3	3	0
Policy Scope	Gender Affirming Care – Minors (Covered)	406	3	3	0

Table 5.6 gives the reason for every fixed value and fill that the script applies.

Table 5.6. Fixed Values and Fills in the Index

Situation	Value	Reason	Section

No source documents how a law was applied	0.75, or 1.00 for a rule in effect without an enforcement act	A law in force is presumed to operate	§3.7.1, §5.2.4
Years between adoption and entry into force	Evidence of Enforcement 0.00	The law does not yet apply	§3.2.6
Empty penalty on LGB Military Illegal	Penalty Severity 0.0	The bar punishes no one	§5.2.3
Empty remedy category in an employment or goods-and-services series	Policy Scope 0.5	The instrument attaches no remedy	§3.11.2, §5.2.6
Policy without scope labels	Policy Scope 1.0	No scope distinction is coded	§5.2.6
Any other empty field read by an indicator	The series' own mean, or 0.5	Every country's score depends on its own data	§5.3
CFA Index: fewer than three varying indicators, no proper solution, or loadings of both signs	Equal weights	No loading weights can be used	§5.5.4
CFA Index: a policy whose score does not vary	1	Rescaling is undefined	§5.5.5

5.4 The Additive Index

5.4.1 Policy Score

The Additive Index scores policy p in country c and year t as Population Coverage times the equal-weight mean of the policy's other indicators:

$$s(p, c, t) = \text{Coverage}(p, c, t) \times [x_1(p, c, t) + \ldots + x_k(p, c, t)] \,/\, k,$$

where $x_1 \ldots x_k$ are the k other indicators that apply to the policy (Table 5.1), two to four in number. The score lies between 0 and 1. A national law with every other indicator at its maximum scores 1, while a law in force for 2 percent of the population earns 2 percent of what the same law earns nationally. Coverage multiplies the mean, while in the CFA Index it enters as one more indicator (§5.5.2).

The other indicators are averaged with equal weights because the index is formative: each describes one part of how robust a policy is, so none is presumed to matter more than another. Equal weighting is itself a choice of weights, which Appendix B.2 tests by drawing the weights at random. Because the mean is arithmetic, a high value on one indicator offsets a low value on another. Appendix B.1 reports the weakest-link alternative, under which a policy scores at its lowest indicator, and the geometric mean, which offsets less. Every weight is positive, so raising any indicator can only raise the policy score. The scores are not rescaled against other countries, so a score of 0.5 has one meaning in every country and year.

5.4.2 Country Score

The Additive Index of a country-year is the sum of the scores of its progressive policies minus the sum of the scores of its regressive policies:

$$\text{additive_index}(c, t) = \Sigma\, s(p, c, t) \text{ over the 23 progressive policies} - \Sigma\, s(p, c, t) \text{ over the 12 regressive policies.}$$

Each policy counts once and contributes at most 1, so the index can range from −12, with every regressive policy at full score and no progressive policy in force, to 23, with every progressive policy at full score and no regressive one. Every policy has equal weight in the sum, as in the 2023 index, so the index treats no policy area as more important than another. Across the 195 countries in 1991–2025 the Additive Index ranges from −4.5 to +20.3.

5.4.3 Progressive and Regressive Indices

The index file also reports the two sums separately: progressive_index, the sum of the scores of the progressive policies, which ranges from 0 to 23, and regressive_index, the sum of the scores of the regressive policies, which ranges from 0 to 12 and is reported as a positive number. The Additive Index is their difference:

$$\text{additive_index} = \text{progressive_index} - \text{regressive_index}.$$

The two parts distinguish countries whose net scores are similar but whose laws differ. For example, a country with many protections and a criminal ban can have an Additive Index equal to that of a country with few laws of either kind, although both of its parts are higher.

5.4.4 Worked Examples

Table 5.7 shows the calculation for Botswana in 2025. Four policies are in force, all of them nationally, so Population Coverage is 1 in each. Employment Discrimination – Sexual Orientation scores 0.75: its Gender Scope is 1.0, its Policy Scope 0.5 ('Dismissal only') and its Evidence of Enforcement 0.75, the default, so the mean of its three other indicators is 0.75. No regressive policy is in force, so the Additive Index equals the progressive sum, 3.4167.

Table 5.7. Additive Index of Botswana, 2025

Policy	Dir.	Coverage	Gender Scope	Penalty	Access	Scope	Enforcement	Score
Age of Consent (Equal)	Prog.	1.000	1.00	–	–	1.00	1.00	1.000
Employment Discrimination – Sexual Orientation (Illegal)	Prog.	1.000	1.00	–	–	0.50	0.75	0.750
Gender Marker Change (Legal)	Prog.	1.000	–	–	0.50	1.00	0.50	0.667
Same-Sex Acts (Legal)	Prog.	1.000	1.00	–	–	1.00	1.00	1.000

Table 5.8 sets out the calculation for Australia in 1995, when several of its laws were set by the states and territories. Same-Sex Acts Illegal, the offence still in force in Tasmania, reaches 2.4 percent of the population, so it adds only 0.020 to the regressive sum although its other indicators are high. Age of Consent Unequal takes a Penalty Severity of 0.40 from its maximum penalty of 10 years (§5.2). The progressive sum is 3.0804 and the regressive sum 1.8828, so the Additive Index is 1.1976.

Table 5.8. Additive Index of Australia, 1995

Policy	Dir.	Coverage	Gender Scope	Penalty	Access	Scope	Enforcement	Score

Age of Consent (Equal)	Prog.	0.340	1.00	–	–	1.00	1.00	0.340
Age of Consent (Unequal)	Regr.	0.636	0.50	0.40	–	1.00	0.75	0.421
Blood Donations (Illegal)	Regr.	1.000	–	–	1.00	1.00	1.00	1.000
Employment Discrimination – Sexual Orientation (Illegal)	Prog.	0.441	1.00	–	–	1.00	0.75	0.405
Gender Marker Change (Legal)	Prog.	0.078	–	–	0.25	1.00	0.75	0.052
Incitement to Hatred (Legal)	Prog.	0.336	1.00	–	–	1.00	0.75	0.308
LGB Military (Legal)	Prog.	1.000	1.00	–	–	1.00	1.00	1.000
Religious Exemption Laws (Legal)	Regr.	0.441	1.00	–	–	1.00	1.00	0.441
Same-Sex Acts (Illegal)	Regr.	0.024	1.00	0.60	–	1.00	0.75	0.020
Same-Sex Acts (Legal)	Prog.	0.976	1.00	–	–	1.00	1.00	0.976

Values in Tables 5.7 and 5.8 are rounded, while each score is computed from unrounded values. Dir. gives the direction of the policy (Prog., progressive; Regr., regressive). A dash marks an indicator that does not apply to the policy.

5.5 The CFA Index

5.5.1 Purpose

Where a proper factor solution exists, the CFA Index weights a policy's indicators by how strongly they covary across the country-years in which the policy is in force. This version is published so that users can compare the preferred Additive Index with the measurement approach of the 2023 index (§5).

5.5.2 Indicators and Missing Values

The CFA Index uses the indicator scores of §5.2 and the missing-value rule of §5.3. As in the 2023 index, Population Coverage is one of the indicators in the factor analysis and does not multiply the score.

5.5.3 The Factor Model

For each policy the script pools the policy's active country-years across all countries and years and keeps the indicators that vary within that pool. If at least three indicators vary, it fits a one-factor confirmatory factor analysis in the R package lavaan, with the variance of the latent factor fixed to 1. The script uses a solution only if it is proper, that is, if the model converges without warnings, passes lavaan's post-estimation check and yields standardized loadings within $[-1, 1]$. The loadings are then oriented so that their sum is positive, which makes a higher factor score mean more of the policy. Appendix A reports the loadings and fit indices of every policy with a proper solution.

5.5.4 Policy Score

If every oriented loading of a proper solution is positive, the policy is scored as the weighted mean of its varying indicators, each weighted by its loading divided by the sum of the loadings. Every other policy is scored as the equal-weight mean of all its indicators, Population Coverage among them, because no loading weights can be used for it. Seven of the 35 policies are scored

with loading weights. Of the other twenty-eight, seven have a proper solution whose loadings disagree in sign, six have no proper solution and fifteen have fewer than three varying indicators, so no factor model is fitted for them.

5.5.5 Rescaling Within Each Policy

The script then rescales each policy's score over its active country-years so that the lowest score becomes 0 and the highest 1. A policy whose score does not vary across its active country-years scores 1. The rescaled score is relative to the policy's other country-years, so, unlike an Additive Index score, it can change when countries or years are added.

5.5.6 Country Score and Agreement with the Additive Index

The CFA Index of a country-year is the sum of the rescaled scores of its progressive policies minus the sum over its regressive policies. Across the 195 countries in 1991–2025 it ranges from −4.6 to +19.4. Its Spearman rank correlation with the Additive Index is 0.995 across all years and 0.998 in 2025. No country's 2025 rank differs between the two by more than 28 places.

The two indices differ most in their treatment of partial coverage: in 1993 the employment protection on the ground of gender identity in the United States was in force only in Minnesota, home to 1.75 percent of the country's population. This protection scores 0.02 in the Additive Index and 0.46 in the CFA Index, while a national protection with identical scope and enforcement scores 0.92 and 0.85 respectively. The Minnesota law therefore earns 54 percent of a national law's score in the CFA Index and 2 percent in the Additive Index.

5.6 The National Index

The National Index, the simplest of the three versions, adds 1 for every progressive Law × Status combination with Proportion = 1 in a Country × Year and subtracts 1 for every regressive combination with Proportion = 1; a combination with Proportion < 1 contributes 0, even if the policy is in force in part of the country. This version takes no account of the indicators and is stored in the index file as national_index.

Across the 195 countries in 1991–2025, the National Index ranges from −5 to +22. The global mean rose from −0.45 in 1991 to +4.09 in 2025. In 2025 the highest scores belong to Malta (+22), Portugal (+21), Cuba (+20), Germany (+20) and six countries at +18 (Chile, Colombia, Denmark, France, Spain, Uruguay). The lowest belong to Saudi Arabia (−5), Uganda (−5) and ten countries at −4 (Iran, Kuwait, Malaysia, Mauritania, Myanmar, Nigeria, Tanzania, United Arab Emirates, Yemen, Zambia).

The National Index and the Additive Index are closely correlated across the 195 countries: the annual Pearson correlation between them is r = 0.989 in 1991 and r = 0.996 in 2025.

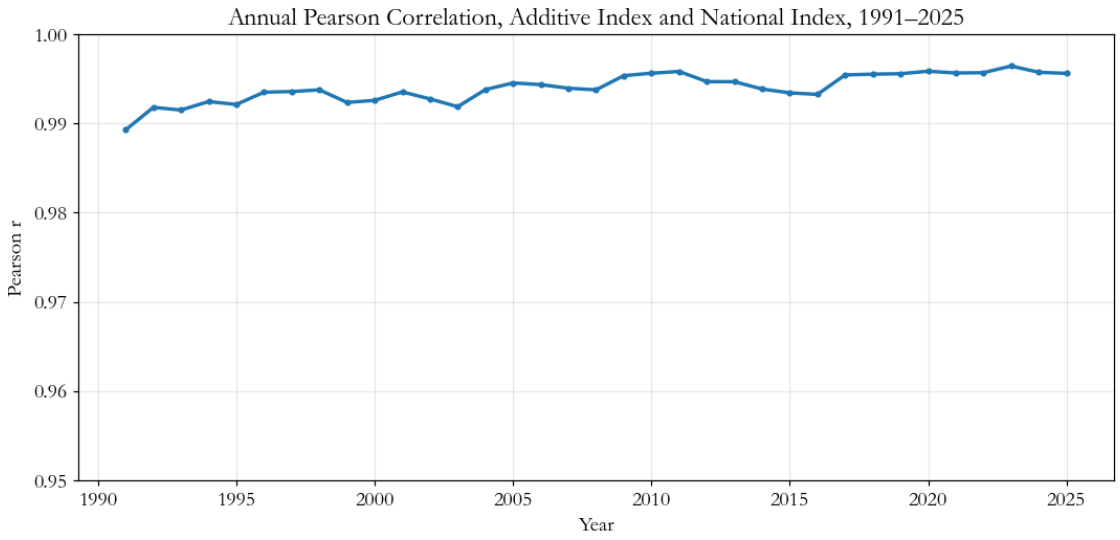


Figure 5.1. Annual Pearson Correlation Between the Additive Index and the National Index Across the 195 Countries, 1991–2025

The Spearman rank correlation between the National Index and the Additive Index is 0.991 across all years and 0.995 in 2025; between the National Index and the CFA Index it is 0.983 across all years and 0.992 in 2025. The largest 2025 difference in a country's rank between the National Index and the Additive Index is 48 places. The variance the two indices do not share comes from what the Additive Index measures and the National Index omits: coverage below the national level, gender scope, penalty severity, ease of access, scope within a policy and enforcement.

5.7 Output

The script writes a single file, LGBTI_Composite_Index.csv: a Country × Year panel of 6,808 rows, in which South Sudan begins in 2008, its first coded year. Table 5.9 lists its eight columns.

Table 5.9. The Columns of the Index File

Column	Content
Country, ISO, Year	As in the data file
progressive_index	The sum of the Additive Index scores of the progressive policies (§5.4.3)
regressive_index	The sum of the Additive Index scores of the regressive policies, as a positive number (§5.4.3)
national_index	The National Index (§5.6)
additive_index	The Additive Index, the preferred version (§5.4)
cfa_index	The CFA Index (§5.5)

Appendix B reports the within-year ranks of the three versions, the rank interval of the Additive Index under random indicator weights and the Additive Index recomputed without the Evidence of Enforcement indicator, none of which is a column of the index file. The R script writes them to a separate file if the environment variable LGBTI_DIAGNOSTICS names a file path before the script runs.

5.8 Composite Index Trends, 1991–2025

Figure 5.2 shows the global distribution of the Additive Index across the 195 countries in every year since 1991. The bold line is the global mean, the dark band is the 25th–75th percentile range across countries, and the light band is the 10th–90th. The global mean rose from −0.14 in 1991 to +4.10 in 2025. The gap between the upper quartile and the median widened from 1.38 in 1991 to 8.30 in 2025.

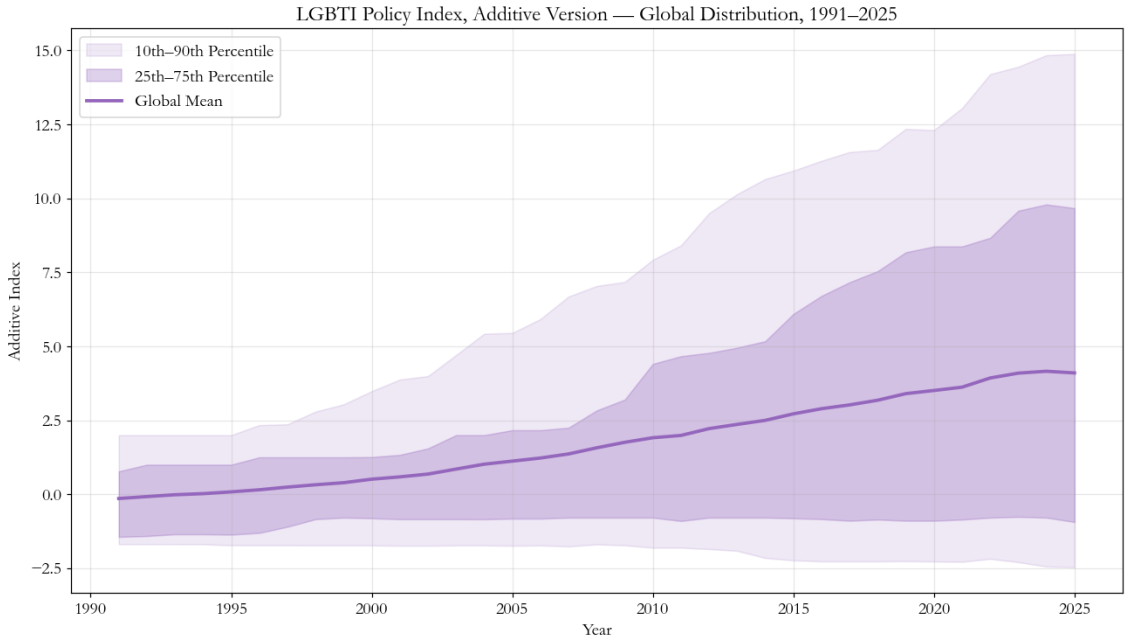


Figure 5.2. Additive Index (35 Policy-Status Combinations), Global Distribution, 1991–2025

Figure 5.3 follows the three indices for two countries: the United States, a federation in which many of the laws coded are set by the states, and Hungary, a unitary state whose laws apply to the whole country. In the United States the National Index lies below the Additive Index in 34 of the 35 years, because a state law counts in the Additive Index in proportion to the population it covers and not at all in the National Index. The CFA Index lies above the Additive Index in every year, by 2.65 on average, because its factor construction gives a law in force in part of the country a large share of a national law's score (§5.5.6). In Hungary the three indices stay close: the National Index differs from the Additive Index by 0.57 on average and the CFA Index by 0.40. The National Index is the higher of the two in 19 years, because it counts a national law as 1, while the Additive Index scores that law below 1 when any of its other indicators is below the maximum.

Both countries fall in 2025: the Additive Index of the United States drops from 13.92 to 10.67, mainly because transgender people were barred from military service and the restrictions on gender-affirming care came to bind the whole country; in 2024 they had covered 23 percent of the population for adults and 45 percent for minors. Hungary's drops from 10.49 to 7.58, because its protections against discrimination on the ground of gender identity in employment

and in goods and services, and the admission of transgender people to military service, are no longer in force.

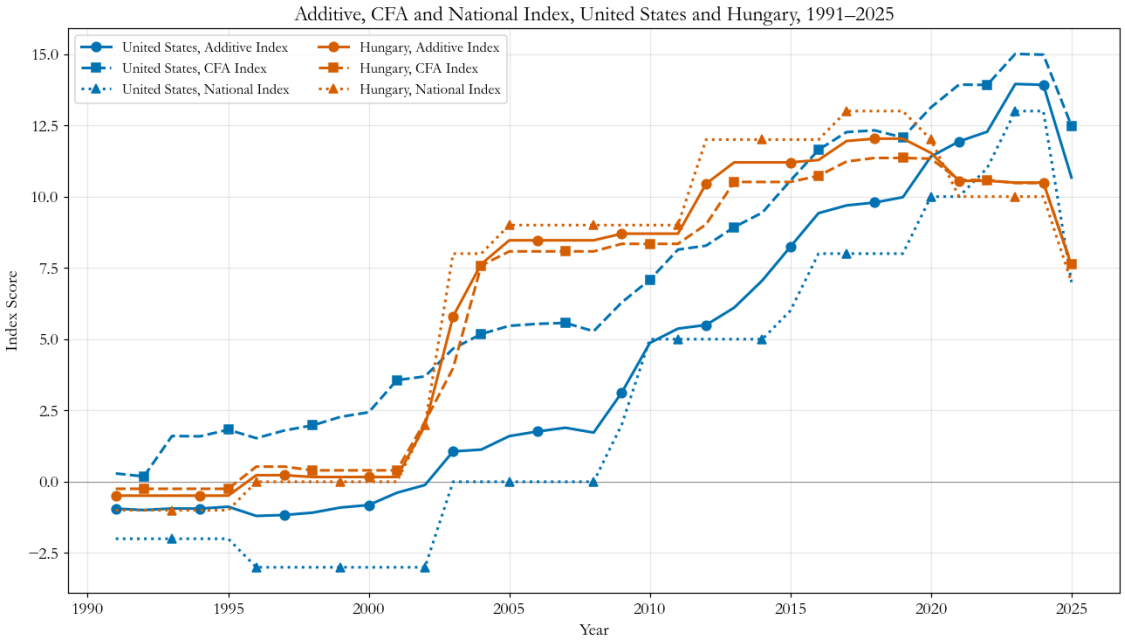


Figure 5.3. Additive, CFA and National Index, United States and Hungary, 1991–2025

5.9 Create Your Own Index

Every score in this index is a choice. I chose how many points each penalty, requirement and label is worth, how missing values are filled, which indicators measure each policy and how much each indicator and policy weighs. Other researchers may reasonably choose differently: for example, they may score a marriage bar in a statute as highly as one in the constitution, or treat a court order for a change of gender marker as no barrier at all. The data file records the coded values themselves, such as 'Court order' or 'Bar in ordinary law', not their scores. You can therefore build an index under your own choices from the same data by editing the R script, Velasco_LGBTI_Index_Construction.R, without recoding any row.

Table 5.10 lists each choice you can change, the choice made in this release, where it is set in the script and an example of a change with its effect. The script is divided into numbered sections, each opening with a comment line such as '## 2. Derive the six indicators', and every object named in the table can be found by searching the script for its name.

Table 5.10. Choices You Can Change, and Where to Change Them

What you can change	Choice in this release	Where to edit it in the script	Example of a change and its effect

How severe each maximum penalty is	Death 1.0, life 0.8, over 15 years 0.6, over 3 to 15 years 0.4, up to 3 years 0.2, a fine or other non-prison penalty 0.0 (Table 5.3)	Section 2(a), the function score_penalty, which has one line per band	To treat life imprisonment as severe as death, change 0.8 to 1.0 on the line for life. Countries whose maximum is life imprisonment then score as high on Penalty Severity as countries with the death penalty.
How hard each requirement for changing a gender marker is	Self-declaration 1.0; diagnosis, psychological assessment or court order 0.5; surgery 0.25; surgery and sterilization 0.0 (Table 5.4)	Section 2(b), the table gender_change_scores, which pairs each requirement with its score	To treat a court order as no barrier, change the 0.5 in the Court order row to 1.0. Countries that require only a court order, such as France from 2016, then score like countries that allow self-declaration.
How restrictive each blood-donation deferral is	No restriction 1.0, 3 or 4 months 0.75, 6 months 0.5, 12 months 0.25, permanent or five years or longer 0.0; the restrictive row uses the reverse (Table 5.4)	Section 2(b), the table blood_deferral_scores, which pairs each deferral with its score	To count a 12-month deferral as a moderate restriction, like a 6-month one, change the 0.25 in the 12-month row to 0.5. Its score on the restrictive row then falls from 0.75 to 0.5.
How much each civil union bundle of rights is worth	The benefits grade, 1 to 5, divided by 5, so a union with minimal rights scores 0.2 and one with the rights of marriage 1.0	Section 2(b), the function score_access, on the line for Civil Unions	To give no credit for minimal rights, replace benefits / 5 with (benefits - 1) / 4. A union of grade 1 then scores 0 and a union of grade 5 still scores 1.
How much each scope label is worth, including the two marriage-bar labels	The scores in the table of §2.5; a constitutional marriage bar 1.0 and a bar in ordinary law 0.5	Section 2(c), the table scope_scales, which lists each policy area, label and score	To score every marriage bar alike, change the 0.5 in the row for Bar in ordinary law to 1.0 (the worked example below).
How enforcement and the sexes covered are scored	The values coded in Evidence_of_Enforcement and Sexes_Covered, used as they stand	End of section 2, the lines that set ind_evidence_of_enforcement and ind_gender_scope	To presume that every law in force is fully applied, replace Evidence_of_Enforcement on its line with if_else(Evidence_of_Enforcement == 0.75, 1, Evidence_of_Enforcement). Every default of 0.75 then becomes 1.0, while documented values stay as coded.
Which indicators measure each policy, and whether it is added or subtracted	Table 5.1	Section 3, the table policies_tbl, with one row per policy: TRUE or FALSE for Gender Scope, Penalty Severity and Ease of Access, and progressive or regressive	To stop Gender Scope from lowering the score of criminal laws that reach sex between men only, change TRUE to FALSE in the gender column of the Same-Sex Acts Illegal row. Those laws then count as fully as laws that reach all sexes.
How a missing value is filled	The series' own mean, or 0.5 where the series never states a value (§5.3)	Section 4, the function fill_missing	To score a value that a series never states as the lowest possible rather than the midpoint, change the 0.5 in fill_missing to 0.
How the indicators of one policy are combined	Population Coverage times the equal-weight mean of the other indicators (§5.4.1)	Section 4, the line in score_policy that reads factor_score = coverage * rowMeans(O)	To treat coverage as one indicator among the others, as the CFA Index does, replace coverage * rowMeans(O) with rowMeans(X). A law in force in part of a country then scores much closer to a national law.

How much each policy counts	Every policy counts once, up to 1 point (§5.4.2)	Section 5, the line that reads signed_factor = sign * factor_score	To count one policy twice, multiply that line by 2 on the rows of that policy, so that the policy can add or subtract up to 2 points instead of 1.

Building your own index takes four steps. First, make a copy of the R script and keep the published index file under another name, because the script writes a new LGBTI_Composite_Index.csv each time it runs. Second, find in Table 5.10 the choice you want to change and open the copy at the section the table names. Third, change the numbers, keeping every score between 0 and 1, with a higher score meaning more of the policy. Fourth, run the copy with Rscript in the folder that holds the data file and compare the new index file with the published one. The new file contains all three indices: the Additive and CFA Indices reflect your changes, while the National Index, which counts laws in force nationally, is unchanged.

The script stops rather than produce a wrong index in two situations. It stops if a value in the data file has no score on its scale, so a label or category you add to the data must also be added to its table in the script. It also checks, before scoring any row, that each ordered scale runs from the most to the least of the policy, and stops if an edit reverses that order. If you mean to reverse an order, also change the matching row of the checks access_tests, scope_tests and penalty_test, which follow the scoring tables in section 2 of the script.

A change in the script changes a score for every country. To change how one country is coded instead, edit that country's cells in the data file before running the script. For example, if you read a country's constitution as not stating a marriage bar, change its Policy_Scope cells from 'Constitutional bar' to 'Bar in ordinary law' for the years in question. The coding rules of §3, the policy entries of §4 and each series' Source columns state how every value was coded, so you can document such a change against them.

Worked example. Suppose you want a marriage bar to count the same whether a statute or the constitution states it. Open your copy of the script at section 2(c) and find the table scope_scales. Its last two rows give the marriage-bar labels: Constitutional bar with a score of 1.0 and Bar in ordinary law with a score of 0.5. Change the 0.5 to 1.0, save the copy and run it. Every marriage bar now scores 1.0 on Policy Scope. A bar in ordinary law that covers the whole country therefore scores 1.0 as a policy instead of 0.75, so the Additive Index of that country falls by 0.25 in each year of the bar. Hungary, for example, scores 0.25 lower in every year from 1991 to 2011, when its marriage bar was set by the Family Act of 1952, and does not change from 2012, when the Fundamental Law placed the bar in the constitution. Appendix B reports how the published ranking changes under several other choices of this kind.

6. Known Limitations

- 18 of 54 Law × Status combinations are all-zero placeholders; row_type separates them (§1.1).
- Both statuses of a pair can be above 0 in the same year where coverage is subnational, or in the Gender Affirming Care policies, whose two statuses do not exclude each other (§1.1, §3.5).
- The protective status is 'Illegal' for the discrimination, conversion therapy and intersex-surgery policies and 'Legal' for the hate-crime and incitement protections (§3.5 and the policy entries).
- Fine_Amount mixes stated amounts (number and currency or unit) with 'Yes' and 'No', so it should be read as character.
- The dataset codes named legal provisions. Exclusion has often operated through categories that name no ground, such as the military fitness standards of Greece ('psychosexual' disorders, Presidential Decree 426/1984), Taiwan ('sexual perversion diagnosed') and Cyprus (criteria unpublished until 2011), so a zero on a regressive row records that no named ground was found, not that no exclusion occurred.
- Year_of_National_Adoption is inferred where an instrument prints no assent, signing or promulgation date (for example from the year in an Act's number or from its publication date), so a few adoption years may differ from the true one.
- Evidence_of_Enforcement values at the policy default (0.75 for event-based policies, 1.00 for rules that apply without an enforcement act and for the two policies recording the absence of a prohibition) are presumptions, not documentation. Values that depart from the default are each based on a citation or on the instrument's own dates (§3.2, §3.7).
- 442 of the 1,716 substantive series (26 percent) are rated low (§2.8), most often because an instrument's text could not be obtained or no corroborating source was found. The share is highest in Third-Gender Recognition (50 percent), Religious Exemption Laws (50 percent) and Gender Affirming Care – Adults (48 percent). Analyses restricted to series rated high or medium should report how many series the restriction excludes.
- Series whose coverage is based on reading a provision that names neither the ground nor the conduct are rated medium (§2.8). Three further codings involve a judgment that researchers may wish to revisit: Kenya Third-Gender Recognition, based on the Children Act of 2022, which provides for intersex persons only; Pakistan Goods/Services Discrimination – Gender Identity, based on the Transgender Persons (Protection of Rights) Act 2018, parts of which the Federal Shariat Court struck down in 2023; and Nepal Constitutional Protections – Gender Identity, based on arts. 12, 18(3) and 42 of the Constitution, which name gender identity for citizenship certificates and protect 'gender and sexual minorities', a phrase read to include gender identity.

Appendix A. Factor Analyses for the 14 Policies with Proper Solutions

For the CFA Index (§5.5), the script fits a one-factor CFA to every policy with at least three indicators that vary across its active country-years. The table reports the oriented standardized loadings and fit indices for the 14 policies with a proper solution and states whether the CFA Index weights each policy's indicators by their loadings. The fit indices are the chi-square statistic (chi^2) with its degrees of freedom (df), the comparative fit index (CFI), the Tucker–Lewis index (TLI), the root mean square error of approximation (RMSEA) and the standardized root mean square residual (SRMR). A chi-square df of 0 denotes a saturated three-indicator model, for which the standard fit indices are not defined.

Policy	n	Indicator	Std. loading	chi²	df	CFI	TLI	RMSEA	SRMR	Weights in the CFA Index
Employment Discrimination – Sexual Orientation (Illegal)	1,773	Population Coverage	0.148	0	0	—	—	—	—	Loading weights
		Policy Scope	0.638							
		Evidence of Enforcement	0.351							
Employment Discrimination – Gender Identity (Illegal)	779	Population Coverage	0.293	0	0	—	—	—	—	Loading weights
		Policy Scope	0.359							
		Evidence of Enforcement	0.435							
Civil Unions (Legal)	845	Population Coverage	0.528	0	0	—	—	—	—	Loading weights
		Ease of Access	0.210							
		Evidence of Enforcement	0.336							
Gender Marker Change (Legal)	1,863	Population Coverage	−0.091	0	0	—	—	—	—	Equal weights (loadings disagree in sign)
		Ease of Access	0.610							
		Evidence of Enforcement	0.034							
LGB Military (Illegal)	670	Gender Scope	0.523	0	0	—	—	—	—	Loading weights

		Penalty Severity	0.505							
		Evidence of Enforcement	0.113							
Conversion Therapies (Illegal)	195	Population Coverage	0.380	7.357	2	0.877	0.632	0.117	0.058	Loading weights
		Penalty Severity	0.940							
		Policy Scope	0.181							
		Evidence of Enforcement	0.237							
Gender Assignment Surgeries on Children (Illegal)	95	Population Coverage	0.687	0	0	—	—	—	—	Equal weights (loadings disagree in sign)
		Penalty Severity	0.498							
		Evidence of Enforcement	−0.329							
Morality/Propaganda (Legal)	986	Population Coverage	0.834	26.023	2	0.904	0.711	0.110	0.045	Equal weights (loadings disagree in sign)
		Penalty Severity	−0.353							
		Policy Scope	0.425							
		Evidence of Enforcement	0.081							
Age of Consent (Unequal)	743	Population Coverage	−0.211	24.443	2	0.834	0.502	0.123	0.051	Equal weights (loadings disagree in sign)
		Gender Scope	−0.567							
		Penalty Severity	0.548							
		Evidence of Enforcement	0.264							
Gender Affirming Care – Adults (Covered)	755	Population Coverage	0.050	0	0	—	—	—	—	Loading weights
		Policy Scope	0.313							
		Evidence of Enforcement	0.653							

Gender Affirming Care – Minors (Covered)	406	Population Coverage	0.317	0	0	—	—	—	—	Loading weights
		Policy Scope	0.514							
		Evidence of Enforcement	0.248							
Gender Affirming Care – Adults (Restricted)	166	Population Coverage	0.534	0	0	—	—	—	—	Equal weights (loadings disagree in sign)
		Penalty Severity	−0.526							
		Policy Scope	0.279							
Gender Affirming Care – Minors (Restricted)	189	Population Coverage	0.441	0	0	—	—	—	—	Equal weights (loadings disagree in sign)
		Penalty Severity	−0.557							
		Policy Scope	0.238							
LGBTQ+ Civil Society Restrictions (Legal)	62	Population Coverage	−0.238	3.576	2	0.964	0.892	0.113	0.068	Equal weights (loadings disagree in sign)
		Penalty Severity	0.850							
		Policy Scope	0.831							
		Evidence of Enforcement	0.086							

Of the remaining 21 substantive Law × Status combinations, 15 retain fewer than three indicators that vary across their active country-years once missing values are filled and indicators without variation are set aside. The other six yield no proper solution (non-convergence, a warning or improper estimates). The CFA Index scores these policies, like those whose loadings disagree in sign, as the equal-weight mean of their indicators, rescaled within the policy (§5.5.4, §5.5.5).

Appendix B. Sensitivity and Uncertainty

Composite indicators should be accompanied by an account of how far the ranking depends on construction choices. This appendix reports two analyses. The rank intervals (B.2) and the Additive Index without enforcement are produced by the R script, while the alternative constructions in B.1 were computed from the same indicator matrix that the script builds, by rescoring every policy under each rule and re-aggregating.

B.1 Alternative Constructions

Each alternative rebuilds every policy score from the same indicator matrix and re-aggregates. Every alternative except the CFA Index keeps Population Coverage as the multiplier of the other indicators. Correlations are Spearman rank correlations with the Additive Index; rank shifts are for 2025 and use average ranks. The CFA Index of §5.5 is one of the alternatives. For the geometric mean an indicator of 0 is raised to 0.001, and under min-max rescaling a policy whose score does not vary takes 0.

Specification	**Spearman, all years**	**Spearman, 2025**	**Max rank shift, 2025**	**Countries shifting ≥ 10, 2025**
Additive Index (equal weights, absolute scale)	1.000	1.000	0	0
Equal weights with within-policy min-max rescaling	0.994	0.996	27	13
CFA Index (loading-weighted where admissible, with min-max rescaling)	0.995	0.998	28	4
Geometric mean within policy	0.996	0.997	26	7
Weakest-link (minimum) within policy	0.984	0.992	36	30
Excluding Evidence of Enforcement	0.996	0.998	20	5
Excluding Ease of Access	0.999	0.999	16	1
Excluding Policy Scope	0.994	0.997	19	8
Coverage binarized to a national flag	0.998	0.997	44	6
Population coverage only (subnational-weighted adoption count)	0.992	0.997	20	7

Min-max rescaling of the equal-weight scores and the CFA Index each correlate 0.994 or higher with the Additive Index across all years. They shift 13 and four countries ten or more places in 2025. The non-compensatory weakest-link rule, under which a policy scores at its lowest indicator, reorders the cross-section most: it shifts 30 countries ten or more places. The geometric mean shifts seven countries. Among the specifications that change which indicators are included, the counts are seven for Population Coverage alone, five without Evidence of Enforcement, one without Ease of Access, eight without Policy Scope and six with Population Coverage binarized to a national flag.

B.2 Rank Intervals Under Random Weights

The R script computes, for every country-year, the 5th and 95th percentiles of the Additive Index rank across 300 random draws of within-policy indicator weights (Dirichlet, equal expectation). They describe how far a country's position depends on the weighting and are not sampling confidence intervals. In 2025 the median interval is 6 ranks wide, the 90th percentile of

widths is 15, and six countries have intervals wider than 20 ranks (China, Egypt, Georgia, Kazakhstan, Singapore and Trinidad and Tobago). Intervals are narrowest at the top of the distribution: no country in the 2025 top 20 has an interval wider than 5 ranks.

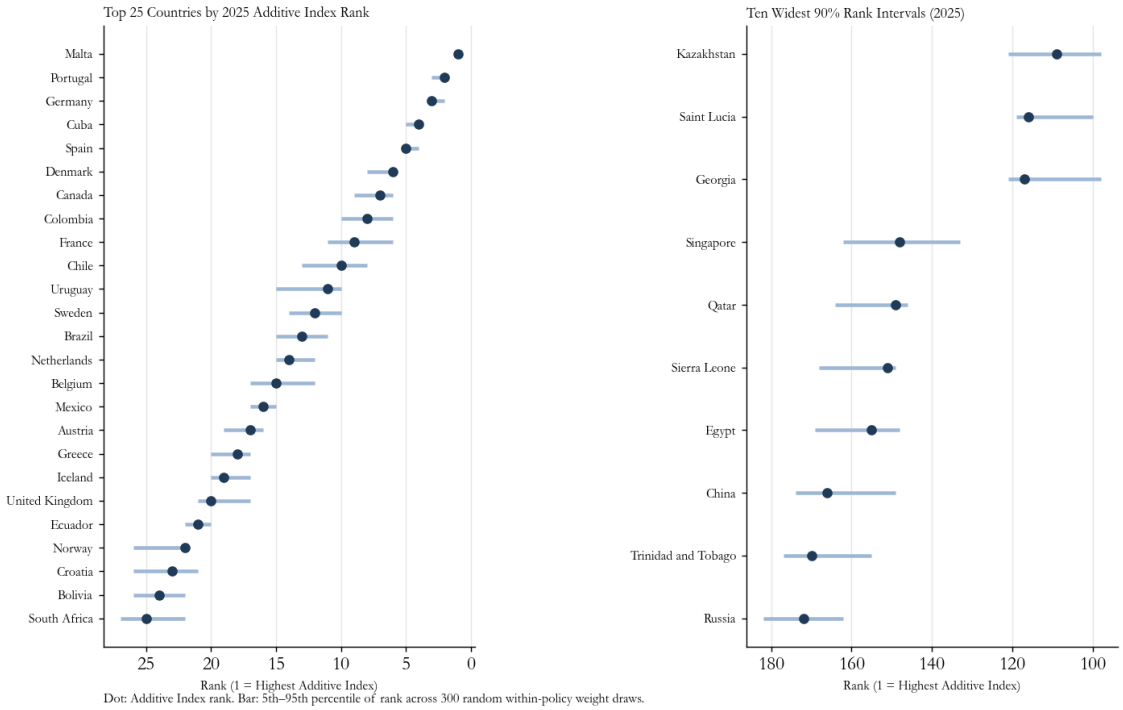


Figure B.1. 2025 Additive Index Rank (Dot) and 5th–95th Percentile of Rank Across 300 Random Weight Draws (Bar)

Appendix C. Update from v1.0

The index in Velasco (2023), published in the American Journal of Sociology, covers 18 policies, 13 progressive and 5 regressive, in 152 countries from 1990 to 2018. It scored each policy by a confirmatory factor analysis of three to five indicators (the share of the population living under the law, the scope of genders, the maximum punishment, the ease of access and evidence of enforcement), with the variance of the factor fixed to 1, and summed the policy scores, adding progressive policies and subtracting regressive ones. Version 1.0 is the dataset released with the article: a wide-format country–year matrix of 21 policy indicators for 192 countries in 1991–2019, each scored from a confirmatory factor analysis of that policy's indicators if it had several and summed into a composite index in the same way. Version 2.0, the first long-format release, kept that composite construction and rebuilt the release around it to widen its analytic uses and to make every coding decision traceable and reproducible. Version 3.0 makes an equal-weight Additive Index the preferred version and keeps the factor-analytic construction as the CFA Index (§5.5).

- Wider coverage. 195 countries through 2025; 27 policy areas × 54 Law × Status combinations, up from 21 binary items — new areas cover gender-affirming care, blood donation, civil-society restrictions, religious exemptions, and separate protection tracks for sexual orientation and gender identity.
- Different format. Long-format balanced panel with placeholders, so the data can be used directly in panel-regression, event-study, and matching frameworks that the v1.0 wide matrix did not support.
- Sub-national trajectories. Federal and devolved countries are coded as population-weighted Proportion series using constant census weights, mostly of 2000 or 2001 (§3.8 lists the exceptions), in place of the v1.0 binary national flag, so that within-country variation can be used analytically.
- Codified coding protocol. Every value is re-derived under the §3 protocol (adoption-year and first-statute conventions, binding-instrument threshold, reversal handling, enforcement presumption, dating to the first documented instrument and to Correlates of War entry). Individual codings may differ from v1.0 — most commonly because v2.0 dates adoption rather than entry into force.
- Cell-level sourcing. Every cell is attributable to one of the series' twelve source columns. Each substantive series also has a data-confidence rating. Version 1.0 had no cell-level sourcing.
- Wider composite scope. Version 2 applied the one-factor CFA composite of v1.0 across 33 policy-status combinations (up from 21), so newly added areas — gender-affirming care, blood donation, civil-society restrictions, religious exemptions, and separate protections for sexual orientation and gender identity — are included in the composite directly. The subnational Proportion series serves as the Population Coverage indicator for federal and devolved countries, so within-country rollout now contributes to the score rather than being flattened to a national flag. The National Index, an unweighted count of national policies, is published alongside as a transparency baseline.

Versioning scheme: minor updates increment the decimal (2.1, 2.2, …), while major revisions increment the integer (3.0).

Version 3.0 (October 2026)

Version 3.0 is a major revision: it re-derives the coding of every series from dated instruments and builds its preferred composite index from equal-weight policy scores.

- Index construction. Each policy score is Population Coverage times the equal-weight mean of the other indicators, on an absolute [0, 1] scale with no rescaling relative to other countries (§5.4.1), so a law in force in part of a country counts in proportion to the population it reaches and adding a country or a year never changes another country's score. This Additive Index is the preferred version; the National Index (§5.6) and the CFA Index, the factor-analytic construction of Version 2.0 (§5.5), are published with it. Policy Scope is a sixth indicator (§5.2.6); Ease of Access is kept for the four policies, in three policy areas, with an access field of their own; every regressive scale reads higher = deeper restriction. LGB Military (Illegal) and Transgender Military (Illegal) enter the composite, so 35 of the 36 substantive combinations are scored; Joint Adoption (Illegal) stays outside as the complement of a policy already included. 'Fine or other non-prison penalty' scores 0.0 on Penalty Severity; an empty remedy category in an employment or goods-and-services series scores 0.5; a marriage bar written into the constitution scores above one in ordinary law (§5.2.6); a missing indicator takes the series' own mean over its active years, or 0.5 where the series never states a value (§5.3).
- Instrument-based coding. Every series is coded from the dated legal instruments that establish, amend or repeal it or, before its first citable instrument, from documented practice or the documented absence of a provision (§3.3.2). Each instrument is cited and, where its text was obtained, quoted (§3). Every status and every covered jurisdiction is dated by the adoption of its instrument; an amendment with a commencement lag applies from its entry into force; a repeal is dated by the signing of the repealing instrument (§3.2). Gender_Change_Requirement changes in the year each reform takes effect, with a 'Court order' category for a judicial procedure that requires no medical evidence. Fine_Amount is recorded for every policy whose provision attaches a fine (§3.6). Each Evidence_of_Enforcement value that departs from the default is based on cited evidence that meets the test of §3.7.2.
- Confidence and sources. data_confidence records the evidentiary basis of each series by the criteria of §2.8; 442 substantive series are low. The new confidence_note column states why. Each citation cell states which coded value it supports. A secondary compilation never occupies Source_1 (§3.8).
- Columns and labels. Policy_Scope, Evidence_of_Enforcement and confidence_note are new columns, and the columns appear in the order of their groups with the twelve source columns together. The five indicator columns of Version 2.0 (ind_gender_scope, ind_penalty_severity, ind_evidence_of_enforcement, ind_population_coverage and ind_ease_of_access) are no longer distributed, because the R script derives them from the coded fields. Sexes_Covered is numeric (1.00 for all sexes, 0.50 for a single sex) in place of 'Both', 'Male' and 'Trans'. Coded values are written in plain words: 'Admin only' is now

'Fine or other non-prison penalty' where a law punishes the person without prison and empty where the consequence is an exclusion; 'Permanent' is now 'Permanent deferral'; 'structural_placeholder' is now 'placeholder'; and the gender-change categories read 'Self-declaration', 'Medical diagnosis', 'Psychological assessment', 'Surgery', 'Surgery and psychological assessment' and 'Surgery and sterilization'. The index file has eight columns (§5.7).